SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30

1. REQUISITION NUMBER: 1000220399

2. CONTRACT NO.:

3. AWARD/EFFECTIVE DATE:

4. ORDER NUMBER:

5. SOLICITATION NUMBER: SPE7LX-26-R-0030

6. SOLICITATION ISSUE DATE: 2026 SEP 09

7. FOR SOLICITATION INFORMATION CALL:
a. NAME: Charles Mielke PLCL44F
b. TELEPHONE NUMBER (*No Collect calls*): Phone: 614-692-4223

8. OFFER DUE DATE/ LOCAL TIME: 2026 DEC 08 03:00 PM

9. ISSUED BY — CODE: SPE7LX

DLA LAND AND MARITIME
STRATEGIC ACQ PROGRAM DIRECTORATE
PO BOX 3990
COLUMBUS OH 43218-3990
USA

10. THIS ACQUISITION IS
☒ UNRESTRICTED OR ☐ SET ASIDE: ______ % FOR:
☐ SMALL BUSINESS
☐ HUBZONE SMALL BUSINESS
☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS
☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM
☐ EDWOSB
☐ 8 (A)
NAICS: 493190
SIZE STANDARD: $36.5M

11. DELIVERYFOR FOB DESTINATION UNLESS BLOCK IS MARKED
☐ SEE SCHEDULE

12. DISCOUNT TERMS:

13a. ☐ THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)

13b. RATING:

14. METHOD OF SOLICITATION
☐ RFQ ☐ IFB ☒ RFP

15. DELIVER TO — CODE:
SEE SCHEDULE

16. ADMINISTERED BY — CODE:

17a. CONTRACTOR/ OFFEROR — CODE: — FACILITY CODE:

TELEPHONE NO.

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18a. PAYMENT WILL BE MADE BY — CODE:

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	See Schedule				
	(Use Reverse and/or Attach Additional Sheets as Necessary)				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT *(For Govt. Use Only)*

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 3 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REF. ______ OFFER DATED ______. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*

30b. NAME AND TITLE OF SIGNER *(Type or Print)*

30c. DATE SIGNED

31b. NAME OF CONTRACTING OFFICER *(Type or Print)*

31c. DATE SIGNED

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

DRAFT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: ____________

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE
		32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER ☐ PARTIAL ☐ FINAL	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER
38. S/R ACCOUNT NO.	39. S/R VOUCHER NUMBER	40. PAID BY		

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY *(Print)*	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE	42b. RECEIVED AT *(Location)*	
		42c. DATE REC'D *(YY/MM/DD)*	42d. TOTAL CONTAINERS

Form

In accordance with FAR 15.203, it is the Contracting Officer's determination to award without negotiations. Failure to completely fill out the SF 1449 or to provide the required supporting documentation may render your proposal technically unacceptable.

SECTION A - SOLICITATION/CONTRACT FORM

SECTION A - GENERAL INFORMATION

NOTE: The terms "solicitation" and "Request for Proposal (RFP)" are used interchangeably throughout the entire Global Tires Program 2.0 (GTP 2.0) Standard Form (SF) 1449 and its Attachments.

A.1 INTRODUCTION

A.1.1 The Defense Logistics Agency (DLA) Weapons Support (WS) Strategic Acquisition Programs Directorate (SAPD), currently manages the GTP (reference https://www.dla.mil/Land-and-Maritime/Business/Selling/Global-Tires-Program/) Requirements contract in support of DLA managed aircraft and ground tires.

A.1.2 The GTP 2.0 efforts will be fulfilled under a Requirements contract (RC) to provide tire support for the Air Force, Army, Coast Guard, Marines, Navy and Foreign Military Sales (FMS). The Government will execute an acquisition strategy by establishing Vendor Long Term Contracts, Vendor Indefinite Delivery Contracts (IDCs), or other contractual instruments as directed by the Contracting Officer, hereby referred to as Vendor Contracts, with Original Equipment Manufacturers (OEMs) and dealers for tires, hereby referred to as Vendors. The acquisition strategy requires the GTP 2.0 Integrator to utilize the DLA WS established Vendor Contracts for its supply of tires for supply chain management and to provide responsive global supply support to military customers.

A.1.3 The GTP 2.0 Integrator, the Government and industry counterparts will be working together to support DLA's military customers by providing aircraft and ground tire support. The GTP 2.0 Integrator and Vendor(s) are required to meet all terms and conditions in their respective contract(s) and shall put forth its best efforts and always deal in good faith with one another in executing GTP 2.0 support. The GTP 2.0 Integrator is required to utilize the Government established Vendor Contracts for the GTP 2.0 Integrator's inventory and replenishment of new and retreadable tires. The Vendor(s) shall fill and deliver orders to the GTP 2.0 Integrator.

A.1.4 The GTP 2.0 RFP is for a Firm Fixed Price (FFP), Federal Acquisition Regulation (FAR) Part 12, RC for the supply and supply chain management support of certain tires, rubber treads, and other consumable rubber tire and track components, which may be identified by NSN or other means, and are managed by DLA outlined in Section C, C.2.0 "Scope" and its subparts.

A.1.5 The GTP 2.0 RFP Attachments will NOT be posted to the Defense Logistics Agency (DLA) Internet Bid Board System (DIBBS) and are ONLY available upon request. The GTP 2.0 RFP Attachments will be transmitted using https://safe.apps.mil/. Interested parties shall send their request for the GTP 2.0 RFP Attachments to charles.mielkeii@dla.mil with the following information in Microsoft Excel format as hereby shown:

Requestor Last Name Requestor First Name Requestor
Title Company
Name Company Commercial and Government Entity (CAGE) Code Requestor Phone Number Requestor Email Address

A.2 ACCESS

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A.2.1 The GTP 2.0 Integrator may be required to access to the following Government Systems to execute this requirement, including but not limited to the following list:

AFAST Aviation Financial Analysis Support Tool
Asset VizAsset Visibility
ASSIST Acquisition Streamlining and Standardization Information System
CPARS Contractor Performance Assessment Report System
CRIF Cargo Routing Information File
DAASINQ DLA Transaction Services Defense Automatic Addressing System Inquiry (System)
DLA Logistics Tools Defense Logistics Agency Logistics Tools
DoD Emall Department of Defense Electronic Mall
DoD Federal Mall Department of Defense Federal Mall
EDI Electronic Data Interchange (EDI) Transactions and Resource Guide
eRMS eRetrograde Management System
eSRS Electronic Software Requirements Specifications
GIDEP Government Industry Data Exchange Program (cooperative Government / industry activity to reduce expenditures of resources)

ILSMS Integrated Logistics Support Management System
myInvoice Payment module in Procurement Integrated Enterprise Environment (PIEE)
JDRS Joint Deficiency Reporting System
JPAS Joint Personnel Adjudication System
NALDA Naval Aviation Logistics Data Analysis
NITA Navy in Transit Accountability
One Touch One Touch Support
OOMA / Deckplate Decision Knowledge Programming for Logistics Analysis and Technical Evaluation
P700 Common Naval Packaging
PCARS Point Credit Accounting Record System
PDREP Product Data Reporting and Evaluation Program
PMA299 Server NAVAIR's H-60 Multi-Mission Helicopter Program
SPRS Supplier Performance Risk System
SIR - DCMA Shipping Instructions Request - Defense Contract Management Agency
VSM Vendor Shipment Module
WAWF Wide Area Work-Flow
WebCAV based Commercial Asset Visibility
WebFLIS Federal Logistic Information System

SECTION B - SUPPLIES OR SERVICES AND PRICES OR COSTS

SECTION B - SCHEDULE OF SUPPLIES AND SUPPLY CHAIN MANAGEMENT SUPPORT AND PRICES

B.1 The GTP 2.0 Contract Line-Item Number (CLIN) structure is as follows:
CLIN 0001 - Tire Price
CLIN 0002 - Supply Chain Management Fee [Contiguous United States (CONUS)]
CLIN 0003 - Supply Chain Management Fee [Outside the Contiguous United States (OCONUS)]
CLIN 0004 - Supply Chain Management Fee (FMS)
CLIN 0005 - Scrap / Disposal Management Fee
CLIN 0006 - CONUS Retread Management Fee
CLIN 0007 - OCONUS Retread Management Fee
CLIN 0008 - Surge and Sustainment (S&S) Tire Price
CLIN 0009 - Reconciliation
CLIN 0010 - GTP to GTP 2.0 Implementation Fee

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B.2 The Section B - Pricing Spreadsheet and Instructions is found in the GTP 2.0 RFP as Attachment 1.

NOTE: Each Estimated Annual Demand Quantity (EADQ) contained in the Section B - Pricing Spreadsheet is the Government's best estimate of the annual demand based on information available to the Government at the time of release of the GTP 2.0 RFP and as such may not reflect the quantities realized during the GTP 2.0 contract performance.

NOTE: Within the Section B Pricing Spreadsheet, the tab titles may not reflect the full title for each sheet. The full title for each sheet is located in the header for each tab.

NOTE: BASE PERIOD YEAR 1 pricing will include the four-month (4-month) GTP to GTP 2.0 Implementation period if an order is required to be fulfilled by the GTP 2.0 Integrator.

B.2.1 For planning purposes, the GTP 2.0 Pricing and Lead Times are in Attachment 2 of the RFP. The corresponding Delivery Orders (DOs) are in Attachment 3The data provided in these Attachments relate to tire demand projections based on recent historical demand and operating conditions, which may not reflect the conditions that the GTP 2.0 Integrator will encounter.

B.3 All awarded GTP 2.0 contract prices shall be made publicly available. By submitting an offer, the resulting GTP 2.0 Integrator agrees to the publication of its unit prices for each CLIN outlined in Section B.1

SECTION C - SPECIFICATIONS/SOW/SOO/ORD

SECTION C - DESCRIPTION, SPECIFICATIONS, PERFORMANCE WORK STATEMENT (PWS)

C.1.0 General

C.1.1 Section C of the GTP 2.0 RFP defines the effort required to implement GTP 2.0 of the Defense Logistics Agency (DLA) Weapons Support (WS). The GTP 2.0 scope of work is detailed in Section C.2.0 and its subparts.

C.1.2 The Government will pursue an acquisition strategy by establishing Vendor Contracts with Original Equipment Manufacturers (OEMs) and dealers for tires. The acquisition strategy requires the GTP 2.0 Integrator to utilize DLA WS established Vendor Contracts for its supply of tires for supply chain management and to provide responsive global supply support to military customers. Currently, total supply chain management and support of tires is managed by the DLA WS Tires Successor GTP contract. The resulting GTP 2.0 contract will result in a single supply chain management process that will support the GTP 2.0 scope of work.

C.1.3 The GTP 2.0 Integrator is required to comply with the implementation period requirements set forth in the resulting GTP contract and as detailed at Section P1 - 3.0, 4.0 and their subparts.

C.2.0 Scope

C.2.1 The GTP 2.0 scope of work is for the supply and supply chain management support of certain tires, rubber treads, other consumable rubber tire and track components and tire wheel assemblies, which may be identified by NSN or other means, and are managed by DLA. Additional items within contract scope may be added via Defense Logistics Agency Directive (DLAD) Procurement Note L27 “Addition and Deletion of Items”, reference Section P2 - 17.0 and its subparts. The current tire / NSN listing subject to GTP 2.0 Integrator support is identified at Attachment 4. The tires / NSNs supplied will support aircraft and ground systems worldwide. The Government Fiscal Years 2011-2025 requisition history is located at Attachment 5 to illustrate recent historical delivery locations.

C.2.2 The GTP 2.0 will be used to support current and future Department of Defense (DoD) customers [to include Foreign Military Sales (FMS)] of tires and the war fighter's readiness by relying on the private sector's ability to manage and perform all responsibilities required under the supply chain for tires. The Government shall establish Vendor Contracts for all tires / NSNs to be supported under the GTP 2.0 by the GTP 2.0 Integrator. The GTP 2.0 Integrator shall utilize these Government established Vendor Contracts for its supply of tires in support of GTP 2.0 requirements.

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C.2.3 Pursuant to Federal Acquisition Regulation (FAR) Part 8.105, the GTP 2.0 Integrator shall utilize the Government established Vendor Contracts identified by the Contracting Officer, reference Section P2 - 3.0 and its subparts for additional information.

C.2.4 For future requirements relating to new aircraft and ground system tire demands requiring the supply of tires by the DLA, the Government reserves the right to not include the requirement under the GTP 2.0 contract.

C.2.5 The GTP 2.0 RFP outlines the following areas of responsibility that the GTP 2.0 Integrator will be required to execute:

C.2.5.1 Demand Planning

C.2.5.2 Forecasting Orders to Tire Suppliers

C.2.5.3 Purchasing (from Government directed sources)

C.2.5.4 Order Processing and Fulfillment

C.2.5.5 Reconciliation

C.2.5.6 Supplier Management

C.2.5.7 Financial Management (GTP 2.0 Integrator owned inventory)

C.2.5.8 Item Management (i.e., stock levels and locations)

C.2.5.9 Quality Management

C.2.5.10 Management of Retreads and Tire Carcass Disposal (applicable NSNs)

C.2.5.11 Distribution and Transportation Management and Execution

C.2.5.12 Packaging and Shipment Preparation

C.2.5.13 United States (U.S.) and Foreign Customs Clearance

C.2.5.14 Obsolescence Management

C.2.5.15 Customer Support Services

C.2.5.16 Data Management

C.2.5.17 Global Contiguous United States (CONUS) and Outside the Contiguous United States (OCONUS) Support

C.2.5.18 FMS Support

C.2.5.19 Environmental, Safety and Occupational Health (ESOH) matters relating to the above services

C.2.5.20 Warehouse Management and Operations, to include Vendor Managed Inventory (VMI) for customers when determined appropriate by both parties and will be negotiated on a case-by-case basis via in-scope modification to the resultant contract.

C.2.6 Per DLAD 17.204(e)(1), the maximum GTP 2.0 ordering period of performance is for 10 years; this includes up to a four-month (4-month) implementation period, a five-year (5-year) base period and two (2), two-year (2-year) option periods, plus four (4), two-month (2-month) option periods in the GTP 2.0 contract exit phase. Option periods are exercised at the discretion of the Government. The period of performance shall commence upon the date found in block 3 of the resulting GTP 2.0 contract.

C.2.7 The GTP 2.0 shall be performed in three (3) phases as shown below. All phases of the PWS apply to GTP 2.0 in its entirety unless otherwise stated. This includes the GTP 2.0 Contractor Furnished Material (CFM) implementation period occurring in Phase I. The following sections and subparts are identified by the applicable phase of GTP 2.0 performance and the appropriate numbering system for reference:

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Form (CONTINUED)

P1 - PWS FOR PHASE I, GTP 2.0 TRANSITION
P2 - PWS FOR PHASE II, GTP 2.0 EXECUTION
P3 - PWS FOR PHASE III, GTP 2.0 CONTRACT EXIT
C.2.8 Defense Contract Management Agency (DCMA) Utilization: In addition to Quality Assurance efforts as required by FMS origin inspection requirements identified herein, the Government anticipates utilizing the DCMA, as delegated by the Contracting Officer, for contract administration support during the GTP 2.0 Integrator performance.

C.2.9 Unless expressly stated otherwise herein, the terms “days” and “hours” refers to calendar days.

C.2.10 The GTP 2.0 Contract Line-Item Number (CLIN) structure is as follows:

CLIN 0001 - Tire Price: this is a pass-through cost that reflects the tire price in the applicable Vendor Contract, which is the GTP 2.0 Integrator purchase price under the GTP 2.0 construct. This CLIN shall not contain any additional pricing other than the actual tire price in the applicable Vendor Contract. Any price adjustments applied to the Vendor Contract via contract modification shall apply to the GTP 2.0 Integrator purchase price from the Vendor Contract and shall be reflected in this CLIN 0001 tire price by a contract modification to the GTP 2.0 contract. NOTE: If Surge and Sustainment (S&S) is invoked by the Government, the GTP 2.0 Integrator will invoice under CLIN 0008, and no additional costs shall accrued under CLIN 0001.

CLIN 0002 Supply Chain Management Fee (CONUS): shall include costs associated with the supply chain management / logistics performance requirements set forth within the GTP 2.0 RFP for shipments to a CONUS customer or Consolidation and Containerization Point (CCP). It shall include costs associated with the palletization of tires. Refer to the requirements at Section P2 - 24.3 and its subparts.

CLIN 0003 Supply Chain Management Fee (OCONUS): shall include costs associated with the supply chain management / logistics performance requirements set forth within the GTP 2.0 RFP for shipments to an OCONUS customer. It shall include costs associated with the palletization of tires. Refer to the requirements at Section P2 - 24.3 and its subparts.

CLIN 0004 Supply Chain Management Fee (FMS): shall include costs associated with the supply chain management / logistics performance requirements set forth within the GTP 2.0 RFP for FMS. Refer to the requirements at Section P2 - 7.0 and its subparts. It shall include costs associated with the palletization of tires. Refer to the requirements at Section P2 - 24.3 and its subparts.

CLIN 0005 Scrap / Disposal Management Fee: CONUS scrap and disposal management and execution of the tire carcass / scrap disposal of tire(s) / NSN(s). Shall include costs associated with the execution of the requirements at Section P2 - 5.0 and its subparts.

CLIN 0006 CONUS Retread Management Fee: shall include costs associated with the execution of the requirements at Section P2 - 4.0 and its subparts for retread tires identified at Attachment 6. It shall include costs associated with the palletization of tires. Refer to the requirements at Section P2 - 24.3 and its subparts.

CLIN 0007 OCONUS Retread Management Fee: shall include costs associated with the execution of the requirements at Section P2 - 4.3 and its subparts for retread tires identified at Attachment 6. It shall include costs associated with the palletization of tires. Refer to the requirements at Section P2 - 24.3 and its subparts.

CLIN 0008 Surge and Sustainment (S&S) Tire Price: this is a pass-through cost that reflects the S&S tire price in the applicable Vendor Contract (if S&S is invoked by the Government), which is the GTP 2.0 Integrator S&S tire purchase price under the GTP 2.0 construct. This CLIN shall not contain any additional pricing other than the actual S&S tire price in the applicable Vendor Contract (if S&S is invoked by the Government). The S&S tire price for CLIN 0008 will include the CLIN 0001 tire price plus any additional S&S pricing as identified in the Vendor Contract(s). Any S&S price adjustments applied to the Vendor Contract via contract modification shall apply to the GTP 2.0 Integrator S&S purchase price from the Vendor Contract and shall be reflected in this CLIN 0008 S&S tire price by a contract modification to the GTP 2.0 contract. Refer to the requirements at Section P2 - 10.1 and its subparts. NOTE: If S&S is not invoked by the Government, the GTP 2.0 Integrator will invoice under CLIN 0001, and no additional costs shall be made under CLIN 0008.

CLIN 0009 Reconciliation: for CLINs 0001 and 0008 reconciliation payment. Refer to the requirements at Section P2 -

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16.3 and its subpart.

CLIN 0010 GTP to GTP 2.0 Implementation Fee: This CLIN shall be paid out in one (1) lump payment for the GTP to the GTP 2.0. The GTP to the GTP 2.0 implementation period shall include costs associated with the implementation elements as set forth in Section P1 of the PWS that is a one (1) time implementation period cost that is limited to the GTP implementation costs and does not include any recurring cost that occurs outside of the GTP to the GTP 2.0 implementation period. This cost shall NOT include the cost to purchase the GTP CFM from the current GTP Contractor. The GTP is addressed in detail at Sections C.1.2 and C.1.3 and the GTP CFM is defined in detail at Section P1 - 3.0 and its subparts.

C.2.10.1 All CLINs are Firm Fixed Price.

P1 - PWS FOR PHASE I, TRANSITION AND IMPLEMENTATION

P1 - 1.0 Introduction

P1 - 1.1 The total length of Phase I shall not exceed four-months (4-months) after the GTP 2.0 contract award date.

P1 - 1.2 Implementation Reporting

P1 - 1.2.1 The GTP 2.0 Integrator shall submit Implementation Status Reports to update the Contracting Officer on its implementation progress during the transition period. Status reports are to be submitted, in writing to the Contracting Officer, at the minimum frequency:

P1 - 1.2.1.1 Every 30 days from GTP 2.0 contract award date;

P1 - 1.2.1.2 Every 15 days for the last two (2) months prior to full execution; and,

P1 - 1.2.1.3 Every week of the last month prior to full execution.

P1 - 1.2.1.4 Implementation Status Reports must be kept current to reflect progress and actual completion of events toward implementation (i.e., those chronological events and milestones listed in the GTP 2.0 Integrator's Implementation Plan) such that the Contracting Officer can form a reasonable belief that full GTP 2.0 performance will be achieved by the end of the Implementation period and that the corresponding reporting of completion has been achieved at each milestone.

P1 - 1.2.1.5 During the implementation period, the Government reserves the right to request additional implementation status reports, at no additional cost to the Government.

P1 - 2.0 Phase I Activities

P1 - 2.1 The GTP 2.0 Integrator shall comply with the data reporting requirements in accordance with Section P2 - 16.0 and its subparts.

P1 - 2.2 The GTP 2.0 Integrator shall establish Electronic Data Interchange (EDI) capability in accordance with Section P2 - 16.2.3.

P1 - 2.3 Within 60 days after the GTP 2.0 contract award date, the GTP 2.0 Integrator shall make its warehouse(s) available for inspection. The GTP 2.0 Integrator shall perform any effort necessary to meet all requirements set forth in the PWS for Phase I, to include any corrective actions needed to the GTP 2.0 Integrator's warehouse(s) to ensure a proper storage environment.

P1 - 2.4 Within 75 days after the GTP 2.0 contract award date, the GTP 2.0 Integrator will complete coordination of the **Government identified system,** connectivity via EDI transactions. Coordination will be conducted through the Contracting Officer.

a. The existing GTP contract requires the Integrator's coordination of connectivity via EDI transactions with a system named Enterprise Linked Logistics Information Source (ELLIS), which will no longer be the required system at the time of the award.

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b. The new **Government identified system** was not available at the time of this drafting.

c. For the purposes of this drafting and throughout this drafting it will be referred to as the **Government identified system.**

d. Some of the possible replacement systems are:

i. ACTR (Advanced Contract Tracking and Reporting)

ii. RAPTR (Real-time Acquisition Performance Tracking and Reporting)

iii. VCAL (Vendor Contract Award Logistics)

P1 - 2.5 Within 90 days after the GTP 2.0 contract award date, the GTP 2.0 Integrator shall put in place the infrastructure, material, systems, including full EDI capabilities, customer service, and business partnerships necessary to enable the GTP 2.0 Integrator to meet the Government's performance requirements for Phase II, GTP 2.0 Execution.

P1 - 2.6 Performance Review Boards (PRBs)

P1 - 2.6.1 The initial PRB will be held at 90 days after the GTP 2.0 contract award date. PRBs are defined in detail at Section P2 - 2.2 and its subparts.

P1 - 3.0 GTP to GTP 2.0 Implementation

P1 - 3.1 The GTP 2.0 Integrator Purchase of GTP Ready for Issue (RFI) CFM Inventory

P1 - 3.1.1 The GTP 2.0 Integrator shall purchase aircraft and ground tires from the GTP Contractor [ASRC Federal Facilities Logistics, LLC (ASRC), CAGE code 79343] a three (3) month inventory target of RFI tires as established in the GTP contract, known as CFM. This three (3) month inventory is computed as three (3) times the average monthly demand of a previous 12-month consecutive period, which will be mutually agreed upon by the Government and GTP Integrator. This implementation shall be invoiced under CLIN 0010. It is expected that some tires / NSNs will have more or less than a three (3) month target value. The GTP 2.0 Integrator shall be provided with the option to inspect the GTP RFI CFM inventory prior to any purchase with any disputes to be reconciled by the Contracting Officer.

P1 - 3.1.1.1 The GTP RFI CFM not supported via the GTP 2.0 contract is not required to be purchased by the GTP 2.0 Integrator.

P1 - 3.1.2 For purposes of GTP 2.0 financing and proposal preparation, the estimated value of the said GTP 2.0 Integrator GTP RFI CFM inventory purchase is approximately $51M, for an estimate of 80,000 tires (see Attachment 7----if needed use the "ADV numbers from solicitation att 1 and att 2 file in the acq plan attachments folder----this information is in Attachment 3 of the Acq. Plan, 2nd tab).

P1 - 3.1.3 The GTP 2.0 Integrator shall only purchase ground GTP RFI CFM tires that have no less than nine (9) months of shelf life at the time of receipt into the GTP 2.0 Integrator's warehouse and upon GTP 2.0 Integrator acceptance of inspection of said tires, whichever date occurring later as stated at P1 - 3.1.1.

P1 - 3.1.4 The GTP 2.0 Integrator shall establish and maintain appropriate credit for the GTP RFI CFM purchase as described in the offeror's proposal, Volume II, subfactor 3.

P1 - 3.1.5 The purchase of the GTP RFI CFM inventory shall occur in two (2) stages; Stage One (1) and Stage Two (2).

P1 - 3.1.5.1 Stage One (1) requires the GTP 2.0 Integrator to purchase one-half of the GTP RFI CFM identified by the Government, by tire / NSN. The GTP RFI CFM inventory may be purchased as early as 60 days prior to the end of the GTP

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contract but shall be completed no later than 15 days prior to the end of the GTP contract on 30 November 2028.

P1 - 3.1.5.2 Upon completion of Stage One (1), Stage Two (2) requires the GTP 2.0 Integrator to purchase the remaining balance of the GTP RFI CFM identified by the Government, by tire / NSN. No later than 30 days after the end of the GTP contract, the GTP 2.0 Integrator GTP RFI CFM Stage 2 purchase shall be completed.

P1 - 3.1.5.3 The GTP 2.0 Integrator is not responsible for arranging shipping and transportation for the GTP RFI CFM purchase and therefore, those costs shall not be included in any GTP 2.0 Integrator proposal.

P1 - 3.1.5.4 During the GTP to the GTP 2.0 implementation period, the GTP Contractor is expected to support customer demands. However, in the event the GTP Contractor cannot fill a tire demand during this implementation period, the Government will provide the GTP 2.0 Integrator the opportunity to support customer demands. The GTP Contractor shall not receive Delivery Orders (DOs) beyond 11:59:59 post meridiem (p.m.) Eastern Standard Time (EST) at GTP contract expiration date.

P1 - 3.1.5.4.1 If the GTP 2.0 Integrator fulfills such order, the GTP 2.0 Integrator will receive payment based on the awarded prices for base year one (1).

P1 - 3.2 The GTP 2.0 Integrator Purchase of the GTP Not Ready for Issue (NRFI) Tires.

P1 - 3.2.1 The GTP 2.0 Integrator shall purchase any NRFI tires as early as 60 days prior to the end of the GTP contract, also referred to as retreadable tire carcasses, available under the GTP contract at 2% of the applicable NSN unit price in the GTP contract. The Contracting Officer will update the GTP NRFI data, by NSN, dollar value and tonnage, no less than quarterly. The GTP 2.0 Integrator shall be provided with the option to inspect the GTP NRFI inventory prior to any purchase with any disputes to be reconciled by the Contracting Officer.

P1 - 3.2.1.1 NRFI refers to retrograde tires carcasses received through the tire contract retreading process, reference Section P2 - 4.0 and its subparts.

P1 - 3.2.2 For purposes of GTP 2.0 financing and proposal preparation, the estimated value of the GTP 2.0 Integrator GTP NRFI inventory purchase is approximately $168,440.66, for a total of 4,267 tire carcasses at a weight of 620,091 pounds as of January 2026 (see Attachment 7).

P1 - 3.2.3 The GTP 2.0 Integrator is not responsible for arranging shipping and transportation for the NRFI tire purchase and therefore, those costs shall not be included in any GTP 2.0 Integrator proposal.

P1 - 3.2.4 The GTP 2.0 Integrator shall purchase the GTP NRFI beginning as early as 60 days prior to the end of the GTP contract, but purchases must be completed before the end of the GTP contract. Payment terms shall be NET 30.

P1 - 3.3 GTP 2.0 Used / Scrap Tire Program

P1 - 3.3.1 The GTP 2.0 Integrator is responsible for supplying trailers (e.g. rent, borrow, lease or own) during Phase I at the designated customer sites (Attachment 8), referenced at Section P2 - 5.0 and its subparts.

P1 - 3.3.2 Visitor Notification Process

P1 - 3.3.2.1 The GTP 2.0 Integrator is responsible for following the policy at each designated customer site for installation access.

P1 - 3.4 Disputes

P1 - 3.4.1 The GTP 2.0 Integrator shall exercise its best effort to resolve any issue or controversy that arises between the GTP 2.0 Integrator and the GTP Contractor relating to implementation of performance responsibilities. A best effort attempt to resolve an issue, or controversy shall include prompt and informed engagement by the appropriate level of management by the GTP 2.0 Integrator with the GTP Contractor. A best effort attempt also involves presenting good faith, proactive proposals and solutions to resolve the matter on terms acceptable to both parties. In the event, the GTP 2.0 Integrator believes it will not be able to acceptably resolve such an issue or controversy before it impacts the implementation of performance, the GTP 2.0 Integrator shall promptly raise the issue to the Contracting Officer to offer the Contracting Officer the opportunity to resolve

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the issue. In the event this issue arises, the GTP 2.0 Integrator shall include the following information to the Contracting Officer to assist in resolution: Issue; a log of attempts to resolve the matter, recommended course of action, and timeline until performance is impacted.

P1 - 3.5 GTP 2.0 Integrator Depletion of GTP CFM

P1 - 3.5.1 The GTP 2.0 Integrator shall fill GTP 2.0 DOs during all phases with GTP CFM until it exhausts the inventory of GTP CFM by NSN. Upon supply of GTP CFM, the GTP 2.0 Integrator shall invoice for the GTP CFM price under CLIN 0001, which is the tire / NSN unit price the GTP 2.0 Integrator paid the GTP Contractor for said tire / NSN (limited to GTP CLIN 0001), plus the GTP 2.0 CLIN 0002 (or CLIN 0003 or CLIN 0004 and / or other applicable GTP 2.0 CLIN pricing. The GTP 2.0 Integrator is not permitted to invoice for any other costs under CLIN 0001. Upon depletion of the GTP CFM from GTP 2.0 Integrator inventory, the GTP 2.0 Integrator shall supply the Vendor Contract tires and invoice for the applicable Vendor Contract unit prices in accordance with the revised CLIN 0001, plus GTP 2.0 CLIN 0002 (or CLIN 0003 or CLIN 0004) and / or other applicable CLIN pricing for supply chain management costs.

P1 - 3.5.2 When filling orders with the GTP CFM that has a shelf-life expiration date, the GTP 2.0 Integrator shall fill orders with the oldest tires first, unless otherwise authorized by the Contracting Officer. The Government bears no financial responsibility for GTP CFM that the GTP 2.0 Integrator is unable to deplete the inventory accrued via CFM due to shelf-life expiration.

P1 - 3.5.2.1 The GTP 2.0 Integrator shelf-life requirement at Section P2 - 25.3.1 and its subpart does not apply to the GTP CFM inventory defined in P1 - 3.1. The GTP 2.0 Integrator is permitted to fill a customer demand with CFM that has no less than six (6) months of shelf life.

P1 - 3.5.2.2 When GTP CFM, as defined in P1 - 3.1, cannot be issued due to insufficient shelf life remaining, the GTP 2.0 Integrator shall dispose of the tire(s) in accordance with the scrap disposal requirements set forth at Section P2 - 5.0 and its subparts.

P1 - 4.0 Vendor Contract Utilization

P1 - 4.1 Upon the GTP 2.0 contract award date, the Contracting Officer will provide a list of all active tire(s) / NSN(s) to the GTP 2.0 Integrator where a Vendor Contract award has been established. That list shall outline the NSN, source of supply, contact information, price, delivery / production lead time, split order requirements (as applicable) and any DO minimum or maximum figures (as applicable). The GTP 2.0 Integrator shall use this list when ordering its supply of tires. TThe GTP 2.0 Integrator will receive the Vendor Contracts and consolidate the contract information and maintain the Source of Supply (SoS) spreadsheet. The Integrator will provide the SoS spreadsheet and updates to the Contracting Officer when there are changes.

P1 - 4.2 When additional Vendor Contracts are established, the GTP 2.0 Integrator shall be immediately notified by contract modification or other written notification by the Contracting Officer. If such time occurs where the lack of a Government identified Vendor Contract will impact the GTP 2.0 Integrator's inventory levels to endanger a successful implementation, the GTP 2.0 Integrator shall notify the Contracting Officer of the potential inventory shortfall immediately.

P1 - 4.3 GTP 2.0 Integrator Sourcing Logic to Vendor Contract

P1 - 4.3.1 When split awards exist [i.e., two (2) contracts were established for the same NSN via a percentage split; 70 / 30 or 50 / 50], the Vendor Contract will state the applicable percentage split figures for the GTP 2.0 Integrator. The list of split award NSNs are identified in Attachment 2.

P1 - 4.3.1.1 When the GTP 2.0 Integrator's planning system identifies that an order must be placed between the split award Vendor Contracts to execute the GTP 2.0 requirements, the GTP 2.0 Integrator shall issue its DO to both Vendor Contract split awardees, in accordance with the applicable allocations / percentages of support identified in the Vendor Contract(s) (i.e., 70 / 30 or 50 / 50) and in accordance with the ordering procedures of the applicable Vendor Contract(s). The GTP 2.0 Integrator shall be responsible for any costs (see Section P1 - 4.3.3.1 below) incurred because of failure to meet split award sourcing requirements by the applicable Vendor Contract expiration. If allocations / percentages are not possible due to retread tire carcass limitations other individual situations approved by the Contracting Officer, the GTP 2.0 Integrator shall make best

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Form (CONTINUED)

efforts to place a series of orders over time that most closely maintains the split logic as orders are placed, and the cost for this situation may be waived by the Contracting Officer.

P1 - 4.3.1.2 Based on the sourcing logic above, if the appropriate Vendor is unable to meet the production demands of the GTP 2.0 Integrator / Government in accordance with the applicable Vendor Contract's percentage of support (i.e., 70 / 30 or 50 / 50) or the Vendor(s) nonperformance / nonconformance exists, the GTP 2.0 Integrator shall notify the Contracting Officer, in writing, that it is unable to utilize the appropriate split award Vendor Contract. At this time, the GTP 2.0 Integrator shall furnish to the Contracting Officer, any information regarding the applicable Vendor's inability to perform, if known, and the Government will work with the Vendor to develop an anticipated “get well” date to reestablish capacity and / or conformance. If not previously confirmed by the Vendor, the Government will contact the Vendor to verify / validate information provided to the GTP 2.0 Integrator.

P1 - 4.3.1.2.1 If it is confirmed that a Vendor is unable to perform, the GTP 2.0 Integrator will propose to the Contracting Officer an appropriate quantity order with the other, split award Vendor. If authorized by the Contracting Officer, the GTP 2.0 Integrator may issue an order to the other split award Vendor that is more than the contracted percentage split allocation. Additional orders to the other split award Vendor must also be authorized by the Contracting Officer, until the Contracting Officer has notified the GTP 2.0 Integrator that the nonperforming Vendor has been reestablished for receipt of orders or that the Vendor has been terminated from the GTP 2.0. Orders authorized under this paragraph to a single Vendor shall not count towards the percentage allocation requirements otherwise applicable to the two (2) Vendor Contracts. The total amount to be invoiced for each tire delivered will follow the reconciliation process as detailed at Section P2 - 16.3 and its subpart.

P1 - 4.3.1.3 Split Award Candidate NSNs: For tire(s) / NSN(s) awarded to multiple Vendor sources, the GTP 2.0 Integrator shall execute split award sourcing logic in accordance with Section C, P1 - 4.3 and its subparts. The list of NSNs that are currently identified as “split award candidates” are located in Attachment 2.

The CLIN 0001 or CLIN 0008 tire price for split award NSNs are subject to reconciliation, reference Section P2 - 16.3.

P1 - 4.3.2 Sourcing Logic Compliance Report

P1 - 4.3.2.1 The GTP 2.0 Integrator shall provide monthly, no later than the 14th day after the end of the previous month, the Sourcing Logic Compliance Report to indicate the GTP 2.0 Integrator's compliance with the Vendor Contract support percentages, as specified.

P1 - 4.3.2.1.1 At a minimum, the Sourcing Logic Compliance Report shall contain a listing, by split award NSN, of all Vendor Contract Purchase Orders (POs) issued by the GTP 2.0 Integrator in the reporting month to include the following: the date and quantity of the GTP 2.0 Integrator order, the Vendor the order was issued to, and the Vendor Contract delivered quantity, if any. Each monthly report shall identify, by Vendor, the cumulative total of tires ordered by the GTP 2.0 Integrator and delivered to the GTP 2.0 Integrator to demonstrate its to date performance in executing the Vendor Contract percentage allocation of support. Finally, the report shall outline the GTP 2.0 Integrator's ordering projections to demonstrate compliance or how it will comply with the percentage allocation requirements for the applicable split award NSN Vendor Contract(s).

P1 - 4.3.2.1.2 If no orders were issued for that NSN during the reporting month, the GTP 2.0 Integrator shall identify such on the Sourcing Logic Compliance Report.

P1 - 4.3.3 Sourcing Logic Noncompliance

P1 - 4.3.3.1 Should the GTP 2.0 Integrator violate the split award sourcing logic defined herein, payments to the GTP 2.0 Integrator may be offset on a case-by-case basis by the Government to recover any additional monies paid by the Government to the GTP 2.0 Integrator because of the violation, plus all interest charges and a 10% administrative fee to cover the Government's costs of the overpayment value. This shall be done by the expiration of each Vendor Contract.

P1 - 4.4 The Government may unilaterally modify the percentage split detailed at Section P1 - 4.3.1, at no additional cost to the Government. The Contracting Officer shall provide the GTP 2.0 Integrator with the newly established Vendor Contract percentage splits, and all future orders shall comply with the modified splits. The GTP 2.0 Integrator may not issue orders to the previously identified splits after such notification, but existing orders may remain open for fulfillment, unless otherwise

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Form (CONTINUED)

directed by the Contracting Officer.

P1 - 4.5 Vendor Scorecard

P1 - 4.5.1 The GTP 2.0 Integrator shall maintain a Scorecard for each Vendor. The GTP 2.0 Integrator shall provide, in writing and upon request of the Contracting Officer, the Vendor Scorecards in addition to the requirements detailed at Section P2 - 2.2.5. Vendors may request their respective Scorecard from the Government. Quality Scorecards shall include at a minimum the following information.

P1 - 4.5.1.1 Vendor supplier name

P1 - 4.5.1.2 Number of tires received by GTP 2.0 Integrator DO and NSN

P1 - 4.5.1.3 Number of tires delivered by GTP 2.0 Integrator DO and NSN

P1 - 4.5.1.4 Number of tires delivered on time by GTP 2.0 Integrator DO and NSN

P1 - 4.5.1.5 Percent of on time delivery per Vendor Contract for all tires

P1 - 4.5.1.6 Number of nonconforming tires

P1 - 4.5.1.7 Acceptance rate of tires per Vendor Contract

P1 - 4.5.1.8 The Contracting Officer may request additional information be added to the Vendor Scorecard at no additional cost to the Government.

P1 - 4.6 Vendor Contract Scorecard

P1 - 4.6.1 GTP 2.0 Integrator shall provide the Vendor Contract Scorecard annually to the Contracting Officer per Vendor Contract no later than two (2) days after a Vendor Contract's yearly anniversary or completion date.

P1 - 4.6.1.1 For example, if a Vendor Contract was awarded on April 1st, 2028, then two days after one-year of contract performance (March 31, 2029, would be the last day in that period of performance in this example) the GTP 2.0 Integrator shall provide the information listed under section P1-4.6.2. In this example, the Vendor Contract Scorecard would be due April 2, 2029.

P1 - 4.6.2 Vendor Contract Scorecards shall at a minimum include the following information:

P1 - 4.6.2.1 Vendor Contract number

P1 - 4.6.2.2 Vendor name

P1 - 4.6.2.3 The total number of DOs issued

P1 - 4.6.2.4 The total number of tires that were ordered

P1 - 4.6.2.5 The total number of tires that were delivered

P1 - 4.6.2.6 The total number of DOs that were due

P1 - 4.6.2.7 The total number of on-time* DOs. *For this on-time calculation we would like you to add a 7 day "grace period". If a DO is 7 days or less late, still consider it on-time.

P1 - 4.6.2.8 The total number of late DOs.

P1 - 4.6.2.9 The on-time delivery percentage

P1 - 4.6.2.10 The total dollar spend on the contract to date

P1 - 4.6.2.11 The total dollar spend on the contract during the period of performance

P1 - 4.6.2.12 Were there any "Kind", "Count", or "Condition" nonconformances in accordance with P2 - 3.3.3.1.2 or P2 -

CONTINUED ON NEXT PAGE

Form (CONTINUED)

3.3.3.1.3 during this during the period of performance?

P1 - 4.6.2.13 If the answer to P1 - 4.6.2.12 is yes, then the GTP 2.0 Integrator shall provide details of each Vendor Contract nonconformance for the current period of performance as listed in P2 - 3.3.3.1.2 or P2 - 3.3.3.1.3.

P1 - 5.0 Completion of Implementation Period

P1 - 5.1 Upon completion of the implementation period, the following events will occur:

P1 - 5.1.1 The GTP 2.0 Integrator shall comply with Section C, Phase II of the PWS for all required tires / NSNs included in the GTP 2.0.

P1 - 5.1.2 Unless otherwise determined by the Contracting Officer under Section P2 - 1.2, the Government will route all GTP 2.0 tire requisitions to the GTP 2.0 Integrator.

P2 - PWS FOR PHASE II, FULL GTP 2.0 IMPLEMENTATION

P2 - 1.0 Introduction

P2 - 1.1 Except as noted under Section P1, Phase II Activities shall begin four-months (4-months) after the GTP 2.0 contract award date, unless the Contracting Officer determines it to be in the best interest of the Government to delay the start of Phase II activities for all or a particular tire / NSN.

P2 - 1.2 The GTP 2.0 Integrator shall utilize the designated Government established Vendor Contracts (see Section P2 - 3.0 and its subparts) identified by the Contracting Officer as the exclusive sources of tires except as specifically noted hereafter in Section P2 - 3.9 and its subparts.

P2 - 1.2.1 While the Government makes no guarantee as to the number of Vendor Contracts resulting from these requirements, it is anticipated that approximately 25 Vendor Contracts may result, with a number of those Vendor Contracts being awarded to the same Vendor(s). In utilizing these Vendor Contracts, the GTP 2.0 Integrator shall supply tires that comply with the following technical requirements: Cooperative Tire Qualification Program (CTQP) Cooperative Approved Tire List (CATL) 1922, CTQP CATL 1923, Air Force Qualified Product List (QPL) MIL-DTL-5041, Revision L (September 2019) for new tires and QPL MIL-DTL-7726, Revision L (September 2019) for reparable tires, Air Force QPL for specification MIL-DTL-5041, Aircraft Commercial and Government Entity (CAGE) Code and Part Number tires per the Purchase Order Text (POT), Society of Automotive Engineers (SAE) performance standard J-2014 “Pneumatic Tires for Military Tactical Wheeled Vehicles” (SAE-J-2014), (July 2022) identified by the approved CAGE Code and Part Numbers, Ground CAGE Code and Part Number tires per the POT, and ZZ-T specification tires. Technical requirements for tires are subject to change.

P2 - 1.2.2 Complete technical requirements for the tire requirements are outlined in the Vendor Contracts issued in support of the GTP 2.0 contract.

P2 - 2.0 Phase II Activities

P2 - 2.1 The GTP 2.0 Integrator shall provide all support and management effort necessary to perform in accordance with all Phase II requirements.

P2 - 2.2 Performance Review Boards (PRBs)

P2 - 2.2.1 PRBs will be held at 150 days and 210 days after the GTP 2.0 contract award date, and at least semiannually thereafter as scheduled by the Contracting Officer, to monitor and assess GTP 2.0 Integrator performance, to coordinate responses and to foster solutions to problems encountered during and after GTP 2.0 implementation.

P2 - 2.2.2 The GTP 2.0 Integrator shall provide status of schedules, program goals, and any process improvement initiatives. The reviews shall provide the Government with the GTP 2.0 Integrator's progress and performance on all tasks defined in the GTP 2.0 PWS.

P2 - 2.2.3 The GTP 2.0 Integrator shall host PRBs at locations to encourage maximum participation from the Government. The Government is willing to alternate hosting PRBs at the Government's chosen facility.

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Form (CONTINUED)

P2 - 2.2.4 The PRB will be co-chaired by the DLA WS Contracting Officer and an authorized representative of the GTP 2.0 Integrator. The GTP 2.0 Integrator shall develop an agenda and distribute the agenda to perspective attendees no later than 15 days before the PRB. Meeting slides and resulting minutes for these reviews shall be submitted in the GTP 2.0 Integrator's format and made available in electronic format by email or access through the GTP 2.0 Integrator's secure website to the attendees only. Slides and minutes shall not be marked proprietary, as they are developed exclusively as a result of DoW funded contract. The Contractor shall mark and distribute the slides and meeting minutes in accordance with DFARS 252.204-7012.

P2 - 2.2.5 During the PRB, the GTP 2.0 Integrator shall provide status on the following GTP 2.0 elements:

P2 - 2.2.5.1 Program Overview - to include overall schedule status, and for the preceding six and twelve-month period (when applicable), provide the number of tires delivered, number of delivery orders issued, and total amount spent.

P2 - 2.2.5.2 GTP 2.0 Implementation Issues, Delays, Concerns

P2 - 2.2.5.3 On Time Delivery Issues

P2 - 2.2.5.4 Quality / Safety Issues

P2 - 2.2.5.5 Configuration Management Issues

P2 - 2.2.5.6 Quality Assurance Issues

P2 - 2.2.5.7 Customer Support Service

P2 - 2.2.5.8 Repair Issues

P2 - 2.2.5.9 DO Extension Request and Reason

P2 - 2.2.5.10 Forecast Accuracy

P2 - 2.2.5.11 Vendor Contract Issues, to include Vendor Scorecards

P2 - 2.2.5.12 Known Production Issues (Retread / New)

P2 - 2.2.5.13 Return (Casings / Disposal) Issues

P2 - 2.2.5.14 Transportation Issues to include Vendor Contract and DLA Distribution Issues (OCONUS support issues)

P2 - 2.2.5.15 Depot Issues

P2 - 2.2.5.16 FMS Issues (if applicable)

P2 - 2.2.5.17 Demand Data by NSN and Location

P2 - 2.2.5.18 Stock Out or Potential Stock Out

P2 - 2.2.5.19 12 Month Forecast

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Form (CONTINUED)

P2 - 2.2.5.20 Material Acceptance Rate (MAR)
P2 - 2.2.5.21 Acceptance Rate of Vendor Contract Material

P2 - 2.2.5.22 Retread Program

P2 - 2.2.5.23 Life Cycle Cost (LCC) Program Status

P2 - 2.2.5.24 Other Issues, as approved by the Contracting Officer

P2 - 2.2.5.25 Previous PRB Open Action Items / New Action Item

P2 - 2.2.5.26 Reconciliation

P2 - 2.2.5.27 Audit Readiness
P2 - 2.2.5.28 Warehousing Issues

P2 - 2.2.6 The GTP 2.0 Integrator will submit PRB minutes for approval by the Contracting Officer within 14 days after each PRB. While not anticipated, other program reviews may be conducted as mutually agreed upon between the Government and the GTP 2.0 Integrator.

P2 - 2.2.7 Executive PRBs, to include the DLA WS Commander, Deputy and / or Acquisition Executive, will be conducted as determined appropriate by the Contracting Officer. The GTP 2.0 Integrator cannot request additional Executive PRBs.

P2 - 2.3 The GTP 2.0 Integrator shall provide the complete tire supply chain solution for DLA WS's managed tires to support demand, retread and scrap / disposal requirements in accordance with the provisions of the GTP 2.0 PWS, as well as applicable terms in the GTP 2.0 RFP and resulting contract. The GTP 2.0 performance strategy seeks a low risk yet streamlined operation that has the capability to provide an integrated product life cycle approach to lowering the cost of ownership over time. All tires shall be shipped from the GTP 2.0 Integrator's warehouse via the GTP 2.0 Integrator's shipping system (except as specifically provided otherwise hereafter).

P2 - 2.4 Notwithstanding any term in the GTP 2.0 contract to the contrary, should the DLA depot system receive unauthorized customer returns or an inventory gain of RFI tires, DLA is permitted to fill requisitions even after the GTP 2.0 contract is in place, without liability to the GTP 2.0 Integrator. This would result in temporarily decreased demand to the GTP 2.0 Integrator. The Government will provide a report of all unauthorized returns of record for the GTP 2.0 Integrator to adjust forecasting / demand planning records, as necessary.

P2 - 3.0 Utilizing Government Vendor Contracts

P2 - 3.1 As identified in Section C.2.0 and its subparts the Government will negotiate and award Vendor Contracts for all tires to be supplied under this requirement to include the split award NSNs referenced in Section P1 - 4.3.1.3. The GTP 2.0 Integrator is authorized and required to use these Vendor Contracts in accordance with the terms of a written authorization, reference Section P2 - 3.2 below, that will be issued by the Contracting Officer in accordance with Defense Federal Acquisition Regulation Supplement (DFARS) Procurement Guidance and Information (PGI) 251.102 and pursuant to FAR 8.105 “Contractor Use of Government Supply Sources”. In accordance with FAR 8.105 “Contractor Use of Government Supply Sources”, DLA Contracting Officers are permitted to authorize DLA contractors to use Government supply sources for DLA managed National Stock Numbered or Part Numbered items in the performance of other than cost-reimbursement contracts. This Class Deviation expires 31 March 2030, however, contracts written to incorporate the deviation prior to its expiration incorporate the deviation for the entire period of performance of the contract, to include option periods. Therefore, this deviation applies to GTP 2.0 over the period of performance of the contract.

P2 - 3.2 At the time of GTP 2.0 contract award, the Contracting Officer shall provide written authorization in accordance with DFARS PGI 251.102 (Attachment 9 is provided as a sample). This shall serve as the written authorization to the GTP 2.0

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Form (CONTINUED)

Integrator to purchase its inventory from the Vendor Contracts established by the Government to execute GTP 2.0. The written authorization will include the Vendor Contract Number, NSN, Base Contract End Date and Expiration Date with Option (inclusive of option period).

P2 - 3.2.1 In performing GTP 2.0 support, the GTP 2.0 Integrator shall only purchase tires through the Vendor Contracts identified by the Government. In addition, the Contracting Officer shall provide a copy of each Vendor Contract that is awarded to the GTP 2.0 Integrator.

P2 - 3.3 GTP 2.0 Execution: GTP 2.0 Integrator and the Vendor Relationship

P2 - 3.3.1 Upon the GTP 2.0 Integrator award date, the GTP 2.0 Integrator is required to utilize the Vendor Contracts established by the Government for the GTP 2.0 Integrator's inventory / replenishment of new and retread tires. The Vendor Contracts are and will be Firm Fixed Price. The GTP 2.0 Integrator and the Vendor(s) are expected and required to meet all terms and conditions as outlined in their applicable Vendor Contract(s). The Vendor shall fulfill and deliver the GTP 2.0 Integrator orders at the price and delivery terms in the Vendor Contract. The GTP 2.0 Integrator is partnering with the Government and industry counterparts to support DLA's military customers. The GTP 2.0 Integrator shall put forth its best effort and always deal in good faith with all Vendors in executing GTP 2.0 support.

P2 - 3.3.2 Ordering, Pricing and Delivery

P2 - 3.3.2.1 The GTP 2.0 Integrator is authorized and required to place orders under the Vendor Contracts as the exclusive sources of tires for use by the GTP 2.0 Integrator in the period of performance of the resulting GTP 2.0 contract, except as specifically authorized in Section P2 - 3.9 and its subparts. Orders shall be placed by the GTP 2.0 Integrator directly to the Government designated Vendor Contract for each NSN. The Vendor shall fulfill and deliver the GTP 2.0 Integrator orders at the price and delivery terms in the Vendor Contract. The Vendor shall notify the GTP 2.0 Integrator, in writing, the date the GTP 2.0 Integrator should expect delivery at least 10 calendar days prior to the delivery date; reference DLA WS Procurement Note 211-9060 Time of Delivery - Award (June 2015) that will be included in both the GTP 2.0 contract and the Vendor Contract(s). Subject to the above, Vendors may make tire deliveries early if desired.

P2 - 3.3.3 Inspection and Acceptance

P2 - 3.3.3.1 The GTP 2.0 Integrator shall conduct a Kind, Count and Condition (KCC) inspection prior to acceptance of Vendor supplied material. Inspection and Acceptance (or action as detailed at Section P2 - 3.3.3.1.1 and its subparts) shall not exceed five (5) business days after Vendor delivery to the GTP 2.0 Integrator's location. Compatible terms are contained in the Vendor Contract solicitations identified herein.

P2 - 3.3.3.1.1 KCC inspection shall constitute a superficial evaluation of the quality of every tire / NSN and consist of the following:

P2 - 3.3.3.1.1.1 Kind: Visual identification of at least one (1) tire / NSN per the item description, verification of the part number, contract number and NSN; all as specified in the Vendor Contract.

P2 - 3.3.3.1.1.2 Count: Visual confirmation of the contents of the total number of packages per line item so as to conclude that the total number of packages received appears to amount to the total quantity specified in the order.

P2 - 3.3.3.1.1.3 Condition: Visual verification of physical appearance of the exterior of the tire / NSN to determine if the tire / NSN visually meets the Vendor Contract requirement to include shelf life remaining (if applicable).

P2 - 3.3.3.1.2 Should the GTP 2.0 Integrator's system determine a “Kind” and / or “Count” nonconformance upon inspection of a tire(s), the GTP 2.0 Integrator shall notify, in writing, to the Contracting Officer and Vendor with sufficient information and documentation to support the nonconformance along with a requested disposition. The GTP 2.0 Integrator shall maintain a running list of all nonconformances which will be available to the Contracting Officer monthly as identified in P2 - 15.1 Table E. The GTP 2.0 Integrator shall exercise its best effort to resolve any issue or controversy that arises between the GTP 2.0 Integrator and the Vendor relating to “Kind” and / or “Count” nonconformance issues. A best effort attempt to resolve an issue, or controversy shall include prompt and informed engagement by the appropriate level of management by the GTP 2.0 Integrator with the Vendor. A best effort attempt also involves presenting good faith, proactive proposals and solutions to resolve the matter on terms acceptable to both parties. In the event, the GTP 2.0 Integrator believes it will not be able to

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Form (CONTINUED)

acceptably resolve such an issue or controversy before it impacts the Government, the GTP 2.0 Integrator shall promptly raise the issue to the Contracting Officer so as to offer the Contracting Officer the opportunity to resolve the issue or controversy by taking appropriate action, as the Contracting Officer sees fit, under the terms of either the GTP 2.0 contract or the Vendor Contract(s). The Contracting Officer will initiate the resolution with the Vendor within 10 business days of receiving notification from the GTP 2.0 Integrator. Upon concluding the Government's review of the “Kind” and / or “Count” nonconformance, the Contracting Officer will provide disposition instructions regarding the suspect tire(s).

P2 - 3.3.3.1.3 Should the GTP 2.0 Integrator's system determine a “Condition” nonconformance upon inspection of a tire(s), the GTP 2.0 Integrator shall notify, in writing, to the Contracting Officer and Vendor with sufficient documentation / information to support the nonconformance along with a requested disposition. The GTP 2.0 Integrator shall maintain a running list of all nonconformances which will be available to the Contracting Officer monthly as identified in P2 - 15.1 Table E. The GTP 2.0 Integrator shall exercise its best effort to resolve any issue or controversy that arises between the GTP 2.0 Integrator and the Vendor relating to a “Condition” nonconformance issue. A best effort attempt to resolve an issue, or controversy shall include prompt and informed engagement by the appropriate level of management by the GTP 2.0 Integrator with the Vendor. A best effort attempt also involves presenting good faith, proactive proposals and solutions to resolve the matter on terms acceptable to both parties. In the event, the GTP 2.0 Integrator believes it will not be able to acceptably resolve such an issue or controversy before it impacts the Government, the GTP 2.0 Integrator shall promptly raise the issue to the Contracting Officer so as to offer the Contracting Officer the opportunity to resolve the issue or controversy by taking appropriate action, as the Contracting Officer sees fit, under the terms of either the GTP 2.0 contract or the Vendor Contract(s). The Contracting Officer will initiate the resolution with the Vendor within 10 business days of receiving notification from the GTP 2.0 Integrator. Upon concluding the Government's review of the “Condition” nonconformance, the Contracting Officer will provide disposition instructions regarding the suspect tire(s).

P2 - 3.3.3.1.4 Upon material acceptance of a tire(s), should the GTP 2.0 Integrator's system determine the inventory is nonconforming (Sections P2 - 3.3.3.1.2 and P2 - 3.3.3.1.3), the GTP 2.0 Integrator shall be responsible for taking immediate action to halt tire shipments. The GTP 2.0 Integrator shall conduct an investigation to determine if a KCC inspection was performed or not performed and if an incorrect tire was used to fill an order. The GTP 2.0 Integrator shall be responsible for all costs to repurchase the correct tire, shipment to the customer, and disposal of the incorrect tire.

P2 - 3.3.3.1.5 The GTP 2.0 Integrator is not permitted to reject a conforming tire(s) from the Vendor provided the supplied tires meet the Vendor Contract requirements (Section P2 - 3.3.3.1.1).

P2 - 3.3.3.2 Material acceptance of a tire(s) under this provision does not constitute acceptance on behalf of the Government and is only the GTP 2.0 Integrator's determination that the tires are suitable for use in its performance under the resulting GTP 2.0 contract and in accordance with applicable terms and conditions of the GTP 2.0 contract.

P2 - 3.3.4 Payment

P2 - 3.3.4.1 The GTP 2.0 Integrator shall make payment(s) to the Vendor(s) under NET 30 terms from the date it receives a proper invoice, pursuant to FAR 8.105 subpart “Contractor Use of Government Supply Sources” or in accordance with the payment terms established in the Vendor Contract(s).

P2 - 3.3.4.1.1 For purposes of Vendor payment(s) from the GTP 2.0 Integrator, a proper invoice shall include, at a minimum, the following elements:

P2 - 3.3.4.1.1.1 Sender and recipient information (i.e., company name, address, and phone)

P2 - 3.3.4.1.1.2 Government Vendor Contract number

P2 - 3.3.4.1.1.3 GTP 2.0 Integrator invoice number (if applicable)

P2 - 3.3.4.1.1.4 Ship date

P2 - 3.3.4.1.1.5 Delivery date

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Form (CONTINUED)

P2 - 3.3.4.1.1.6 Receipt date

P2 - 3.3.4.1.1.7 Invoice date

P2 - 3.3.4.1.1.8 Quantity

P2 - 3.3.4.1.1.9 Description of contents (to include NSN and nomenclature)

P2 - 3.3.4.1.1.10 Carrier / tracking number

P2 - 3.3.4.1.1.11 Invoice value (in U.S. dollars)

P2 - 3.3.4.1.1.12 Upon Government request, the GTP 2.0 Integrator shall have readily available proof of payment.

P2 - 3.3.4.1.2 If authorized by the Contracting Officer, in writing to both parties, pursuant to a final resolution under Section P2 - 3.3.7, the GTP 2.0 Integrator may offset payments to recover costs associated with any material return as detailed at Section P2 - 3.3.5.

P2 - 3.3.4.1.3 If the GTP 2.0 Integrator fails to pay the Vendor for conforming tires received, the Contracting Officer may authorize payment by the Government directly to the Vendor, and offset invoices submitted by the GTP 2.0 Integrator by the amount paid to the Vendor, plus all interest charges and a 10% administrative fee to cover the Government's costs. Failure to pay does not apply to tires in which the Vendor fails to deliver, tires that do not pass GTP 2.0 Integrator Inspection / Acceptance, and for tires in which the Vendor does not deliver a proper invoice to the GTP 2.0 Integrator.

P2 - 3.3.5 Warranty Returns and Customer Returns

P2 - 3.3.5.1 Returns will be reviewed and authorized only by the Contracting Officer or designee on a case-by-case basis.

P2 - 3.3.5.1.1 Notwithstanding any previous Inspection and / or Acceptance by the Government, the GTP 2.0 Integrator warrants that all tires covered by the GTP 2.0 contract shall be free from defects and fully usable in accordance with their operational application and the specifications set forth at Section P2 - 1.2 and its subparts and consistent with the requirements detailed at Sections P2 - 3.3.3 and P2 -3.3.5 and their subparts. This is in addition to, and not in abrogation of, any commercial or other warranty on the tire(s) / NSN(s).

P2 - 3.3.5.1.2 Any tire that is defective and not fully suitable for use (i.e., a nonconforming tire) when the end user [end user being defined as the ordering DoD Activity Address Code (DoDAAC)] is ready to use the tire, without time limitation from the Government's initial receipt of the tire, may be returned to the GTP 2.0 Integrator. Within five (5) days (unless otherwise authorized by the Contracting Officer), the GTP 2.0 Integrator shall replace the defective tire(s), at no additional cost to the Government.

P2 - 3.3.5.1.3 In the event of a customer return due to defect or damage, the Government will investigate to assess the failure and determine the cause for the defect and initiate the corrective action and return, if applicable.

P2 - 3.3.5.1.4 Payment for Returned Tires

P2 - 3.3.5.1.4.1 The GTP 2.0 Integrator shall bear the initial costs associated with the return and replacement of nonconforming tires. In the event the Government's investigation determines the Vendor is responsible for the defect or failure, the Vendor shall reimburse the GTP 2.0 Integrator the costs associated with the tire(s) returned. The Vendor shall be liable for manufacturer defects or damages occurring before delivery to the GTP 2.0 Integrator. In the event the Government's investigation determines the GTP 2.0 Integrator is responsible for the defect or failure, the GTP 2.0 Integrator shall reimburse the Government the costs associated with the tire(s) returned. The GTP 2.0 Integrator shall be liable for damage to the tires occurring after receipt due to the GTP 2.0 Integrator's handling, storage, and / or shipment of the tires to the Government end user.

P2 - 3.3.6 Reliability Management and Communication

P2 - 3.3.6.1 The term “Reliability Management” refers collectively to Reliability Management, Configuration Management,

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Obsolescence Management and Quality System Management (see Sections P2 - 19.0, P2 - 20.0, P2 - 21.0 and P2 - 22.0, and their subparts respectively). When either party, the GTP 2.0 Integrator or Vendor, provides the Government with information regarding Reliability Management of a specific NSN(s) in accordance with the terms of their contract, that same information shall be provided to their GTP 2.0 counterpart at the same time, in writing; i.e., the GTP 2.0 Integrator shall provide the information to the Vendor(s) responsible for the specific NSN(s) and the Vendor(s) shall provide the information to the GTP 2.0 Integrator.

P2 - 3.3.7 Disputes

P2 - 3.3.7.1 The GTP 2.0 Integrator shall exercise its best effort to resolve any issue or controversy that arises between the GTP 2.0 Integrator and a Vendor relating to the supply of tires to customers. A best effort attempt to resolve an issue, or controversy shall include prompt and informed engagement by the appropriate level of management by the GTP 2.0 Integrator with the Vendor(s). A best effort attempt also involves presenting good faith, proactive proposals and solutions to resolve the matter on terms acceptable to both parties. In the event, the GTP 2.0 Integrator believes it will not be able to acceptably resolve such an issue or controversy before it impacts its performance under the GTP 2.0 contract, the GTP 2.0 Integrator shall promptly raise the issue to the Contracting Officer so as to offer the Contracting Officer, the opportunity to resolve the issue or controversy by taking appropriate action, as the Contracting Officer sees fit, under the terms of either the GTP 2.0 contract, Vendor Contract(s), or both.

P2 - 3.3.8 Any additional commercial contract requirements established between the GTP 2.0 Integrator and Vendor(s) shall be the responsibility of the two (2) parties, but in order to maintain the integrity of the GTP 2.0, all agreements shall be provided to the Contracting Officer, in writing, to ensure said agreements are not in conflict with the terms of the applicable GTP 2.0 contract. Any failure of the Government to comment on a conflicting term in such a contract shall not excuse the GTP 2.0 Integrator from full compliance with the terms of the GTP 2.0 contract.

P2 - 3.4 Data Requirements to the Vendor(s)

P2 - 3.4.1 The GTP 2.0 Integrator shall provide the Contracting Officer and Vendor(s) monthly reports specific to each awarded Vendor Contract(s) applicable tire(s) / NSN(s) as shown Table A below:

Table A

#

Report Name

Report Definition Report Frequency (submitted to the Vendor and Contracting Officer) GTP 2.0 RFP Section C Reference Location

21 Demand Data Demand Data, by NSN, location and requisition number, to include ordered quantity Monthly - no later than 14 days from the reporting period's end P2 - 2.2.5

10.1 & 10.2 Acceptance Rate of Vendor Material Identifies the acceptance rate for the Vendor material supplied to the GTP 2.0 Integrator, by NSN that identifies the date of notification of deficiency, deficiency / product quality issue, remedy, and date of re supply, if applicable

Monthly - no later than 14 days from the reporting period's end

P1 - 4.5.1

22 Stock Out or

Potential Stock Out Identifies, by NSN, shortage or anticipated shortage, GTP 2.0 Integrator planned inventory level and action taken to remedy or avoid stock out (i.e., expedite, etc.) Monthly - no later than 14 days from the reporting period's end

P2 - 2.2.5

12.2

12 Month Forecast Projects monthly tire forecast demands for all NSNs listed in Attachment 4 to the RFP over a rolling 12-month period which identifies (a snapshot of) stock on hand, due ins* and anticipated demands (monthly or annually). The report shall also contain actual orders for the past 12-month period (rolling).

Monthly - no later than 14 days from the reporting period's end

P2 - 2.2.5

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Form (CONTINUED)

***Due-ins refer to tires on order by the GTP 2.0 Integrator that have not yet been received by the GTP 2.0 Integrator.**

P2 - 3.4.2 During the term of the resulting Vendor Contract(s), new and additional reports may be required by the Contracting Officer. Additional reports shall be provided, at no additional cost to the Government provide that: the data points are reasonably necessitated by reports already required in Section P2 - 3.4 and its subparts and P2 - 15.0, the data is already collected / recorded in the period of performance of the GTP 2.0 contract by the GTP 2.0 Integrator, or the data inputs are provided by the Government to the GTP 2.0 Integrator.

P2 - 3.4.3 Report Format

P2 - 3.4.3.1 All reports shall contain the minimum elements detailed at Section P2 - 3.4.1 Table A and shall be submitted in a Microsoft Excel format, and Microsoft PowerPoint or Word, unless otherwise directed by the Contracting Officer. Any change to the reporting format shall be at no additional cost to the Government.

P2 - 3.4.4 Additional data may be provided by the GTP 2.0 Integrator to the Vendor(s), as agreed upon by the parties and as approved by the Contracting Officer.

P2 - 3.5 Price Changes to Vendor Contract(s)

P2 - 3.5.1 The Contracting Officer shall provide the CLIN 0001 and CLIN 0008 tire price(s) to the GTP 2.0 Integrator for its ordering of tires from the Vendor Contract(s). The Contracting Officer will submit all CLIN 0001 and CLIN 0008 tire price revisions, in writing, to the GTP 2.0 Integrator. Any supply orders to the Vendor(s) after any CLIN 0001 or CLIN 0008 tire price revisions have been provided shall use the unit price established in the revised CLIN 0001 or CLIN 0008 tire price(s).

P2 - 3.6 Vendor(s) Performance Tracking

P2 - 3.6.1 The GTP 2.0 Integrator shall provide the Government with the Vendor(s) performance data at each PRB as established in this requirement and as deemed appropriate by the Contracting Officer. The performance data shall include delivery performance consistent with the Supplier Performance Risk System (SPRS) format collected by the DLA. The Contracting Officer may request additional Vendor(s) performance data outside of the data identified herein, at no additional cost to the Government.

P2 - 3.7 Vendor(s) Nonperformance

P2 - 3.7.1 In the event that the GTP 2.0 Integrator is unable to meet delivery based on Vendor(s) nonperformance, the GTP 2.0 Integrator shall provide evidence to the Contracting Officer that its demand planning tool or other contractual requirements identified a tire supply requirement by the applicable Vendor, but that the Vendor was either unable to meet the delivery requirements as established in its Vendor Contract or that the tire(s) / NSN(s) provided was nonconforming and therefore, unusable for supply by the GTP 2.0 Integrator. The determination of Vendor nonperformance will be at the discretion of the Contracting Officer. The GTP 2.0 Integrator may be granted performance relief on orders for the applicable tire(s) / NSN(s) until the Government and Vendor have established a get-well date and corrective action plan to limit future occurrences of such an event and communicated the resulting information (i.e., get-well date) to the GTP 2.0 Integrator.

P2 - 3.7.1.1 Vendor(s) Nonperformance Split Award NSN(s)

P2 - 3.7.1.1.1 When a split award exists and the GTP 2.0 Integrator has previously met the requirements as noted at Section P2 - 3.7.1, the GTP Integrator shall, with authorization from the Contracting Officer, immediately attempt to source its supply requirement to the other Vendor(s) contracted to support the particular tire(s) / NSN(s) in accordance with the requirements established at Section P1 - 4.3.1.2 and its subpart. If the other Vendor(s) can meet the GTP 2.0 Integrator's necessary supply requirements, no performance relief (e.g., extension of delivery schedule) under the resulting contract shall be provided. If the other Vendor(s) cannot meet the supply schedule requirements performance, relief on orders for the applicable tire(s) / NSN(s) may be granted until the Government and Vendor(s) (both split award Vendors) have established a get well date and correction action plan to limit future occurrences of such an event and communicated the result information [i.e., get well date by Vendor(s)] to the GTP 2.0 Integrator, and the Vendor(s) is able to comply with delivery requirements in accordance with that plan.

P2 - 3.8 Spot Buy Logistical Support

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Form (CONTINUED)

P2 - 3.8.1 The GTP 2.0 Integrator shall support the Government stock buy requirements for a tire/NSN that is not currently supported by a Vendor Contract (for example, during the NSN add process, identification of a new and/or urgent tire requirement, or loss of Vendor Contract coverage) under the GTP 2.0.

P2 - 3.8.2 Consistent with the requirements outlined at P2 - 17.0, upon notification of a spot buy in-process, the GTP 2.0 Integrator shall confirm CLIN 0002, 0003 or 0004 pricing as established at Section B or submit pricing otherwise within fourteen (14) days.

P2 - 3.8.3 The Government will solicit (in accordance with the GTP 2.0 requirements), negotiate and determine the spot buy tire provider awardee. The Government will pass this awardee information on to the GTP 2.0 Integrator to execute the spot buy within fourteen (14) days.

P2 - 3.8.4 The GTP 2.0 Integrator will receipt the material into inventory and perform the applicable supply chain management support as outlined in the PWS of this solicitation and resulting contract.

P2 - 3.8.4.1 The GTP 2.0 Integrator will pay the spot buy tire provider under NET 30 terms, consistent with the requirements of P2 - 3.3.4.

P2 - 3.8.5 Upon fulfillment of a customer order, the GTP 2.0 Integrator shall invoice the Government for the tire provider price under CLIN 0001 and applicable CLIN 0002, 0003 or 0004 pricing as established or negotiated and incorporated by modification for the integrator fee.

P2 - 3.9 Buy Around Authority

P2 - 3.9.1 Notwithstanding any other provision in the GTP 2.0 RFP or applicable contract provision, DLA reserves the right, without liability to the GTP 2.0 Integrator, to purchase tires outside the GTP 2.0 contract if a Vendor Contract is not or cannot be established.

P2 - 3.9.2 Notwithstanding any other provision in the GTP 2.0 RFP or applicable contract provision, DLA further reserves the right to execute a single or series of Government Vendor Contract Direct Buys for customer support in the event the GTP 2.0 Integrator is deemed incapable of meeting customer demands by the Contracting Officer.

P2 - 4.0 Retread Program

P2 - 4.1 Tire(s) / NSN(s) solicited under the GTP 2.0 RFP for the retread program are subject to the requirements set forth at Section P2 - 4.0 and shall be priced via CLIN 0006 or CLIN 0007. The GTP 2.0 Integrator has the authority to make the determination that an NRFI tire is Beyond Physical Repair (BPR) or Beyond Economical Repair (BER) or determine the reparable tires are suitable for retread. The GTP 2.0 Integrator shall make the decision in accordance with the latest revisions of MIL-DTL-7726 to repair or replace reparable tires, through the applicable Vendor Contract(s). Any tire carcass deemed BPR or BER and therefore, determined scrap, shall be disposed of in accordance with all Federal, State and / or local regulations detailed at Section P2 - 5.0 and its subparts.

P2 - 4.2 The decision on whether to retread a reparable tire shall not affect the GTP 2.0 Integrator's obligation to meet the delivery terms outlined in the GTP 2.0 contract. The GTP 2.0 Integrator shall track and document the retread scrap rate over the period of performance of the GTP 2.0 contract. The RFI Retread inventory shall be categorized by NSN and Retread Levels (R-levels). There are multiple R-levels that describe the number of times a tire carcass has been retreaded. For example, R-1 represents the tire carcass has been retreaded once, R-2 represents the tire carcass has been retreaded twice, etc. For each retread, the GTP 2.0 Integrator shall compute the percentage of tires retreaded, the percentage of tires scrapped and the reasons

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Form (CONTINUED)

for rejection of the NRFI reparable tire for the Retread Management report, detailed at Section P2 - 15.1 and its subparts.

P2 - 4.2.1 The GTP 2.0 Integrator shall provide this report quarterly to the Contracting Officer no later than fourteen (14) days from the reporting period's end.

P2 - 4.2.1.1 When a retread split award exists, the GTP 2.0 Integrator shall track and document the amount of NRFI tire carcasses sent to each Vendor by R-Level in the Retread Management report, detailed at Section P2 - 15.1 and its subparts. This report may be consolidated by the amount of NRFI tire carcasses issued to each Vendor in accordance with the Vendor Contract Sourcing Logic capabilities.

P2 - 4.3 The GTP 2.0 Integrator shall be responsible for picking up incoming reparable tires carcasses at the designated CONUS sites and shipping these tires to its designated facility. Section P2 - 5.1 identifies the locations involving pickup of both reparable and scrap tires and the GTP 2.0 Integrator's responsibility for separating reparable and scrap tire carcasses. The GTP 2.0 Integrator shall pick up tire carcasses within a reasonable timeframe generally estimated to be 60 minutes to complete the pickup once at the designated site (CLIN 0006). Reparable tires carcasses located OCONUS will be consolidated by the Government and picked up by the GTP 2.0 Integrator to return to the location as directed in P2 - 4.3.1 (CLIN 0007).

P2 - 4.3.1 The GTP 2.0 Integrator will be required to establish DoDAACs for any GTP 2.0 Integrator location it establishes as a receipt point for an OCONUS tire carcass return.

P2 - 4.3.2 The GTP 2.0 Integrator shall provide at a minimum a single 24 hour / 7 days a week toll free number customers may call and a website link to request a CONUS pickup.

P2 - 4.3.3 The GTP 2.0 Integrator shall respond to requested pickups within the Pickup Response Time (PRT), reference Section P2 - 6.0 and its subparts. The GTP 2.0 Integrator will allow the Contracting Officer to change the locations of the pickup points listed under Attachment 10 at no additional cost to the Government.

P2 - 4.3.4 The tire carcasses shall remain Government property until such time the GTP 2.0 Integrator has picked them up for retread program execution.

P2 - 4.3.5 The GTP 2.0 Integrator shall provide a quarterly report identifying the total number of pickups and total number of reparable tire(s) / NSN(s), by customer, received by the GTP 2.0 Integrator no later than fourteen (14) days from the reporting period's end.

P2 - 4.3.6 The GTP 2.0 Integrator shall maintain an aggressive CONUS tire return program that ensures the return of all retreadable tires and prevents / limits the number of returns into the DLA depot system. In the event of returns to the DLA depots, the GTP 2.0 Integrator shall be responsible for picking up tires, at no additional cost to the Government, when notified by the depot. The GTP 2.0 Integrator shall notify the Contracting Officer if it believes a military activity or activities are withholding reparable tire carcasses.

P2 - 4.4 Upon retread via the applicable Vendor Contract (in accordance with Section P2 - 4.5 and its subparts), reparable tire carcass returns shall be used in supplying approved retread tires under the terms of the GTP 2.0 contract.

P2 - 4.5 Retread Sourcing Procedures

P2 - 4.5.1 When the GTP 2.0 Integrator has a forecasted quantity requirement for retreads (based on its demand planning against the retread Vendor lead time), the GTP 2.0 Integrator shall reference the Vendor(s) data for the applicable tire(s) / NSN(s).

P2 - 4.5.2 The GTP 2.0 Integrator must utilize the Vendor, or when split awards exist, Vendors, for the applicable NSN's retreading requirements, unless otherwise notified by the Contracting Officer. The GTP 2.0 Integrator's retread sourcing shall be processed in accordance with the Vendor Contract Sourcing Logic as detailed at Section P1 - 4.3 and its subparts. Furthermore, the GTP 2.0 Integrator shall maintain the supply of retreaded tires. Vendor Contract Sourcing Logic may require the GTP 2.0 Integrator to sort NRFI tire carcasses by R-levels and NSN to meet the sourcing requirements specified in the Vendor Contract. For example, when a retread NSN is split between Vendor 1 (70%) and Vendor 2 (30%), but Vendor 2 can only perform retreading for tire carcasses R-1 and below, the GTP 2.0 Integrator will be required to send Vendor 2 30% of all

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Form (CONTINUED)

R-1 and below tire carcasses; Vendor 1 would receive 70% of all R-1 and below and all R-2 or higher NRFI tire carcasses. In this example, the GTP 2.0 Integrator would be required to maintain the split requirements based upon the Vendors contractual retread capabilities. When a retread split award exists, the GTP 2.0 Integrator shall track and document the amount of retread tire carcasses sent to each Vendor by R-Level in the Retread Management report, detailed at Section P2 - 15.1 and its subparts. If allocations / percentages for R-Level tires are not possible due to retread tire carcass limitations, the GTP 2.0 Integrator shall use best efforts to place a series of orders over time that most closely maintains the split logic as orders are placed. The GTP 2.0 Integrator shall be responsible for any costs incurred as a result of failure to meet split award sourcing requirements by contract expiration.

P2 - 4.5.2.1 The GTP 2.0 Integrator shall follow the procedures detailed at Section P2 - 16.3 and its subpart for invoicing tires / NSNs with a retread requirement.

P2 - 4.5.3 The GTP 2.0 Integrator is responsible for retreadable tire carcasses until its delivery to the Vendor(s) facility for retread processing while the Vendor(s) is responsible for the tire(s) / NSN(s) inventory from receipt of retreadable tire carcasses until the Vendor(s) delivery and the GTP 2.0 Integrator Acceptance, as detailed at Section P2 - 3.3.3 and its subparts. Transportation costs of retreadable tire carcasses to the Vendor(s) facility are borne by the GTP 2.0 Integrator while transportation costs of RFI retreaded tires to the GTP 2.0 Integrator are borne by the Vendor.

P2 - 4.5.4 The GTP 2.0 Integrator shall select tire carcasses supplied to the Vendor for retreading to minimize the amount that is determined to be unsuitable for retreading and is converted to scrap during Vendor retread testing or during the retread process. These unsuitable tire carcasses shall be retained by retreader for the retread for disposal in accordance with the requirements of the Vendor Contract(s). Attachment 11 provides, by retread NSN, an industry average percent of tires identified as scrap during the retread testing and retread process.

P2 - 4.5.4.1 The GTP 2.0 Integrator shall consider that a portion of the retreadable tire carcasses supplied to the applicable Vendor(s) may be deemed scrap, and thus, are not returned to the GTP 2.0 In tegrator as a RFI tire. Any GTP 2.0 Integrator DO quantity to a resulting Vendor is subject to change pending the number of tire carcasses deemed scrap during the Vendor retread process. Accordingly, all DOs must comply with the Vendor(s) minimum DO quantity and tire carcasses shipped to the Vendor(s) must account for an appropriate scrap rate based on data developed by the GTP 2.0 Integrator or provided in Attachment 12. Upon receipt of the order, the Vendor(s) is authorized to retread all retreadable tire carcasses and bill the GTP 2.0 Integrator for all RFI tires supplied.

Depending on the actual scrap rate, the resulting quantity of RFI tires delivered and billed by the Vendor(s) may be more or less than the quantity ordered by the GTP 2.0 Integrator.

P2 - 4.5.5 Any disputes that arise while executing GTP 2.0 retread support will be handled in accordance with Section P2 - 3.3.7.

P2 - 5.0 Used / Scrap Tire Program

P2 - 5.1 Used / scrap tires identified under the GTP 2.0 RFP issued in support of the GTP 2.0 contract shall be priced via CLIN 0005. For CONUS locations only, the GTP 2.0 Integrator shall perform the recycling / disposal of used / scrap tires. The GTP 2.0 Integrator shall pickup used / scrap tires from the designated CONUS locations (Attachment 8) once the location has accumulated no less than 1,000 pounds of used / scrap tires unless otherwise directed by the Contracting Officer. The GTP 2.0 Integrator shall pick up used / scrap tires within a reasonable timeframe generally estimated to be 60 minutes upon arrival. The GTP 2.0 Integrator shall perform the recycling / disposal of used / scrap tires in accordance with all local, State, and Federal laws and regulations, and the terms and conditions of the GTP 2.0 contract. Title to used / scrap tires shall vest to the GTP 2.0 Integrator at the time of pickup. The GTP 2.0 Integrator may elect to beneficially use, reuse, recycle or reclaim the used / scrap tire(s).

P2 - 5.2 It is the GTP 2.0 Integrator's responsibility to ensure that it and its subcontractors can perform all work required by P2 - 5.0 and its subparts. For the GTP 2.0 contract, disposal means processing at a facility that is appropriately licensed / permitted / registered by local and / or State agencies to accept for purposes of recycling or properly disposing of used / scrap tires. The GTP 2.0 Integrator shall only use transporters and treatment, storage, recycling or disposal facilities approved by the State agencies authorized to regulate management and disposal of used / scrap tires. The GTP 2.0 Integrator shall provide, in writing and upon the request of the Contracting Officer, the following information for used / scrap tires recycling or disposal

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Form (CONTINUED)

facilities including, but not limited to:

P2 - 5.2.1 Complete facility address

P2 - 5.2.2 Telephone number

P2 - 5.2.3 Written declaration that the facility is listed in the applicable State used / scrap tire(s) recycling / disposal database

P2 - 5.2.4 Environmental Protection Agency (EPA) identification number where applicable

P2 - 5.2.5 Regulatory points of contact

P2 - 5.3 For States that do not regulate used / scrap tires, the GTP 2.0 Integrator may designate facilities that treat, store, recycle or dispose of used / scrap tires. These facilities must be operated in compliance with applicable State, Federal laws and local environmental regulations. If requested by the Contracting Officer, the GTP 2.0 Integrator shall provide a copy of the most recent inspection, by the authority having jurisdiction, attesting to the facility's acceptable compliance with the applicable laws and regulations and, where applicable, a copy of the page from the facility's operating permit documenting that the permit is current, and documentation that the facility is authorized to recycle or dispose used / scrap tires.

P2 - 5.4 Should the GTP 2.0 Integrator elect to use, reuse, recycle or reclaim used / scrap tires on the GTP 2.0 contract, these activities are only authorized at facilities that are appropriately licensed / permitted by local / State agencies to conduct them. The following also applies for all waste removed under the GTP 2.0 contract that is used, reused, recycled or reclaimed:

P2 - 5.4.1 The GTP 2.0 Integrator is required to use applicable State registered transporters for transporting tires under the GTP 2.0 contract. The Contracting Officer must approve transporters not required to be registered by a State prior to GTP 2.0 Integrator use.

P2 - 5.4.2 Documentation that indicates transportation and transfer to the facility that will use, reuse, recycle, reclaim or dispose of the used / scrap tires, or any component thereof shall be provided to the Contracting Officer upon request and at no additional cost to the Government.

P2 - 5.4.3 Applicable Certificates of Recycling provided by the recycling facility shall be provided to the Contracting Officer upon request and at no additional cost to the Government.

P2 - 5.4.4 The GTP 2.0 Integrator shall not resell whole tires received under the GTP 2.0 contract for any military or aviation use / application and the embossed NSN markings shall be obliterated and / or removed prior to resale, regardless of use / application. All whole, mutilated and shredded tires under this requirement shall be disposed of in accordance with all local, State, and Federal laws and regulations.

P2 - 5.5 The GTP 2.0 Integrator shall provide at a minimum, a single worldwide 24 hour / 7 day a week toll free number and a single email address that customers may contact to request a pickup; both of which will be listed at the GTP 2.0 website **https://www.dla.mil/Land-and-Maritime/Business/Selling/Global-Tires-Program** (which is subject to change). Subject to installation / site approval by the local installation, for sites that experience 4,000 or more pounds of used / scrap tires at least one (1) quarter annually, the GTP 2.0 Integrator shall place an empty, enclosed trailer for collection of tires. The trailer may have either rollup or swing lockable doors. Trailers with tarps are not permitted. See Attachment 10 for historical scrap pickup locations, i.e., where trailers have been historically located based on the 4,000-pound scrap tire use. The GTP 2.0 Integrator will allow the Contracting Officer to change the locations of pickup points at no additional cost to the Government. The GTP 2.0 Integrator is not obligated to establish a trailer at a location that generates less than the 4,000-pound requirement.

P2 - 5.5.1 The customer will consolidate its potentially retreadable and scrap tire carcasses into a single trailer, as provided by the GTP 2.0 Integrator. Therefore, in performing the requirements under Section P2 - 4.3, the GTP 2.0 Integrator shall pickup reparable and scrap tire carcasses within a single trailer. The GTP 2.0 Integrator is responsible for separating reparable tire carcasses from scrap to execute the applicable requirements at Sections P2 - 4.0 and P2 - 5.0 and their subparts.

P2 - 5.6 The GTP 2.0 Integrator shall provide a quarterly report identifying by customer the total number of pickups and total number of scrap tire carcasses and weight received by the GTP 2.0 Integrator and on a percentage basis identify the amount

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disposed, recycled as a used tire, recycled for another use, or consumed for energy. This quarterly report shall be submitted to the Government no later than 14 days from the reporting period's end. The GTP 2.0 Integrator shall respond to requested pickups within the Pickup Response Time (PRT), detailed at Section P2 - 6.0.

P2 - 5.7 Upon receipt or removal of the used / scrap tires from the various Government locations the GTP 2.0 Integrator assumes title, full accountability and physical custody of such tires.

P2 - 6.0 Pickup Response Time (PRT)

P2 - 6.1 PRT is the time definite pickup time the GTP 2.0 Integrator is required to meet when picking up tires from the customer. See Attachment 10 for the estimated number of pickups performed on the GTP 2.0 contract.

P2 - 6.1.1 The PRT metric for all locations subject to the retread or scrap / disposal PRT requirement is 10 calendar days. The PRT time clock starts at the end of the day during which a request / notification is provided to the GTP 2.0 Integrator and stops upon the day the GTP 2.0 Integrator pick up occurs.

P2 - 6.1.1.1 Pickup requests received after 4:00 PM Contractor's local time will be considered to have been received the following workday. Pickup requests received on a Federal Holiday will be processed as though received at 7:30 AM local time on the next business day.

P2 - 6.1.2 Pickup schedules shall be tracked by the GTP 2.0 Integrator and reviewed at the periodic PRB. PRT timeframes not met for reasons not attributable to the GTP 2.0 Integrator can be excluded from the pickup rate computation upon mutual agreement of the PRB.

P2 - 6.2 Measurement of the GTP 2.0 Integrator's quarterly PRT performance shall begin at completion of the implementation period. The method which will be used to monitor the GTP 2.0 Integrator's performance with the PRT metric is as follows:

P2 - 6.2.1 The number of on time pickups executed quarterly divided by the total number of pickup requests in that same quarter shall equal the percentage of on time pickups.

P2 - 6.3 The GTP 2.0 Integrator shall execute its PRT at no less than 95%, quarterly, throughout the period of performance of the GTP 2.0 contract. A quarter is defined as every three (3) months from the beginning of Phase II. This metric will be monitored and reported at the PRBs or on a as required basis. Should the GTP 2.0 Integrator fail to meet the PRT at any reporting period, the GTP 2.0 Integrator shall provide the Contracting Officer, in writing, with an explanation of the failure and corrective action plan to achieve the minimum required PRT.

P2 - 7.0 Foreign Military Sales (FMS) Requisitions

P2 - 7.1 FMS requisitions shall be filled in accordance with the Military Standard Requisition and Issue Procedure (MILSTRIP) for FMS, and the following requirements:

P2 - 7.1.1 Cooperative Logistics Supply Support Arrangement (CLSSA) and Initial Support and Direct Requisition Procedure (DRP). CLSSA is a military logistics support arrangement designed to provide responsive and continuous supply support at the depot level for U.S.made military materiel possessed by foreign countries and international organizations. The CLSSA is normally the most effective means for providing common repair parts and secondary item support for equipment of U.S. origin that is in allied and friendly country inventories.

P2 - 7.1.1.1 Programmed CLSSA requisitions shall be filled by the GTP 2.0 Integrator as DoD requirements and in accordance with the selected Fill Rate requirements as detailed at Section P2 - 9.0 and its subparts. CLSSA requisitions are identified by a "B, D, K, P or T" in the first position of the requisition and a "V" in the last position of the first six characters of a requisition number, and the numeric "1" in record position (RP) 72 of the requisition.

P2 - 7.1.1.2 Un-programmed CLSSA requisitions identified with a blank or "2" in the RP 72 and initial support and FMS DRP requisitions (identified by a "B, D, K, P or T" in the first position of the requisition and NO "V" in the sixth position), shall be filled in accordance with the selected Fill Rate requirements as detailed in Section P2 - 9.0 and its subparts unless the order fulfillment would deplete the Integrator's stock or place the stock below the appropriate safety level for supporting U.S Military and Programmed CLSSA requirements. If such a case exists, the GTP 2.0 Integrator shall notify the Contracting

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Officer, in writing, of the potential stock out or stock low situation based on the GTP 2.0 Integrator's substantiated safety stock level and further, provide the get-well date sufficient stock will be available to fill the requirement without endangering U.S. Military and Programmed CLSSA requirements. The Contracting Officer will confirm whether or not the un-programmed CLSSA requisition should be placed on Backorder (B/O) until the identified get well date. The Contracting Officer may grant a performance exception to the selected Fill Rate requirements as detailed at Section P2 - 9.0 and its subparts until said get well date, when the order should be removed from B/O status and fulfilled.

P2 - 7.2 FMS Inspection and Acceptance and Free on Board (F.O.B.) Point

P2 - 7.2.1 For FMS orders, the F.O.B. point shall be Origin with Inspection and Acceptance to occur at Origin. Transportation instructions will be included on individual DOs.

P2 - 7.3 The GTP 2.0 Integrator supply chain management fee for FMS support is CLIN 0004 as defined in Section C.2.10.

P2 - 7.4 Delivery terms for F.O.B. Origin orders are detailed at Section P2 - 9.1.2 and its subpart.

P2 - 8.0 Time Definite Delivery (TDD), Logistics Response Time (LRT)

P2 - 8.1 The GTP 2.0 Integrator will plan and execute delivery of tires within timeframes that support customer requirements and readiness in accordance with the TDD / LRT in Table B below.

P2 - 8.1.1 DO start time is the time and date stamped on the issued DO.

P2 - 8.1.2 CONUS TDD / LRT

P2 - 8.1.2.1 The GTP 2.0 Integrator has successfully filled a CONUS demand, when after receipt of a DO, the GTP 2.0 Integrator has delivered the tire(s) to the customer designated site, within the TDD / LRT requirement established in Table B below .**P2 - 8.1.3** OCONUS TDD / LRT

P2 - 8.1.3.1 The GTP 2.0 Integrator has successfully filled an OCONUS demand when, after receipt of a DO, the GTP 2.0 Integrator has delivered the tire(s) to the designated customer, CCP, port or freight forwarder site within the TDD / LRT requirement established in Table B below.

Table B

Delivery Order (DO) Category* Codes CONUS and OCONUS
Category 1
Issue Priority Designator (IPD) 1-3 4 Days**
Category 2
IPD 4-15 with RDD of 444, 555, 777, 999, N, E, Project Codes “9”
7 Days**
Category 3
IPD 4-15, all others 11 Days**
***Note, the EDI 850 Transaction will pass the Priority Code and Delivery Days, which shall identify the corresponding Category Codes reflected in Table B above.**

****Days in Table B above reflect calendar days.**
P2 - 8.2 Requisitions received operate on a 24-hour basis and the date of receipt shall constitute Day zero under the selected Delivery Option requirements and Fill Rate (FR) requirement at Sections P2 - 8.0 and 9.0 and their subparts. Customer delivery will be tracked using any Government identified replacement system. DO delivery dates shall not fall on a federal holiday or weekend but will be extended to the next business day.

P2 - 8.3 Measurement

P2 - 8.3.1 The GTP 2.0 Integrator shall provide an itemized list of the total number of DOs delivered on time and a list of the total number of DOs not delivered on time. Each list shall be sorted by the number of days of actual delivery and the quantity for DOs received. Proof of Delivery may be requested by the Government.

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P2 - 8.3.1.1 The GTP 2.0 Integrator's performance is measured on a calendar month basis with the selected Delivery Option requirements for each Category* as follows:

P2 - 8.3.1.1.1 The number of DOs delivered on time divided by the total number of DOs received equates to the percentage of on time delivery.

***The performance for each Category is measured individually and stands alone. Categories are identified in P2 - 8.0 and its subparts. Performance for each Category will be continually reviewed, and the results will be reflected in Contractor Performance Assessment Reporting System (CPARS).**

P2 - 8.3.1.2 For DOs received in one (1) month but not delivered under the following month, the metric calculation will not occur until the month of delivery for such orders. For example, if an order is received on August 31 but delivery will not take place until September 2, the metric calculation for this DO will occur in September.

P2 - 8.3.2 Partial deliveries shall not constitute compliance with the delivery requirement identified. Partial deliveries are encouraged when a delivery for the total quantity cannot be achieved within the required timeframe.

P2 - 8.3.3 Exceptions

P2 - 8.3.3.1 Canceled DOs, delivery orders that are delinquent due to insufficient tire inventory because of late delivery or short shipment by the Vendor to the GTP 2.0 Integrator, unprogrammed CLSSA FMS requisitions if the GTP 2.0 Integrator does not have stock to fill the unprogrammed CLSSA FMS requisitions, or circumstances identified in FAR 52.212-4(f) shall be removed from the monthly measurement calculation of the GTP 2.0 Integrator's performance.

P2 - 8.3.3.2 - The following exceptions are added for TDD/LRT delivery metrics, where the time for metrics performance excludes the length of delay caused by each:

a. Inaccurate or incomplete shipping instructions and/or address information received through VSM;

b. Foreign point of entry or custom clearance processing time preventing delivery on the same day;

c. Common carrier delivery delays due to U.S. and foreign holidays, port closures, bases closures, inclement weather, war, riots, and other occurrences outside the carrier's reasonable control that prevent delivery;

d. Other causes that are not reasonably foreseeable and avoidable, beyond the reasonable control of the GTP 2.0 Integrator, and not due to the fault or negligence of the GTP 2.0 Integrator; and,

e. Spikes in demand, which occur when: a) the total order quantity of an NSN for the month exceeds 5 times the average monthly demand quantity taken over the previous 12 months if the NSN's annual forecasted demand is less than 10 tires; or b) the total order quantity of an NSN for the month exceeds 3 times the average monthly demand quantity taken over the previous 12 months if the NSNs annual forecasted demand is 10 tires or more.

For exclusion e) above, TDD/LRT metrics performance excludes the time required to stock depleted supplies (and allow the associated TDD/LRT times for delivery) provided that the GTP 2.0 Integrator takes reasonable steps to mitigate stock shortages, e.g. by working with Vendors to adjust production schedules to fill supplemental orders to resupply depleted inventories in the minimal practical time.

In general, exceptions for delays occurring after orders are filled will only be allowed if the GTP 2.0 Integrator has met the order's Fill Rate timeframe. However, the Contracting Officer recognizes there may be instances when the GTP 2.0 integrator, if not for the impact of the delay occurring after the order was filled, would have met the TDD/LRT metric even though the Fill Rate metric was not met. The Contracting Officer will evaluate the facts of such instances on a case-by-case basis and will allow delivery extensions when reasonably justified.

P2 - 8.4 Reporting

P2 - 8.4.1 The Government identified system, shall provide the Contracting Officer and the GTP 2.0 Integrator the monthly metric report within 14 days from the end of the preceding month. The GTP 2.0 Integrator will have 20 days to challenge calculations on individual DOs utilized in the metrics, via email to the Contracting Officer. The challenge shall include

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rationale and all supporting evidence. The Contracting Officer will make the final decision to the challenge request within 20 days after receiving receipt. If the GTP 2.0 Integrator does not submit a timely challenge, then no adjustment will be made to the monthly selected Delivery Option requirements metric.

P2 - 8.4.1.1 The selected Delivery Option requirements data will be reviewed during the periodic PRBs.

P2 - 8.5 CLSSA Requisitions

P2 - 8.5.1 All GTP 2.0 Integrator performance metrics apply for FMS CLSSA requisitions. Failure to meet the required delivery metric is an unfilled customer order and counts negatively against GTP 2.0 Integrator's performance.

P2 - 8.6 Failure to Meet the selected Delivery Option Requirements

P2 - 8.6.1 If the GTP 2.0 Integrator fails to meet the selected Delivery Option requirements for a particular tire / NSN (see Tables B, C and/or D), within 10 days after receiving written notice from the Contracting Officer, the GTP 2.0 Integrator shall submit, in writing to the Contracting Officer, a get-well plan. The plan will identify the cause(s) of the failure and the specific steps that have been and will be taken to immediately correct the failure. If the Contracting Officer determines the plan is inadequate to address the cause of the failure, the Contracting Officer may require the resubmittal of the plan and / or direct the GTP 2.0 Integrator to take additional steps, to include increasing its stocking plan to a level that will address the degree of noncompliance with the selected Delivery Option requirements. The GTP 2.0 Integrator shall implement the approved plan, including adjusting its stocking plan as directed by the Contracting Officer; at no additional cost to the Government. Nothing in this paragraph shall relieve the GTP 2.0 Integrator from meeting the GTP 2.0 contract performance requirements.

P2 - 8.7 Metric

P2 - 8.7.1 The Government will select one (1) of the minimum TDD / LRT and FR requirement scenarios (95% or 97%) -- as determined to be in the best interest of the Government and incorporate the selected minimum requirement at GTP 2.0 contract award.

P2 - 8.7.2 The GTP 2.0 Integrator is required to meet the FR and selected Delivery Option requirements by meeting an overall percentage of 95% or 97%. Additionally, the GTP 2.0 Integrator shall meet an overall percentage of 95% or 97% for each of the following on time delivery categories: CONUS and OCONUS. Also, the GTP 2.0 Integrator must meet a percentage of 95 or 97 for on time delivery for all IPG 1. This applies to all customers. See the exceptions at Section P2 - 8.3.3 and its subpart.

P2 - 9.0 Fill Rate (FR)

P2 - 9.1 The GTP 2.0 Integrator will plan and prepare tires for shipment within the timeframes specified in Tables C and D below.

P2 - 9.1.1 If TDD / LRT delivery requirements apply, the GTP 2.0 Integrator has successfully filled a CONUS / OCONUS demand when, after receipt of a DO, the GTP 2.0 Integrator has shipped the tire(s) to the designated customer, CCP, port or freight forwarder site within the timeframe specified in Table C below.

Table C

Delivery Order (DO) Category* Codes TDD / LRT for CONUS and OCONUS
Category 1
IPD 1-3 2 Days**
Category 2
IPD 4-15 with RDD of 444, 555, 777, 999, N, E, Project Codes “9”
3 Days**
Category 3
IPD 4-15, all others 6 Days**
***Note, the EDI 850 Transaction will pass the Priority Code and Delivery Days, which shall identify the corresponding Category Codes reflected in Table C above.**
****Days in Table C above reflect calendar days**

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P2 - 9.1.2 The GTP 2.0 Integrator has successfully filled an FMS demand when, after receipt of a DO, the GTP 2.0 Integrator has tendered the tire(s) for Government source inspection requirements within the timeframe specified in Table D below.

P2 - 9.1.2.1 Tendered for source inspection is defined as the GTP 2.0 Integrator contacting the DCMA Quality Assurance Representative for inspection and having documented evidence of such contact, accurately completing the Material Inspection and Receiving Report (DD250) and having the tire(s) available for inspection and ready for shipment.

Table D
Delivery Order (DO) Category* Codes FMS
Category 1
IPD 1-3 1 Days**
Category 2
IPD 4-15 with RDD of 444, 555, 777, 999, N, E, Project Codes "9_"
2 Days**
Category 3
IPD 4-15, all others 3 Days**
***Note, the EDI 850 Transaction will pass the Priority Code and Delivery Days, which shall identify the corresponding Category Codes reflected in Table D above.**
****Days in Table D above reflect calendar days**

P2 - 9.2 Measurement

P2 - 9.2.1 The GTP 2.0 Integrator's performance is measured on a calendar month basis, in which the FR represents the percentage of orders that shipped on time in a particular month, by Category. The FR percentage will be an average of the monthly FRs achieved over a particular performance period, by Category.

P2 - 9.2.1.1 Although performance tracking for FR will start upon the issuance of the first DO, the initial performance period will start on the completion of the implementation period of the GTP 2.0 contract and run through the end of the base period year one (1). Subsequent performance periods will be on an annual basis, with the second performance period beginning on day 1st day of the base period year two (2) of the GTP 2.0 contract. The final performance period will end 90 days prior to the end of the base period of the GTP 2.0 contract. If the option(s) is extended, the final performance period will be 90 days prior to the end of the option of the GTP 2.0 contract.

Total Requisitions Shipped = TRS within the required timeframe as specified in Table D above
Total Requisitions Received = TRR
Monthly FR % = (TRS / TRR) x 100 FR is rounded to the nearest tenth.

P2 - 9.2.1.2 For requisitions received in one month but not delivered under the following month, the metric calculation will not occur until the month of delivery for such requisitions. For example, if a requisition is received on August 31 but delivery will not take place until September 2, the metric calculation for this requisition will occur in September.

P2 - 9.3 Metric

P2 - 9.3.1 The Government will select one (1) of the minimum TDD / LRT and FR requirement scenarios (95% or 97%) -- as determined to be in the best interest of the Government and incorporate the selected minimum requirement at GTP 2.0 contract award.

P2 - 9.3.1.1 The GTP 2.0 Integrator shall meet an overall FR percentage of 95 or 97 for each of the following on time delivery categories: CONUS, OCONUS and FMS. In addition, the GTP 2.0 Integrator must meet an FR percentage of 95 or 97 for all IPG 1 combined for CONUS and OCONUS. See the exceptions at Section P2 - 9.3.2 and its subpart.

P2 - 9.3.2 Exceptions

P2 - 9.3.2.1 Canceled DOs, delivery orders that are delinquent due to insufficient tire inventory because of late delivery or

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short shipment by the Vendor to the GTP 2.0 Integrator, unprogrammed CLSSA FMS requisitions if the GTP 2.0 Integrator does not have stock to fill the unprogrammed CLSSA FMS requisitions, or circumstances identified in FAR 52.212-4(f) shall be removed from the monthly measurement calculation of the GTP 2.0 Integrator's performance.

P2 - 9.3.2.2 - The following Fill Rate metric exceptions are added, where the time for metrics performance excludes the length of delay caused by each:

a. Inaccurate or incomplete complete shipping instructions and/or address information received through VSM;

b. Other causes that are not reasonably foreseeable and avoidable, beyond the reasonable control of the GTP 2.0 Integrator, and not due to the fault or negligence of the GTP 2.0 Integrator; and,

c. Spikes in demand, which occur when: a) the total order quantity of an NSN for the month exceeds 5 times the average monthly demand quantity taken over the previous 12 months if the NSN's annual forecasted demand is less than 10 tires; or b) the total order quantity of an NSN for the month exceeds 3 times the average monthly demand quantity taken over the previous 12 months if the NSNs annual forecasted demand is 10 tires or more.

d. For exception c) above, Fill Rate metrics performance excludes the time required to stock depleted supplies (and allow the associated Fill Rate time for shipment) provided that the GTP 2.0 Integrator takes reasonable steps to mitigate stock shortages, e.g. by working with Vendors to adjust production schedules to fill supplemental orders to resupply depleted inventories in the minimal practical time.

P2 - 9.4 Reporting

P2 - 9.4.1 The Government identified system, shall provide the Contracting Officer and the GTP 2.0 Integrator the monthly metric report within 14 days from the end of the preceding month. The GTP 2.0 Integrator will have 20 days to challenge calculations on individual DOs utilized in the metrics, via email to the Contracting Officer. The challenge shall include rationale and all supporting evidence. The Contracting Officer will make the final decision to the challenge request within 20 days after receiving receipt. If the GTP 2.0 Integrator does not submit a timely challenge, then no adjustment will be made to the monthly FR metric.

P2 - 9.4.1.1 The GTP 2.0 Integrator shall provide a FR Performance report, as required in Table E, that includes fill rate performance elements based on the measurement and metric requirements stated in P2 - 9.2 and P2 - 9.3. The report shall separate air tires from ground tires and provide a combined summary of air and ground tire fill rate performance.

P2 - 10.0 Workload Demand

P2 - 10.1 S&S Requirements
P2 - 10.1.1 The GTP 2.0 Integrator will plan for demand surges within the Vendor's production capacities (i.e., delivery terms), reference each Vendor Contract.

P2 - 10.1.2 S&S requirements are identified at CLIN 0008. DOs for S&S requirements will state in Section A, “This DO is for S&S requirements.”

P2 - 10.1.2.1 The GTP 2.0 Integrator shall pay the S&S CLIN tire price as identified in the Vendor Contract(s) and the GTP 2.0 Integrator shall invoice the Government for the surge CLIN tire price on CLIN 0008.

P2 - 10.1.2.1.1 For example, if the CLIN 0001 price for NSN XYZ is $100.00 per tire on a Vendor Contract and the Vendor Contract is awarded with a 5% surge increase ($100.00 x 0.5% = $5.00) for NSN XYZ, the CLIN 0008 tire price for NSN XYZ will be $105.00.

P2 - 11.0 Maintaining the Cooperative Tire Qualification Program (CTQP) Cooperative Approved Tire List (CATL)

P2 - 11.1 Tires listed in the CTQP CATL have been tested and / or approved for procurement by the Government. The most current CTQP CATL lists are located on the GTP 2.0 website at https://www.dla.mil/Land-and-Maritime/Business/Selling/

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Global-Tires-Program/.

P2 - 11.1.2 The GTP 2.0 Integrator is not responsible for conducting, establishing, reviewing, or approving any required test plans or results for the CTQP CATL 1922 or CTQP CATL 1923. Ground Vehicle Systems Center (GVSC) is the CTQP CATL Administrator responsible for reviewing and approval of candidate / reference tires and test plan, monitoring testing, analysis and approval / disapproval of test results for qualification and notifying the Contracting Officer of qualification or changes.

P2 - 11.1.2.1 The CTQP CATL1922 Administrator's Approval and Requirements Manual and CTQP CATL 1923 Administrator's Approval and Requirements Manual are provided as Attachments 13 and 14, respectively, for reference.

P2 - 11.1.3 As a general description of the qualification process, a tire manufacturer interested in being qualified on the CTQP CATL 1922 or 1923 is responsible for all testing costs associated with qualifying its tires. All testing is conducted at an independent testing facility, the results of the test certified by that test facility, and a copy of the test results sent directly to the GVSC. The final report submitted by the manufacturer seeking qualification must be approved by the GVSC.

P2 - 12.0 Life Cycle Cost (LCC) Program

P2 - 12.1 For aircraft NSNs, the Air Force and the tire manufacturing industry work together to insert new technology and increase the reliability of applicable tires in accordance with the LCC Program list.

P2 - 12.2 LCC Program Testing Ordering Procedures

P2 - 12.2.1 Tires purchased for the LCC Program evaluation by the Air Force may be purchased separate from the GTP 2.0 contract directly from the Vendor by DLA to maintain integrity and proprietary separation. The GTP 2.0 Integrator is not directly involved in the LCC Program.

P2 - 12.2.2 Where a Vendor Contract is not or cannot be established for a tire(s) / NSN(s) in Attachment 4 and meets the terms and conditions at Section P2 - 3.9 and its subparts, tires used for evaluation purposes by the Air Force may be purchased outside of the GTP 2.0 contract. Upon approval by the Air Force, the newly established tire(s) / NSN(s) may be added to either one (1) of the existing Vendor Contracts or to a newly established Vendor Contract for GTP 2.0 Integrator ordering authority.

P2 - 12.3 Vendor Contract Price Changes and Depletion of Prior LCC Program Stock

P2 - 12.3.1 If the Government modifies the CLIN 0001-unit price under the GTP 2.0 contract, the GTP 2.0 Integrator shall provide the on-hand balance of the applicable tire / NSN that was purchased / manufactured prior to the change on CLIN 0001. The GTP 2.0 Integrator shall notify the Contracting Officer, in writing, of the depletion of the tire inventory with the previous CLIN 0001-unit price.

P2 - 12.4 Supply of LCC Program Tire(s) / NSN(s) for GTP 2.0 Support

P2 - 12.4.1 LCC Program tires / NSNs may have split award Vendor Contracts established and thus, refer to the requirements at Section P1 - 4.3 and its subparts for the Vendor Contract Souring Logic. In the event an LCC Program evaluation results in a change to the Vendor Contract percentage split for a particular NSN, the Contracting Officer or designee will notify the GTP 2.0 Integrator of the percentage allocation change.

P2 - 13.0 Unique Customer Requirements / Special Requirements List

P2 - 13.1 Certain DoD customers have identified unique requirements for tires supplied under the GTP 2.0; these are applicable to the resulting GTP 2.0 contract in accordance with the Special Requirements List hereby incorporated via Attachment 15. The Government reserves the right to update this list at any time, at no additional cost to the Government to accommodate DoD customer requirements.

P2 - 14.0 Small Business

P2 - 14.1 The GTP 2.0 Integrator, regardless of its business size, shall ensure small business, veteran-owned small business, service-disabled veteran owned small business, HUBZone small business, small-disadvantaged business (to include 8a Program participants), women owned small business concerns, and AbilityOne opportunities will have the maximum

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practicable opportunity to participate in the GTP 2.0 contract. In order to assure these businesses have equitable opportunities to compete, the GTP 2.0 Integrator shall publicize subcontracting opportunities via the Small Business Administration's SUB Net, **https://www.sba.gov/federal-contracting/contracting-guide/prime-subcontracting/subcontracting-opportunities** and the DLA WS Small Business Programs website, **https://www.dla.mil/Small-Business/** and report its small business program support monthly.

P2 - 14.2 The GTP 2.0 Integrator shall provide semi-annually a small business participation report indicating the applicable participation of Small Businesses and the Small Business Participants; reference Table E of Section P2 - 15.0, and Volume IV-Factor 3: Small Business Participation from GTP 2.0 RFP. The report shall be submitted by the last business day of April, July, October, and January covering Small Business participation performance through March, June, September, and December, respectively.

P2 - 15.0 Reporting Requirements List

P2 - 15.1 Table E below lists the GTP 2.0 Integrator reporting requirements, otherwise known as Contract Data Requirements Lists (CDRLs), established for the GTP 2.0 support and are required for submission to the Contracting Officer.

Table E

 # Report Name Report Definition Report Frequency PWS Section Reference Location

1 Implementation Reporting Indicate the applicable percentage of completion and identify how the percentage was achieved based on completed tasks identified in the GTP 2.0 Integrator's Implementation Plan (to include GTP implementation). Submitted at identified percentages of milestone completion P1 - 1.2 and its subparts

2 Sourcing Logic Compliance See Section P1 - 4.3.2 and its subpart for detailed definition of reporting requirement. Monthly - no later than 14 days from the reporting period's end P1-4.3.2 and its subpart

3 Stock Status Report On hand assets of RFI tires, by NSN and GTP 2.0 Integrator location, annual monthly demand, due-ins*, and shipment of RFI tires from one (1) GTP 2.0 warehouse location to another if applicable. Monthly - no later than 14 days from the start of the reporting period and the last business day of the month/reporting's period end. Not Applicable (N/A)

4 Backorder (B/O) Identifies B/O Lines and Quantities, date B/O established, by NSN, anticipated date of B/O fulfillment, customer location (CONUS / OCONUS / FMS), reason for B/O, and Vendor. Monthly - no later than 14 days from the reporting period's end N/A

5 Selected Delivery Option Requirements Performance Identifies selected Delivery Option requirements performance, by Category. Monthly - no later than 14 days from the reporting period's end P2 - 8.0, 18.0 and their subparts

6 FR Performance Identifies FR performance, by Category. Monthly - no later than 14 days from the reporting period's end P2 - 9.0 and its subparts

7 Material Acceptance Rate MAR MAR from GTP 2.0 Integrator supply to GTP 2.0 Integrator order fulfillment, by NSN that identifies date of notification of deficiency, remedy, and date of resupply, if applicable. Semi Annually - in accordance with the PRB cycle P2 - 2.2.5

8 Acceptance Rate of Vendor Contract Material Identifies the acceptance rate for the Vendor Contract material supplied to GTP 2.0 Integrator, by NSN that identifies the date of notification of deficiency, deficiency / product quality issue, remedy, and date of resupply, if applicable. Semi Annually in accordance with the PRB cycle P2 - 2.2.5

9 Vendor Contract Summary Report Identifies Vendor Contract number, CAGE, quantity, price, date ordered, delivery date, date extended, date delivered, and date accepted. Monthly - no later than 14 days from the reporting period's end N/A

10 12 Month Forecast Projects monthly tire forecast demands for all NSNs listed in Attachment 4 over a rolling 12-month period which identifies (a snapshot of) stock on hand, due-ins* and anticipated demands (monthly or annually). The report shall also contain actual orders for the past 12-month period (rolling). Monthly - no later than 14 days from the reporting period's end P2

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11 Retread Tire Support Identifies the quantity of new vs. retread tires supplied by NSN and identifies the blended unit price based on actual deliveries of new and retreaded tires Quarterly - no later than 14 days from the reporting period's end P2 - 5.6

12 Retread Management Identifies the percentage of tires retreaded and scrapped and reasons for rejection of the NRFI reparable tire, by NSN. Quarterly - no later than 14 days from the reporting period's end P2 - 4.2 and its subparts

13 Retread Pickup Identifies by customer, the total number of pickups and total number of reparable tire carcasses, by NSN. Quarterly - no later than 14 days from the reporting period's end P2 - 4.3.5

14 Scrap Tire Pickup and Disposal Management Identifies by customer, the total number of pickups and total number of scrap tires and weight; on a percentage basis, identifies the amount disposed, recycled as a used tire, recycled for another use, or consumed for energy. Quarterly - no later than 14 days from the reporting period's end P2 - 5.6

15 Purchase Order (PO Report) PO number, NSN, Supplier, quantity, delivery, date received by GTP 2.0 Integrator, price paid per tire, total PO value. Monthly - no later than 14 days from the reporting period's end P2 - 16.3 and its subpart

16 Delivery Order Reconciliation (DOR Report) Invoice Number, Invoice Date, DO Number, Requisition Number, CONUS/OCONUS/FMS designation, Ship-To DoDAAC, actual tire quantity shipped and invoiced, NSN, dollar values ordered and invoiced for CLINs 0001, 0002 through 0004 (combined) 0008. GTP 2.0 Integrator calculated values per DO for CLINs 0001 through 0004 and 0008, based on shipment destination (CONUS, OCONUS or FMS), S&S requirement, actual cost of tire shipped as supported by tire Vendor Contract and PO number for each tire shipped, and delta calculation per DO for CLINs 0001,0002 through 0004 (combined) 0008. Vendor Contract or PO number associated with each tire shipped,

-Monthly - no later than the last working day of the month following the reporting period. P2 - 16.3 and its subpart
17 Stock Value Report By NSN, GTP 2.0 Integrator location(s), and CLIN 0001 tire cost in inventory, total tire quantity on hand, remaining in stock, VMI tires, number of expired shelf-life tires, tires in transit, PO due ins*****, PO number. Monthly - no later than 14 days from the reporting period's end P2 - 16.3 and its subpart
18 Small Business Participation Indicate the applicable participation of Small Businesses and the Small Business Participants, reference subparagraphs 2-3 of Attachment 24 of GTP 2.0 RFP. Quarterly P2 - 14.2
19 “Kind”, “Count” and “Condition” nonconformances Provide a running list of “Kind” and “Count” and “Condition” nonconformances from Vendor Contracts. Monthly - no later than 14 days from the reporting period's end P2 - 3.3.3.1.2
20 Monthly Running Total Dollars spent, number of PRs and number of tires. Additionally, the GTP 2.0 Integrator will provide a bar graph showing a running monthly total of tires delivered, with the left label indicating “Quantity of Tires” and the bottom label indicating “Month/Year.” Monthly - no later than 14 days from the reporting period's end N/A
21 Vendor Contract Scorecard Vendor Contract number, Vendor name, total number of: DOs issued, tires that were ordered, tires that were delivered, DOs that were due, on time DOs, late DOs; on-time delivery percentage, total dollars spent on the contract to date, total dollars spent on the contract during the period of performance, number of “Kind”, “Count”, or “Condition” nonconformances and the details to each occurrence if applicable. Annually P1 - 4.6 and its subparts
***Due ins refer to tires on order by the GTP 2.0 Integrator that have not yet been received by the GTP 2.0 Integrator.**

P2 - 15.2 Report Format

P2 - 15.2.1 All reports shall contain the requirements detailed at Section P2 - 15.0 and its subparts and be submitted in a Microsoft Excel format and Microsoft PowerPoint or Word, unless otherwise directed by the Contracting Officer. Any change to the reporting format shall be at no additional cost to the Government.

P2 - 15.3 Additional reporting elements may be required by the Contracting Officer and shall be provided at no additional cost to the Government. For example, the Government may request any of the CDRLs be broken out to include U.S. Combatant Commands (COCOM) during their regular reporting cycles (past, present or future).

P2 - 15.4 All reports, data and deliverables required under GTP 2.0 contract shall be delivered to the Government with

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unlimited rights and shall not be identified as proprietary data. "Unlimited Rights" means the Government has the rights to use, disclose, reproduce, prepare derivative works and distribute copies to the public any data (including the contents of reports), in any manner and for any purpose, and to have or permit others to do so.

P2 - 16.0 Data Reporting, Requisition Processing, and Reconciliation Requirements

P2 - 16.1 Data Reporting
P2 - 16.1.1 Under the terms of the GTP 2.0 contract, exchange of logistics data shall be required between the GTP 2.0 Integrator and DLA to support DO processing and inventory reporting. The GTP 2.0 Integrator shall be required to establish the application systems, business controls, and databases necessary to support these processes.

P2 - 16.1.2 The GTP 2.0 Integrator shall receive / send logistics data exchanges between itself, and DLA electronically using EDI formats and shall be responsible for exception processing and error corrections.

P2 - 16.2 Requisition Processing

P2 - 16.2.1 Order placement shall be by EDI transmissions in accordance with ANSI X12 Standards through a registered Value-Added Network (VAN). An EDI transmission from the Contracting Officer constitutes a binding order; the GTP 2.0 Integrator is required to commence performance upon receipt of a binding order.

P2 - 16.2.2 In general, the requisition process will work as follows:

P2 - 16.2.2.1 DLA customer(s) will submit requisitions, requisition follow ups and requisition cancellations to DLA.

P2 - 16.2.2.2 DLA customer requirements will then be forwarded to the GTP 2.0 Integrator via a DO issued from the DLA Enterprise Business System (EBS) that will be translating the Government requisitions into the appropriate EDI transaction set.

P2 - 16.2.2.3 The GTP 2.0 Integrator shall provide real time shipping status corresponding to the customer's requisition using an appropriate transaction set.

P2 - 16.2.3 Five (5) EDI transactions are required for the purpose of transmitting the DOs and Tracking Performance:

P2 - 16.2.3.1 850 PO / DO

P2 - 16.2.3.2 856 Shipment Notice Manifest

P2 - 16.2.3.3 855 PO Acknowledgement

P2 - 16.2.3.4 214 Transportation Carrier Shipment Status Message

P2 - 16.2.3.5 997 DO Functional Acknowledgement

P2 - 16.2.3.6 PO / DO (850) will be processed through the issuing DLA Supply Chain. The Shipment Notice (856) will identify the order shipment date of the total quantity. The PO Acknowledgement (855) is a transaction set that will be used with EDI to show POs. The EDI 214 transaction set represents a transportation carrier shipment status message. The Functional Acknowledgement (997) will show that the GTP 2.0 Integrator has received the delivery order, thus establishing the order date and time.

P2 - 16.2.4 The GTP 2.0 Integrator is required to use the most up to date EDI transactions as they become available.

P2 - 16.3 Reconciliation: Upon fulfillment of each DO, the GTP 2.0 Integrator shall invoice for the DO CLIN 0001 tire price or CLIN 0008 S&S tire price (if S&S is invoked by the Government), plus the additional CLINs associated with the DO, as applicable. For split support / retreads, a blended price shall be used. For example, if there is a 70 / 30 split and one Vendor is to receive 70% and the tire cost is $600 and the second Vendor is to receive 30% and the tire cost is $800, the blended price would calculate to $660 [(70% X $600) + (30% X $800) = $660].

P2 - 16.3.1 The GTP 2.0 Integrator and the Government shall conduct reconciliation monthly for shipped and invoiced tire DOs occurring during the previous month. This monthly report shall be submitted to the Government no later than 30 days

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from the reporting period's end. The reconciliation process begins by comparing the ordered prices for DO CLINs 0001 or 0008 for each tire/NSN shipped (reference P2 - 16.3), with the cost of the tire inventory issued to fill each order, and correct CLIN price based on order destination (CONUS, OCONUS, or FMS) and S&S requirement to identify any price differences. The GTP 2.0 Integrator shall provide the latest Stock Value, PO, and DO reports identified in Section P2 - 15.1, Table E. The GTP 2.0 Integrator and the Government shall discuss the reports and the appropriate adjustment supported by the documentation as necessary to arrive at an agreed reconciliation. When detection of missing or insufficient documentation prevents reconciliation, the Contracting Officer and designated GTP 2.0 Integrator point of contact for reconciliation will seek to provide that documentation or agree to a reconciliation to the extent supported by the existing documentation. If the parties, despite good faith efforts to arrive at an agreed reconciliation, are unable to arrive at an agreed reconciliation within 45 days of submission of the required reports to the Government, then the Contracting Officer shall determine the appropriate reconciliation amount. Any disagreement shall be resolved pursuant to the disputes clause of the GTP 2.0 contract. Reconciliation amounts owed to either the GTP 2.0 Integrator or DLA will be settled on a quarterly basis or differently if mutually agreed by both parties. Unpaid balances carried over from previous month(s) will be used to determine the quarterly settlement that will be finalized by issuing a unilateral modification for the CLIN 0009 reconciliation amount mutually agreed between the GTP 2.0 Integrator and the Government or determined by the Contracting Officer. Payments owed to the GTP 2.0 Integrator will be payable upon modification execution with payment completed via modification to a current delivery order by providing for an additive CLIN for the lump sum payment. The GTP 2.0 Integrator will be notified of this delivery order action via copy of the modification to the DO at which time the GTP 2.0 Integrator will submit an invoice via WAWF for payment. Reconciliation amounts owed to the Government will be processed by a credit invoice applied to a government designated DO.

P2 - 16.3.1.1 In an attempt to reduce the frequency and size of reconciliation payments or invoice deductions, CLIN 0001 prices shall be updated effective on the first working day of July, October, January, and April for those NSNs: 1) whose average tire inventory unit cost (including due-ins) differ by more than 10% from their exiting CLIN 0001 price; or 2) whose existing CLIN 0001 price would cause variances of more than $1K each per month based on average tire inventory cost and AMD. No later than one week prior to the date that the CLIN 0001 price adjustment is due to take effect, the GTP 2.0 Integrator will provide DLA with a listing of CLIN 0001 NSNs to be adjusted, adjusted prices, and a snapshot of tire inventory and due-ins (quantity and cost) and AMD values by NSN to support each adjusted CLIN 0001 price.

P2 - 17.0 Addition / Deletion of Items for the GTP 2.0 contract Support

P2 - 17.1 Items may be added to the GTP 2.0 contract through bilateral modification with negotiated prices in accordance with DLAD Procurement Note L27 “Addition and Deletion of Items”. The Government will provide the GTP 2.0 Integrator with 30 days advance notice of its intent to add new items to the GTP 2.0 contract. Newly added items shall be supported by the GTP 2.0 Integrator as those items are priced via a Vendor Contract(s). Upon identification of the newly added item(s), the GTP 2.0 Integrator will confirm CLIN 0002, 0003 or 0004 pricing as established at Section B is valid for the newly added item(s) or submit other proposed pricing with supporting data within 30 days for Government evaluation.

P2 - 17.1.1 The GTP 2.0 Integrator will provide an informal breakdown of all CLIN costs for any added item(s) on the GTP 2.0 contract to the Contracting Officer during the Add-On process.

P2 - 17.2 Notwithstanding any term or condition in the GTP 2.0 contract to the contrary, the Government reserves the right to not add a new item(s) under the GTP 2.0 contract. If the Government is unable to establish a Vendor Contract based on a fair and reasonable price determination and / or if the GTP 2.0 Integrator is unable to provide total supply chain management and support of said item(s) at a fair and reasonable price when compared to the current pricing in the GTP 2.0 contract, the Government may utilize the terms and conditions detailed at Section P2 - 3.9 and its subparts.

P2 - 17.3 Notwithstanding any term or condition in the GTP 2.0 contract to the contrary, the Government reserves the right to unilaterally delete an item(s) from the GTP 2.0 contract after providing a 30-day advance notice to the GTP 2.0 Integrator without liability from the Government to the GTP 2.0 Integrator.

P2 - 17.4 The GTP 2.0 Integrator agrees to provide the Government with immediate, written notification of any known manufacturer discontinuations / obsolescence, including potential substitute or replacement items, if known. If the Government elects to include a substitute or replacement item in the GTP 2.0 contract, the GTP 2.0 contract will be

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modified accordingly.

P2 - 17.5 If an item is discontinued without replacement, the written notice should include a recommendation concerning the availability of items that are comparable in form, fit, and function. The GTP 2.0 Integrator shall not incur any costs related to alternate sources of supply without the express written approval of the Contracting Officer. The Government has the right to request a last time order, or series of orders, within 30 days after receiving written notification of the discontinued item after which the item will be deleted from the GTP 2.0 contract. The GTP 2.0 Integrator shall honor any last time order. If the GTP 2.0 Integrator is unable to fulfill the order, the GTP2.0 Integrator shall notify the Contracting Officer, in writing, within 10 days after issuance stating the full quantity is not available. The terms of such order(s) will be negotiated by the parties, including changes to the delivery schedule and maximum quantity available for shipment.

P2 - 18.0 CONUS / OCONUS Support

P2 - 18.1 The GTP 2.0 provides global shipments to military customers located CONUS and OCONUS, including U.S. Combatant Commands (COCOMs). The current COCOMs) that have been identified for GTP 2.0 Integrator customer support are:

P2 - 18.1.1 U.S. African Command (USAFRICOM)

P2 - 18.1.2 U.S. Central Command (USCENTCOM)

P2 - 18.1.3 U.S. European Command (USEUCOM)
P2 - 18.1.4 U.S. Northern Command (USNORTHCOM)

P2 - 18.1.5 U.S. Pacific Command (USPACOM)

P2 - 18.1.6 U.S. Southern Command (USSOUTHCOM)

P2 - 18.2 If the GTP 2.0 Integrator elects to Preposition Stock in an OCONUS location, the GTP 2.0 Integrator shall complete implementation / ramp up not to exceed 120 days. The GTP 2.0 Integrator is required to provide Implementation Plan reporting for any / all OCONUS Prepositioned Stocking identified under this requirement as detailed at Section P2 - 18.2.2 and its subpart.

P2 - 18.2.1 All activities detailed at Section P1 - 2.0 and its subparts, as applicable to Prepositioned Stocking support, shall be in place within 120 days after the GTP 2.0 Integrator notifies the Contracting Officer of its intention to Preposition Stock.

P2 - 18.2.1.1 The GTP 2.0 Integrator shall comply with the data reporting requirements in accordance with Section P2 - 16.0 and its subparts. The GTP 2.0 Integrator shall establish EDI capability in accordance with Section P2 - 16.2.3.

P2 - 18.2.1.2 Within 60 days of notifying the Contracting Officer, if the GTP 2.0 Integrator utilizes a warehouse(s) facility in support of an identified OCONUS location, the GTP 2.0 Integrator shall make its warehouse(s) available for inspection. The GTP 2.0 Integrator shall perform any effort necessary to meet all requirements set forth in Section P1 - 2.3, to include any corrective actions needed to the GTP 2.0 Integrator's warehouse(s) to ensure a proper storage environment.

P2 - 18.2.1.3 Within 75 days after notifying the Contracting Officer, the GTP 2.0 Integrator will complete coordination of Government identified system, connectivity via EDI transactions. Coordination will be conducted through the Contracting Officer, reference Section P1 - 2.4.

P2 - 18.2.1.4 Within 90 days after notifying the Contracting Officer, the GTP 2.0 Integrator shall put in place the infrastructure, material, systems, including full EDI capabilities, customer service, and business partnerships necessary to enable the GTP 2.0 Integrator to meet the Government's performance requirements, reference Section P1 - 2.5.

P2 - 18.2.2 The GTP 2.0 Integrator shall provide implementation reporting, in writing to the Contracting Officer, similar to the requirement at Section P1 - 1.2.1, at the minimum frequency:

P2 - 18.2.2.1 Every 30 days from GTP 2.0 contract award date;

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P2 - 18.2.2.2 Every 15 days for the last two (2) months prior to full execution; and,

P2 - 18.2.2.3 Every week of the last month prior to full execution.

P2 - 18.2.2.4 These reports must be submitted at a rate reflecting progress and actual completion of events toward implementation (i.e., those chronological events and milestones listed in the GTP 2.0 Integrator's Implementation Plan). Therefore, the Contracting Officer can form a reasonable belief that full GTP 2.0 OCONUS prepositioned stocking performance will be achieved by the end of the Implementation period, and that the corresponding percentage of completion has been achieved at each milestone.

P2 - 18.3 Selected Delivery Option Requirements

P2 - 18.3.1 The GTP 2.0 Integrator shall meet the selected Delivery Option requirements for the CONUS / OCONUS requirements as shown in Table B found in Section P2 - 8.0 and its subparts.

P2 - 18.3.2 The Government will select one (1) of the minimum TDD / LRT and FR requirement scenarios (95% or 97%) -- as determined to be in the best interest of the Government and incorporate the selected minimum requirement at GTP 2.0 contract award. The selected Delivery Option requirements timeframes specified in Table B, found in Section P2 - 8.0 and its subparts, apply and are reportable by Category. The GTP 2.0 Integrator should not plan to make performance tradeoffs where any customer or Category would be supported at less than 95 or 97 percent of the selected Delivery Option requirements.

P2 - 18.3.3 The GTP 2.0 Integrator is required to meet the FR and selected Delivery Option requirements by meeting an overall percentage of 95 or 97. Additionally, the GTP 2.0 Integrator shall meet an overall percentage of 95 or 97 for each of the following on time delivery categories: CONUS and OCONUS. Also, the GTP 2.0 Integrator must meet a percentage of 95 or 97 for on time delivery for all IPG 1. This applies to all customers. See the exceptions at Section P2 - 8.3.3 and its subpart.

P2 - 18.3.4 CONUS Warehousing / OCONUS Prepositioned Stocking decisions are the responsibility of the GTP 2.0 Integrator as determined by its planning model. The GTP 2.0 Integrator is required to meet the selected Delivery Option requirements specified at Table B, found in Section P2 - 8.0 and its subparts, for any orders, for any tire / NSN.

P2 - 18.3.4.1 For tires / NSNs not preposition stocked due to GTP 2.0 Integrator planning decisions as specified at Section P2 - 18.3.3, the GTP 2.0 Integrator assumes all transportation responsibilities, to include customs clearances, and all associated costs required to meet the selected Delivery Option requirements.

P2 - 18.4 CLIN 0003 prices established in the resulting GTP 2.0 contract shall be Firm Fixed Price for OCONUS execution.

P2 - 18.4.1 The GTP 2.0 Integrator shall invoice CONUS orders under CLIN 0002. OCONUS orders shall be invoiced under CLIN 0003. Under no circumstance would an order be invoiced for more than one of these CLINS on any order (CLINs 0002, 0003 or 0004). CONUS / OCONUS location is determined by final shipping destination by the GTP 2.0 Integrator.

P2 - 18.5 If the GTP 2.0 Integrator elects to preposition stock, when executing OCONUS prepositioned stocking support, the GTP 2.0 Integrator is required to utilize the Defense Transportation System (DTS) for its transportation of tires from the GTP 2.0 Integrator's CONUS location(s) to the identified GTP 2.0 Integrator OCONUS prepositioned stock location.

P2 - 18.5.1 For inventory planning / positioning, the GTP 2.0 Integrator shall assume the following DTS delivery days, by OCONUS COCOM, via DTS as shown in Table F below:

Table F
U.S. Combatant Command (COCOM) Estimated DTS Delivery Days

USAFRICOM 55

USCENTCOM 82

USEUCOM 58

USPACOM 35

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USSOUTHCOM 29

P2 - 18.5.2 The U.S. Transportation Command (USTRANSCOM) focal points, shipment schedules, and procedures for using DTS will be made available to the GTP 2.0 Integrator on the GTP 2.0 contract award date. Additionally, DLA Distribution focal points for the use of DTS will be identified, as applicable, during GTP 2.0 Integrator implementation.

P2 - 18.5.3 DTS is responsible for customs clearance from CONUS to the GTP 2.0 Integrator's identified OCONUS support location. The GTP 2.0 Integrator is responsible for any customs clearance from its OCONUS facility to the end destination as specified in the GTP 2.0 Integrator's DO and Vendor Shipment Module (VSM). The requirement for GTP 2.0 Integrator use of VSM is detailed at Section P2 - 24.2.2.

P2 - 18.5.4 The GTP 2.0 Integrator is responsible for ensuring its material is shipped through DTS.

P2 - 18.5.5 If the GTP 2.0 Integrator is unable to fulfill one (1) or more DO requirements within the required selected Delivery Option requirements due to insufficient GTP 2.0 Integrator inventory levels, the GTP 2.0 Integrator is required, upon identification of the insufficient inventory and within the required selected Delivery Option requirements timeframe, to ship sufficient inventory to fulfill the current requirement(s) via the fastest traceable means and sustain future requirements until a GTP 2.0 Integrator replenishment stock order can be delivered.

P2 - 18.5.5.1 The GTP 2.0 Integrator shall assume all transportation responsibilities, to include customs clearances, and all associated costs required to meet the selected Delivery Option requirements.

P2 - 18.6 OCONUS requirement(s) may be supported from a GTP 2.0 Integrator facility that is outside the boundaries of the executed location. For example, the GTP 2.0 Integrator may fulfill a DO for USEUCOM with prepositioned stocked inventory located in its USCENTCOM facility. The GTP 2.0 Integrator is responsible for all transportation responsibilities and costs from its facility used for prepositioned stocking to the delivery location identified in the applicable DO. Additionally, as authorized at Section P2 - 18.3.3, the GTP 2.0 Integrator may support OCONUS demands from its CONUS location(s) if it makes the decision not to preposition stock NSN(s) and in doing so, incurs all responsibilities and costs.

P2 - 18.7 If the GTP 2.0 Integrator elects to preposition stock, the cost of releveling prepositioned stock inventory will be borne by the GTP 2.0 Integrator. "Releveling" is defined as the GTP 2.0 Integrator's independent decision to move inventory between warehouse locations, including all CONUS and OCONUS GTP Integrator warehouse locations.

P2 - 18.8 Prepositioned Stock Exit Plan

P2 - 18.8.1 No later than 12 months prior to the end of the GTP 2.0 contract unless otherwise directed by the Contracting Officer, the GTP 2.0 Integrator shall submit, at no additional cost to the Government, an Exit Plan for each Prepositioned Stock location for approval by the Contracting Officer.

P2 - 18.9 OCONUS Retread Management

P2 - 18.9.1 For any OCONUS location, and as an exception to the baseline OCONUS retread management requirements at Sections P2 - 4.3 and P2 - 4.3.1, the GTP 2.0 Integrator may be required to pick up and return retreadable OCONUS tire carcasses to its CONUS facility for retread program management.

P2 - 18.9.1.1 The Contracting Officer will provide the GTP 2.0 Integrator written notice of OCONUS retread management execution and require implementation within 90 days. The Contracting Officer's notice may be provided during any Prepositioned Stock warehouse implementation or at any time during Preposition Stocking support execution.

P2 - 18.9.1.2 For any OCONUS retread management requirement, the GTP 2.0 Integrator shall be responsible for picking up reparable tire carcasses at the designated sites (unless otherwise noted by the Contracting Officer) and shipping these tire carcasses, via the GTP 2.0 Integrator's commercial transportation network, to the GTP 2.0 Integrator's CONUS facility for baseline retread program management as set forth at Section P2 - 4.0 and its subparts.

P2 - 18.9.1.2.1 PRT for OCONUS retread management is 10 calendar days and the PRT metric and reporting requirements as

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set forth at Section P2 - 6.0 and its subparts, applies.

P2 - 19.0 Reliability Management

P2 - 19.1 For all returned tires, including tires returned due to Vendor quality / performance failure, the GTP 2.0 Integrator shall implement a failure reporting and corrective action system to document the failures of each tire covered under the resulting Vendor Contract. If requested, the GTP 2.0 Integrator shall make this information available to the Government for review.

P2 - 20.0 Configuration Management

P2 - 20.1 The Government will maintain configuration control and change authority for all modifications or changes regarding GTP 2.0 support, on the resulting GTP 2.0 contract and supporting Vendor Contract(s).

P2 - 20.1.1 The Engineering Support Activity (ESA) for ground tires supported by the GTP 2.0 contract is GVSC located in Warren, MI.

P2 - 20.1.2 The ESAs for aircraft tires supported by the GTP 2.0 contract may vary and thus, the Contracting Officer shall be contacted when aircraft ESA coordination is necessary. Configuration changes, made pursuant to the Air Force LCC Program, are considered Government initiated and may result in an adjustment to the Vendor Contract price, thus affecting the Vendor Contract payment and DO invoiced price of the GTP 2.0 Integrator.

P2 - 20.2 If the GTP 2.0 Integrator believes it has found a better value configuration for the Government, the GTP 2.0 Integrator shall submit for approval to the Contracting Officer all known configuration changes that affect the supply of tires and include the impacted system, old and new part numbers, and the reason for the proposed change.

P2 - 20.3 Known configuration changes that affect FMS will be identified and forwarded to the Contracting Officer for consideration and include the impacted system, old and new part numbers, and the reason for the proposed change. The Contracting Officer will submit this information to DLA Headquarters and the appropriate International Logistics Control Organization to advise FMS customers.

P2 - 20.4 Configuration Management / Deviations

P2 - 20.4.1 The GTP 2.0 Integrator, through the Government's Vendor Contract(s), shall not supply any tire under the GTP 2.0 contract that incorporates a known departure from technical or contractual requirements unless a request for a deviation has been approved by the ESA. Authorized deviations are a temporary departure from the requirements only and do not authorize a change to the tire's configuration baseline.

P2 - 20.4.2 Deviation requests shall be prepared in accordance with DI-SESS-80640. Guidelines for preparing deviations may also be found in MIL-HDBK-61, Configuration Management Guidance and SAE EIA-649-1, Configuration Management Requirements for Defense Contracts and SAE EIA-649C, Configuration Management Standard**.** For all tires supplied by the GTP 2.0 Integrator under the resulting GTP 2.0 contract, deviations, waivers or engineering change proposals are not permitted until authorized in writing by the Contracting Officer.

P2 - 20.5 Notifications Relating to Configuration Management

P2 - 20.5.1 The GTP 2.0 Integrator shall monitor and immediately notify the Contracting Officer and supporting Vendor(s), in writing, of any known weapon system program developments or modifications that may impact the performance of these tires and / or require a change to a current tire configuration, especially those programs in which it is known that the tire manufacturers have been asked to participate in the development of or modification to a tire. The Contracting Officer will then take action as appropriate to coordinate with the ESA the possible configuration change(s) and any resulting addition, deletion or modification of a tire / NSN.

P2 - 21.0 Obsolescence Management

P2 - 21.1 The GTP 2.0 Integrator is responsible for managing tire obsolescence at the time of Vendor supply and GTP 2.0 Integrator acceptance into inventory over the period of performance of the GTP 2.0 contract, and notwithstanding any obsolescence issues or problems, the GTP 2.0 Integrator remains responsible for meeting all performance and other

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requirements of the GTP 2.0 contract.

P2 - 21.1.1 When notified of an obsolescence issue or potential obsolescence issue, the GTP 2.0 Integrator may need to purchase additional inventory due to diminishing manufacturing sources or the GTP 2.0 Integrator may be required to provide additional recommendations to support the obsolescence issue. The GTP 2.0 Integrator shall pay the Vendor(s) the applicable CLIN 0001 price per tire. The Government will pay the GTP 2.0 integrator upon its delivery of tires under the GTP 2.0 contract DOs.

P2 - 21.1.2 The GTP 2.0 Integrator shall provide the Government with obsolescence status briefs, as part of the periodic program reviews provided for under the GTP 2.0 contract. The obsolescence status briefs may be comprised of but not limited to notifying DLA of any tire(s) /NSN(s) becoming obsolete, inventory levels, and other issues that may impact customers. The Contracting Officer may request additional information be added to the obsolescence status briefs at no additional cost to the Government.

P2 - 21.2 For FMS support, any tire potentially obsolete to the U.S. Forces is to be submitted to the FMS users through Military Department case managers. FMS users then have a minimum of two (2) years to identify their lifetime requirements and submit said requirements before the tire is obsolete.

P2 - 22.0 Quality System Management

P2 - 22.1 GTP 2.0 Integrator shall maintain a quality system that meets the requirements of the most recent version of International Organization for Standardization (ISO) 9001. The GTP 2.0 Integrator shall be responsible for tire quality control from the receipt of material from the Vendor Contract(s) to order fulfillment. The GTP 2.0 Integrator is responsible for ensuring the appropriate KCC inspection is conducted for receipted tires. See Section P2 - 3.3.3 and its subparts for the requirement's definition of KCC inspection. The GTP 2.0 Integrator's quality management system / program shall be designed to promptly detect handling, storage and warehousing conditions that adversely affect performance and quality.

P2 - 22.2 Should the GTP 2.0 Integrator's system determine a quality problem (i.e., nonconformance) upon receipt of a tire(s), the GTP 2.0 Integrator shall follow the requirements set forth at Sections P2 - 3.3.3 and its subparts, as applicable.

P2 - 22.3 Government Access to Facilities

P2 - 22.3.1 The GTP 2.0 Integrator shall maintain a single point of contact to interface with the Government's tire logistics Program Manager or other designated focal point for the GTP 2.0 contract to ensure timely resolution of business and technical problems and implementation of corrective action. The Government reserves the right to perform inspections, at no additional cost to the Government, of the GTP 2.0 Integrator and / or subcontractors at any time the Government desires without notice to the GTP 2.0 Integrator including but not limited to site / plant inspections.

P2 - 22.3.2 The Government reserves the right to perform an onsite quality program review and evaluation of the GTP 2.0 Integrator and / or subcontractor facilities at any time during the period of performance of the GTP 2.0 contract. The Government will provide prior notice, at least 24 hours, beforehand and both the Government and GTP 2.0 Integrator shall take all appropriate actions to facilitate the review process.

P2 - 22.4 Quality Data

P2 - 22.4.1 The GTP 2.0 Integrator shall make the following information available within 14 days of the Contracting Officer's request:

P2 - 22.4.1.1 Quality control manual and procedures, work instructions and operation sheets;

P2 - 22.4.1.2 Results of periodic third-party audits and follow up corrective action(s) for any deficiencies noted;

P2 - 22.4.1.3 Results of scheduled internal quality system audits and follow up corrective action(s) for any deficiencies noted;

P2 - 22.4.1.4 Copies of ISO generated management reports tracking rework, customer complaints, delivery schedules, cost of quality, ordering, inventory, transportation, etc.; and

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P2 - 22.4.1.5 Approved supplier list and vendor ratings, including supplier tire(s) rejection rates and corrective action.

P2 - 23.0 Inspection and Acceptance and Free on Board (F.O.B.) Point P2 - 23.1

Inspection and Acceptance
P2 - 23.1.1 DOs to CONUS / OCONUS locations shall be subject to Inspection and Acceptance at Destination. DOs for FMS support are subject to Inspection and Acceptance at Origin, reference Section P2 - 7.2 and its subpart.

P2 - 23.2 F.O.B. Point

P2 - 23.2.1 For CONUS and OCONUS orders, delivery shall be F.O.B. Destination. For FMS orders, delivery shall be F.O.B. Origin, reference Section P2 - 7.2 and its subpart.

P2 - 24.0 Packaging and Marking

P2 - 24.1 Packaging for Delivery

P2 - 24.1.1 All CONUS and OCONUS orders and all FMS orders for tires that do not require a Special Packaging Instruction (SPI) as listed in Attachment 27, shall be prepared for and shipped in accordance with MIL-DTL-4M [Packaging of Tires and Inner Tubes (non-aircraft)] and ASTM-D3951 [Standard Practice for Commercial Packaging]. Tires shall be palletized in accordance with the latest revision of MIL-STD-147, with the additional requirement that aircraft tires receive a piece of ASTM D5118 double wall corrugated fiberboard, or equivalent, between the pallet and the bottom tire. These packaging requirements supersede those found in the NSN Product Item Description (PID) and Packaging Information found in Attachment 18 of the Request for Proposal (RFP) which was incorporated into the contract. For FMS orders for specific aircraft tires only, the aircraft tires shall be prepared in accordance with the SPIs as listed in Attachment 27.

P2 - 24.1.2 Every delivery order shipment shall have a packing slip or label that states the following: "All tires, except FMS orders, are warrantied to their destination by the Global Tires Program 2.0 (GTP 2.0) Integrator. If you receive tires that were damaged in transit, please contact them at (insert GTP 2.0 Integrator's phone number) or (insert GTP 2.0 Integrator's email) for an expedited replacement. For all other defects or non-transportation related damage, please submit a report in WEBSDR and DLA will coordinate with the vendor for a replacement. Warranty information is listed on the GTP webpage at: https://www.dla.mil/Land-and-Maritime/Business/Selling/Global-Tires-Program/."

P2 - 24.2 Marking for Shipments

P2 - 24.2.1 The GTP 2.0 Integrator shall comply with all applicable labeling, marking and documentation requirements specified by MIL-STD-129R, Military Marking for Shipment and Storage and DoD 4500.9-R, Defense Transportation Regulations (DTR), including use of Military Shipping Labels (MSLs), and bar coding in accordance with ISO / International Electrotechnical Commission (IEC) 16388 regardless of destination. Because this contract is for Direct Vendor Delivery (DVD) to customers, the Tire Integrator is specifically exempt from the identification text marking requirement for each individual tire in a palletized unit load required by MIL-STD-129. The requirements to label the palletized unit load itself and to label loose tires which are not palletized still apply.

P2 - 24.2.2 The GTP 2.0 Integrator shall utilize VSM for all GTP 2.0 DOs as follows:

1) To enter physical shipping information (e.g. weight and dimensions) and obtain the name and contract information for a commercial carrier that will pick up the FMS DO shipment from the GTP 2.0 Integrator's facility.
2) To confirm the "ship to" address for CONUS delivery orders.
3) To confirm the "ship to" address for OCONUS delivery orders.
a. For OCONUS DOs only, if VSM provides a CCP or Aerial Port, do not ship to the CCP or Aerial Port, the GTP 2.0 Integrator shall ship directly to the TAC 2 address.
b. For OCONUS DOs only, if VSM provides special instructions, the GTP 2.0 Integrator is instructed to gain prior approval from the Contracting Officer to ship to other than the TAC 2 address.
4) For all prepositioned stock replenishment shipments.
5) To generate MSLs.

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Form (CONTINUED)

If the ship to address that VSM generates for OCONUS DOs is a CONUS ship to address instead of the ultimate consignee's OCONUS delivery address (e.g. Mark For address) the GTP 2.0 Integrator instead will ship to the ultimate consignee's OCONUS delivery address. However, when no commercial means of shipment to the OCONUS delivery destination is reasonably available (e.g. because of war, insurrections, or natural disasters) the GTP 2.0 Integrator will request DLA's approval to ship to the CONUS delivery address identified by VSM. Any OCONUS DOs processed through VSM that results in delivery to a CONUS delivery address will be modified to a CONUS DO and the applicable CONUS Supply Chain Management Fee CLIN Pricing 0002 will apply. When processing an FMS requisition and the Ship To/Mark For address is an OCONUS location (i.e., the customer/country has no freight forwarder) the GTP 2.0 Integrator must process the order through DCMA's Shipping Instructions Request (SIR 2.0) and not VSM.

The GTP 2.0 Integrator shall establish a VSM profile using the website, https://vsm.distribution.dla.mil/net/secure_default.aspx. Any questions in establishing an account should be directed to the DLA Distribution at 1.800.456.5507 or delivery@dla.mil.

P2 - 24.3 Palletization

P2 - 24.3.1 Tires subject to palletization under the GTP 2.0 contract shall be palletized in accordance with the Palletization Sheet and Wood Packaging Material (WPM) requirements set forth via Attachment 16.

P2 - 24.3.2 Aircraft tire shipments weighing more than 150 pounds require palletization. Palletization is not required for aircraft tire shipments weighing less than 150 pounds.

P2 - 24.3.3 Ground tire shipments to any CCP, port or DoDAAC identified via Attachment 17 are subject to palletization, regardless of size, weight or quantity. Throughout the period of performance of the GTP 2.0 contract, the Government may add to Attachment 17, at no additional cost to the Government.

P2 - 24.3.4 The SPI listed for each NSN on Attachments 18 and 27 only apply to FMS orders. In addition, tires with SPIs for FMS orders shall only be shipped vertically.

P2 - 24.4 Aircraft Tires Color Coding, Aging Identification

P2 - 24.4.1 The tire shall have a color-coded tape for age identification using the color of tape in accordance with MS14113. Color used shall reflect the year of tire carcass and manufacturer, with the date and year superimposed on the tape.

P2 - 24.5 FMS Marking Instructions

P2 - 24.5.1 FMS shipments will be marked as prescribed by MIL-STD-129R and Military Standard Transportation and Movement Procedures (MILSTAMP), Chapter five (5), with the following minimum information:

P2 - 24.5.1.1 FMS case designator (shown in the "mark for" block of the shipping label or tag.)

P2 - 24.5.1.2 Requisition number

P2 - 24.5.1.3 Transportation priority

P2 - 24.5.1.4 Project name and number (if applicable)

P2 - 24.5.1.5 Shipped from address

P2 - 24.5.1.6 Ship to address

P2 - 24.5.1.7 Ultimate customer overseas address

P2 - 24.5.1.8 Mark for (if applicable)

P2 - 24.5.2 The Military Assistance Program Address Directory (MAPAD), DoD 4000.25-8-M is the directory of clear text addresses and shipping instructions used in the movement of tire(s) and distribution of documents for FMS shipments. The MAPAD is used by DoD services, the General Services Administration (GSA) and commercial firms under DoD contracts for

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Form (CONTINUED)

the shipment of FMS tire(s).

P2 - 24.5.3 As a DoD publication, MAPAD is authoritative. Shipping activities must conform to its directions regarding FMS shipments, to include Special Instruction Indicators, identified by the title, “Country Reps and / or Special Instructions”. Similarly, exceptions found in the MAPAD authorize deviation from normal service procedures directions for use of the MAPAD are contained in the directory itself. The website for the MAPAD is **https://www.dla.mil/Defense-Data-Standards/Committees/MAPAD/**

P2 - 25.0 Warehousing and Storage

P2 - 25.1 Warehousing and proper storage of the tires will be the responsibility of the GTP 2.0 Integrator. The GTP 2.0 Integrator shall ensure the tires are adequately protected from potential damage or deterioration.

P2 - 25.2 Storage Environment

P2 - 25.2.1 Aircraft tires

P2 - 25.2.1.1 Procedures for aircraft tires shall be in accordance with United States Air Force (USAF) TO-4T-1-3, Chapter 3 (which will be made available to the GTP 2.0 Integrator) or a commercial equivalent. To assist in preparing proposals, a copy of USAF TO-4T-1-3 may be obtained by submitting a request to the Contracting Officer via email at **charles.mielkeii@dla.mil.** The request must indicate that it is in relation to the GTP 2.0 contract and contains the following:

P2 - 25.2.1.1.1 Business and point of contact information of the requester to include his / her title, address, phone number and email.

P2 - 25.2.1.1.2 Statement that the requestor has the authority to request this document on behalf of their company.

P2 - 25.2.1.1.3 Statement that the requestor will ensure the document is only used to prepare proposals in response to the GTP 2.0 and will destroy all copies upon completion of the GTP 2.0 RFP and bidding process.

P2 - 25.2.1.1.4 Statement that the requestor will ensure compliance with all distribution statements, disclosure notices and destruction notices.

P2 - 25.2.1.1.5 Statement that the requestor understands there may be severe civil / criminal penalties for noncompliance with the above. The Government may refuse requests not containing this information or which do not appear to be in support of bid and proposal preparation.

P2 - 25.2.1.1.6 The Government reserves the right to investigate all requests for this document.

P2 - 25.2.2 Ground tires

P2 - 25.2.2.1 While awaiting shipment, tires shall be stored or kept in an area that most closely fits the following attributes:

P2 - 25.2.2.1.1 Clean

P2 - 25.2.2.1.2 Dry

P2 - 25.2.2.1.3 Dark
P2 - 25.2.2.1.4 Low humidity

P2 - 25.2.2.1.5 Moderate temperature

P2 - 25.2.2.1.6 Well ventilated

P2 - 25.2.2.1.7 The storage shall avoid areas that are wet, oily, greasy, in sunlight; have electric motors or any ozone generating equipment. Tires may be stored horizontally, but only in such a manner as to preclude distortion or damage which could prevent normal bead seating. The shelf life of ground tires shall not exceed five (5) years or 60 months, however; some ground tires have not to exceed six (6) years or 72 months from the date of manufacture. Any tire maintained in GTP 2.0

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Form (CONTINUED)

Integrator storage exceeding said requirement shall be identified as NRFI and will be disposed by the GTP 2.0 Integrator at its own expense and at no additional cost to the Government.

P2 - 25.3 Issuance and Handling of Stored Tires

P2 - 25.3.1 Ground tires

P2 - 25.3.1.1 Only RFI tires with more than 18 months of shelf-life remaining shall be issued to fill a customer demand, unless otherwise authorized by Contracting Officer.

P2 - 25.3.2 Shelf-Life Requirements

P2 - 25.3.2.1 The GTP 2.0 Integrator is responsible for using CFM stock first as specified in Section P1 - 3.5.2 and its subparts. If the shelf life of a tire in the GTP 2.0 Integrator's possession expires, the GTP 2.0 Integrator is fully responsible for the cost and disposal of the tire(s). Management of the Vendor Contract(s) tire(s) shall be captured in the Stock Status Report referenced in Section P2 - 15.0 and its subparts.

P2 - 26.0 Transportation

P2 - 26.1 CONUS Shipments

P2 - 26.1.1 For shipments to CONUS customers, the GTP 2.0 Integrator shall be responsible for the transportation and delivery of tire(s) to the required destination in accordance with the selected Delivery Option requirements and FR timeframes set forth at Sections P2 - 8.0 and P2 - 9.0 and their subparts, respectively. Shipments shall be made in accordance with the DoD 4500.9-R, DTR, Part II, Cargo Movement. The GTP 2.0 Integrator shall comply with State transportation laws and regulations as they apply to the movement of Government freight with a CONUS ship to address or in transit CONUS with an OCONUS customer.

P2 - 26.2 OCONUS Shipments

P2 - 26.2.1 The GTP 2.0 Integrator shall support OCONUS requirements as outlined in P2 - 18.1, which may go through the CCP and / or Aerial / Sea Ports as defined in the shipping instructions (obtained from VSM) and in accordance with the selected Delivery Option requirements and FR timeframes set forth at Sections P2 - 8.0 and P2 - 9.0 and their subparts, respectively. Shipments shall be made in accordance with the DoD 4500.9-R, DTR, Part II, Cargo Movement. The requirements herein also apply to GTP 2.0 Integrator prepositioned stocked inventory shipments under CLIN 0003 unless otherwise directed by the Contracting Officer.

P2 - 26.3 FMS Shipment

P2 - 26.3.1 The GTP 2.0 Integrator shall support FMS requirements in accordance with the selected Delivery Option requirements and FR timeframes set forth at Sections P2 - 8.0 and P2 - 9.0 and their subparts, respectively. FMS shipments will be marked as prescribed by MIL-STD-129 and MILSTAMP, DoD 4500.32-R. In addition to the requirements for marking all shipments under the GTP 2.0 contract, FMS shipments will be marked with the FMS Case number and extended dollar value. This data is identified on the MILSTRIP requisition.

P2 - 26.3.2 Shipping of FMS requisitions will be in accordance with the MAPAD, which is the directory of clear text addresses and shipping instructions used in the movement of tire(s) and distribution of documents for FMS shipments. The web site for the MAPAD is https://**www.transactionservices.dla.mil/daashome/mapad.asp.**

P2 - 26.3.3 Each MAPAD shipment requires a Military Assistance Program Address Code (MAPAC). Once created, the Ship to MAPAC and Mark for MAPACs are entered into the MAPAD web site as codes to receive the full text shipping addresses.

P2 - 26.3.4 The MAPAC appears as a six-position code in the MAPAD and is constructed from selected codes located in various data fields of the 80-record position (rp) MILSTRIP requisition. Specifically, MILSTRIP requisition rps 31, 32, 33,

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Form (CONTINUED)

45, 46, and 47 provide the information necessary to construct a MAPAC.

P2 - 26.3.5 The first position of the MAPAC is rp 45 which is the 1st position of the Supplementary Address (SUPAD). The second and third positions of the MAPAC are rps 31 and 32 which are the 2nd and 3rd positions of requisition document numbers Unit Identification Code (UIC) field. For a “Ship To” MAPAC with shipment going to a freight forwarder, the fourth and fifth positions will always contain zeros and the sixth position rp 47 which is the 3rd position of the SUPAD indicates the freight forwarder code. For a “Mark For” MAPAC, the entry in MILSTRIP record position 33 (3rd position of requisition document numbers UIC field) indicates the in-country destination Mark For address included in the documentation and on the shipping label. Positions one (1), two (2) and three (3) remain the same as for the Ship To MAPAC, but position four (4) will include the Mark For code (rp 33) and positions five (5) and six (6) will always be zero.

P2 - 26.3.6 The Ship to MAPAC and Mark for MAPACs are entered into the MAPAD as codes to receive the full text addresses.

P2 - 26.3.7 Canada has no Freight Forwarders thus shipments to Canada are made directly to the in-country destination. Consequently, Canadian requisition number and supplementary addresses are different to accommodate the unique construction of their MAPACs. To construct a Canadian MAPAC, use the Service Code from rp 45 (1st position of the SUPAD); next rps 31 and 32 [two (2) digit country code]; next rp 33 (zero filled); and lastly, rps 46 and 47 from the supplementary address.

P2 - 26.3.8 After the MAPAC code is entered, a list of addresses will be displayed with the Type Address Code(s) (TACs) next to each address. In almost all instances the GTP 2.0 Integrator will use one (1) or two (2) of the following three (3) TAC addresses:

P2 - 26.3.8.1 TAC 2: Use this address for unclassified surface / air freight.

P2 - 26.3.8.2 TAC M: Use this address as the Mark for address (final destination of items).

P2 - 26.3.8.3 TAC 3: Use this address to send Notice of Availability (NOA) when using Offer. Release Code (ORC) Y or Z. Exception - NOA for classified items must be directed to the FMS customer's “Country Representative” identified on the country cover page of the MAPAD).

P2 - 26.4 Transportation of Used / Scrap Tires

P2 - 26.4.1 The GTP 2.0 Integrator shall comply with, and ensure that all applicable subcontractors comply with, all requirements of the U.S. Department of Transportation (DOT) Regulations, applicable State and local regulations and requirements, applicable to transportation of the used / scrap tires under the GTP 2.0 contract.

P2 - 26.4.2 Permits

P2 - 26.4.2.1 The GTP 2.0 Integrator shall, at no additional cost to the Government, be responsible for obtaining any necessary licenses and / or permits, and for complying with any applicable country, State, Federal, and local laws, codes, and regulations in connection with the period of performance of the GTP 2.0 contract. This includes acquiring any required permits or registration necessary to operate on any of the installations listed in the GTP 2.0 contract or for transporting used / scrap tires.

P2 - 26.4.3 Shipping Documentation

P2 - 26.4.3.1 A U.S. State tire disposal manifest / shipping paper must be used when applicable / required for transporting used / scrap tires. If a specific tire manifest / shipping paper is not required, the GTP 2.0 Integrator must comply with the applicable Federal, State or local shipping paper requirements.

P2 - 26.4.3.2 For the purposes of the GTP 2.0 contract, when a manifest is not required, unless otherwise specified by State, Federal or local shipping paper requirements, the GTP 2.0 Integrator is required to ensure that used / scrap tires offered for transportation are properly described on a bill of lading.

P2 - 26.4.3.3 The GTP 2.0 Integrator shall obtain, prepare and maintain on file all manifests, bills of lading or other shipping

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Form (CONTINUED)

papers for acceptance of waste into a State approved facility. The GTP 2.0 Integrator shall provide copies of the completed form(s), for review by the Government within five (5) business days of a request. Each pickup manifest / shipping paper (i.e., with a Government activity identified as a generator) shall be clearly and distinctly marked with the name of the generators.

P2 - 26.4.3.4 A copy of all manifests / shipping papers, signed by the designated State approved facility, shall be maintained on file and upon request furnished to the Government within five (5) business days of the request.

P2 - 27.0 Customer Service Support

P2 - 27.1 The GTP 2.0 Integrator shall provide customer service support for all areas covered in the GTP 2.0 contract, which includes helping customers, service representatives, personnel receiving logistical support, and maintenance personnel responsible for the mounting and removal of the tire. The GTP 2.0 Integrator shall provide this support in a manner and within a time frame that is both beneficial to the customer and responsive to the customers' needs.

P2 - 27.2 The GTP 2.0 Integrator shall help all customers based on the needs of the customer(s) and the application of each tire / NSN. At a minimum, this assistance shall include:

P2 - 27.2.1 Maintain a call center 24 hours / 7 days a week and market its single, worldwide support telephone number to supported organizations and personnel.

P2 - 27.2.2 Providing assistance on requisition and in transit status.

P2 - 27.2.3 Provide assistance and advice on tire applications. If the assistance requested is outside the technical scope / capacity of the GTP 2.0 Integrator, the GTP 2.0 Integrator shall forward the request to the Contracting Officer.

P2 - 27.2.4 Respond to and provide technical support and solutions for quality issues as it relates to P2 - 3.3.5.1.2 and P2 - 3.3.5.1.4.1, to include Supply Discrepancy Reports (SDRs) but not Product Quality Deficiency Reports (PQDRs) which are issued directly from the customer directly to DLA. SDRs relate to discrepancies such as problems with shipped quantities, packaging and labeling, shelf life and other supply related issues arising from tire shipment and use, unrelated to end item quality. PQDRs relate to a defect in manufacturing such as a latent detects (not seen) arising prior to use of the tire.

P2 - 27.2.5 Conduct an annual Tire Manufacturer Conference (subsequent to the most recent PRB) to provide a forum for manufacturers, not limited to existing Vendors, to discuss demands and other issues directly with the Government.

P2 - 27.3 Customer interaction outside of any requirements noted above shall be requested and coordinated through the Contracting Officer and / or DLA Program Manager. The GTP 2.0 Integrator shall not request visits outside the scope of the GTP 2.0 contract. Unless otherwise approved by the Contracting Officer, customer visit requests shall not exceed two (2) visits, annually.

P2 - 28.0 Operating Environment

P2 - 28.1 The data provided in the Attachments relate to tire demand projections based on recent historical demand and operating conditions, which may not reflect the conditions that the GTP 2.0 Integrator will encounter. These figures are based on demand history in a changing environment and / or best faith estimates. As military operations either increase or decrease, it is anticipated that operations impacting the supply of tires will also either increase or decrease. All historical and projected tire data is therefore provided for informational purposes only, and the Government neither warrants nor guarantees that any of the data and percentages provided herein will be realized by the GTP 2.0 Integrator during the period of performance of the GTP 2.0 contract.

P2 - 29.0 Contract Exit Phase Integrated Process Team

P2 - 29.1 During Phase II, to the extent possible and other than in the event of termination, 12 months prior to commencement of Phase III, the Government and the GTP 2.0 Integrator shall establish a joint Exit Transition Integrated Process Team (IPT). The Exit Transition IPT shall conduct monthly meetings to ensure that established milestones, schedules, costs and performance requirements are being conducted to support a seamless transition and execution of Phase III.

P2 - 30.0 Cybersecurity Requirements

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P2 - 30.1 Under DFARS 252.204-7012 Covered Defense Information (CDI) means unclassified Controlled Technical Information (CTI) or other information [as described in the Controlled Unclassified Information (CUI) Registry at **http://www.archives.gov/cui/registry/category-list.html** that requires safeguarding or dissemination controls pursuant to and consistent with law, regulations, and Government wide policies, and is:

P2 - 30.1.1 Marked or otherwise identified in the contract, task order, or DOs and provided to the contractor by or on behalf of DoD in support of the performance of the GTP 2.0 contract; or

P2 - 30.1.2 Collected, developed, received, transmitted, used, or stored by or on behalf of the contractor in support of the performance of the GTP 2.0 contract.

P2 - 30.2 The GTP 2.0 Integrator shall protect all Covered Defense Information (CDI) collected, processed, displayed, developed, received, transmitted, used, or stored by or on behalf of the contractor in support of the performance of the GTP 2.0 contract. This includes but is not limited to the information types below found in the Controlled Unclassified Information (CUI) Registry (**http://www.archives.gov/cui/registry/category-list.html):**

P2 - 30.2.1 CTI

P2 - 30.2.1.1 NSN has demilitarization code other than A; or

P2 - 30.2.1.2 Technical Data Package contains document(s) with distribution statement other than A; or

P2 - 30.2.1.3 Identification of export control; or

P2 - 30.2.1.4 Information contained in the customer and / or applicable agency specific critical information list. For DLA, if CTI is included in the technical data package for an acquisition it will specifically identify in the Purchase Item Description.

P2 - 30.2.2 Financial

P2 - 30.2.2.1 Electronic Fund Transfer

P2 - 30.2.2.2 Procurement and Acquisition

P2 - 30.2.2.3 Proprietary Business Information

P2 - 30.2.2.3.1 Manufacturer

P2 - 30.2.2.4 System for Award Management

P2 - 30.3 Independent Verification and Validation

P2 - 30.3.1 In addition to adhering to the cybersecurity requirements as outlined in DFARS Clause 252.204-7012 "Safeguarding Covered Defense Information and Cyber Incident Reporting", specifically the derived requirements in the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171 "Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations", as it relates to "security and risk assessments", the contractor shall:

P2 - 30.3.1.1 Upon request, provide the Contracting Officer a copy of the most current plan of action to mitigate or corrected identified weakness and vulnerabilities within information system(s) owned and operated by the contractor, which enables the contractor's ability to meet the requirements / deliverables outlined within the GTP 2.0 RFP.

P2 - 30.3.1.2 Upon request, provide the Contracting Officer documentation verifying compliance with NIST SP 800-171 requirement 3.11.1. Periodically assess the risk to organizational operations (including mission, functions, image, or reputation), organizational assets, and individuals, resulting from the operation of organizational systems and the associated processing, storage, or transmission of CUI and the relevant NIST SP 800-53 security controls RA-3 Risk Assessment.

P2 - 30.3.1.3 Allow DLA's Cyber Assessment Team or a 3rd Party Assessor (DLA will be privy to all the standards and requirements of the 3rd Party Assessor prior to agreeing to this) to perform a security assessment (Blue Team review,

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Form (CONTINUED)

penetration test, etc.) of the information systems owned and operated by the contractor or subcontract that are / will be collecting, processing, displaying developing, receiving, transmitting, using, and / or storing CDI or mission critical information as defined in DFARS 252.204-7012. This will be a measured assessment with pre-defined Internal Protocol (IP) address ranges identified up front and will include technical and operational reviews designed to test the rigor of all required security controls implemented.

P2 - 30.3.1.3.1 If this assessment is to be performed by DLA's Cyber Assessment Team, the rules of engagement that will govern this action will be provided to the contractor within 90 days of the actual engagement.

P2 - 30.4 Continuity of Operations

P2 - 30.4.1 Upon request, provide the Contracting Officer documentation verifying compliance with NIST SP 800-171 requirement 3.8.9 Protect the confidentiality of backup CUI at storage locations.

P2 - 30.5 Other Safeguarding or Reporting Requirements

P2 - 30.5.1 The cybersecurity requirements identified for the GTP 2.0 contract in no way abrogates the GTP 2.0 Integrator's responsibility for other safeguarding or cybersecurity related reporting, etc., as it pertains to its covered information systems as required by other applicable clauses within this contract, or because of other applicable U.S. Government statutory or regulatory requirements.

P2 - 30.6 Subcontracts

P2 - 30.6.1 The GTP 2.0 Integrator shall include all the cybersecurity requirements detailed above in all subcontracts and agreements with applicable 3rd parties that is / will be processing, storing, or displaying CDI in performance of the GTP 2.0 contract.

P2 - 30.7.1 The GTP 2.0 Integrator shall include all the cybersecurity requirements detailed above and all subcontracts and agreements with applicable 3rd parties that is / will be collecting, processing, displaying, developing, receiving, transmitting, using, and / or storing CDI in performance of the GTP 2.0 contract.

P2 - 31.0 Delivery Order Administration

P2 - 31.1. Routine Delivery Order (DO) modifications will be negotiated and agreed to by the parties in writing. Upon written agreement of the parties, the Government is authorized to issue routine DO modifications unilaterally. The written agreement shall be incorporated by reference into the corresponding unilateral modification.

P2 - 31.1.1. For the purposes of this section, “in writing” includes email correspondence, Post Award Requests (PARs) submitted through the EBS platform and other forms of written communications between the parties.

P2 - 31.1.2 Routine DO modification is defined as a modification resulting from circumstances that arise often and regularly in the administration of the GTP 2.0 contract, including the following:

a) Delivery extensions due to exceptions authorized by P2 --8.3.3.2;
b) Fill Rate extensions due to exceptions authorized by P2 --9.3.2.2;
c) Approved Government or GTP 2.0 Integrator requested cancellations (partial and full);
d) Cancellations reasonably required after an NSN is removed from the GTP 2.0 pursuant to P2 --17.3;
e) Disposition of Reconciliation amounts owed to the parties pursuant to P2 --16.3.1;
f) Disposition of monthly amounts owed to the GTP 2.0 Integrator under the used/scrap and retread programs (P2 --4.0 & P2 --5.0); and,
g) Other routine modifications to which the parties agree in advance.

P2 - 31.1.3 All unilateral modifications meeting the conditions in this section shall be binding on the parties regardless of issue

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Form (CONTINUED)

date.

P2 - 31.2 The Government may elect to forego routine DO modifications for delivery extensions for less than 30 days. In this event, the Government shall adjust the Government identified system performance metrics to account for the approved extension.

P3 - PWS FOR PHASE III, CONTRACT EXIT

P3 - 1.0 Introduction

P3 - 1.1 Phase III encompasses those procedures and corresponding timeframes necessary to ensure the orderly and efficient transfer of supply chain service performance upon completion of Phase II or termination of the GTP 2.0 contract, if necessary.

P3 - 1.2 Phase III commences upon the effective date of the GTP 2.0 contract Phase III contract modification or, in the event of termination for the Government's convenience or for cause, upon the GTP 2.0 Integrator's receipt of a termination notice from the Government, whichever occurs first.

P3 - 2.0 On Hand Balances and Projected Balances at GTP 2.0 Contract End Date

P3 - 2.1 Within 30 days of the commencement of the GTP 2.0 contract Phase III and at the end of base year five (5) of the GTP 2.0 contract term or at the end of any option period as directed by the Contracting Officer, the GTP 2.0 Integrator shall provide, in writing and at no additional cost to the Government, the current status and the projected status at of the end of Phase II and Phase III for the quantity and identification of CFM available at the end of the GTP 2.0 contract.

P3 - 2.2 The Contracting Officer may request the data identified herein from the commencement of the GTP 2.0 contract Phase III and the end of the base period or end any option period, at no additional cost to the Government.

P3 - 3.0 GTP 2.0 Integrator Supply of GTP 2.0 Inventory

P3 - 3.1 Should the Government terminate the GTP 2.0 contract during the first 30 months, the GTP 2.0 Integrator shall ensure the inventory level is equal to three (3) months' supply based on the most recent ADQ data as updated by the Government during the GTP contract performance and ship the same level and mix of RFI tires for each tire / NSN designated in inventory upon the follow on contract start date to a site to be determined by the Government. This inventory level is computed as three (3) times the average monthly demand of a previous 12-month consecutive period, mutually agreed upon by the Government and GTP 2.0 Integrator and incorporated via contract modification to the GTP 2.0 contract. This information shall be provided and / or updated to the Contracting Officer, in writing, upon request, and at no additional cost to the Government. The GTP 2.0 Integrator is responsible for all transportation costs associated with this inventory.

P3 - 3.2 After the first 30 months of contract performance, if the GTP 2.0 contract is terminated or otherwise ends and the GTP 2.0 Integrator has not been awarded a follow-on contract to continue total supply chain management and support of tires, the GTP 2.0 Integrator shall ensure an on-hand balance of RFI tires not to exceed three (3) months of inventory. This inventory is computed as three (3) times the average monthly demand of a previous 12-month consecutive period, mutually agreed upon by the Government and GTP 2.0 Integrator, and incorporated via contract modification to the GTP 2.0 contract. The Government, GTP 2.0 Integrator and the Government designated follow-on Integrator shall coordinate the shipment of this inventory either to the follow-on Integrator or directly to the end users. This information shall be provided and / or updated to the Contracting Officer, in writing, upon request, and at no additional cost to the Government. The GTP 2.0 Integrator is responsible for all transportation costs associated with this inventory.

P3 - 3.2.1 If the GTP 2.0 Integrator is awarded a follow-on (successor) contract to continue supply chain management, the contractor is permitted to transfer GTP 2.0 inventory in accordance with the terms and conditions outlined in the follow-on contract. However, GTP 2.0 Integrator is not permitted to invoice for any supply chain management costs incurred with respect to the transferred inventory or resulting from the transfer. P3 - 3.3 and its subparts and P3 - 3.4.3 and its subparts are only applicable insofar as the GTP 2.0 Integrator has not been awarded the follow-on contract.

P3 - 3.3 The follow-on Integrator shall purchase a three (3) month inventory target of RFI tires at the current applicable CLIN

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Form (CONTINUED)

0001 price plus CLIN 0002 (or 0003, or 0004) pricing. For ground tires, said tire stock shall have no less than 21 months of shelf life remaining at GTP 2.0 contract expiration. The follow-on Integrator shall be provided with the option to inspect the tire inventory prior to any purchase with any disputes to be reconciled by the Contracting Officer.

P3 - 3.3.1 For RFI retreadable tires identified at CLINs 0006 and 0007 of Attachment 6, in addition to the charges established at Section P3 - 3.3, the charge to the follow-on Integrator is the applicable CLIN 0006 and 0007 prices.

P3 - 3.3.1.2 For NRFI non-retreadable tires identified at CLIN 0005 of Attachment 10, in addition to the charges established at Section P3 - 3.3, the charge to the follow-on Integrator is the applicable CLIN 0005 price.

P3 - 3.3.2 GTP 2.0 CFM inventory may be purchased as early as 60 days prior to the end of the GTP 2.0 contract. The timeframe for purchase of CFM shall be executed similar to the GTP 2.0 Integrator CFM purchase at Section P1 - 3.0 and its subparts, Stage 1 inventory purchase completed no later than 15 days prior to the end of the GTP 2.0 contract and Stage 2 purchase completed no later than 30 days after the end of the GTP 2.0 contract. Phased (one-half each phase) purchasing shall provide continuous customer support during the transition.

P3 - 3.4 Sale of Retread Tire Carcasses

P3 - 3.4.1 Should the Government terminate the GTP 2.0 contract during the first 30 months, the GTP 2.0 Integrator shall provide the NSNs and applicable quantity and tonnage of its retread tire carcass inventory for purchase available under the GTP 2.0 contract at 2% of the applicable NSN unit price established in the GTP 2.0 contract to the follow-on Integrator. The GTP 2.0 Integrator shall ship this inventory to a site to be determined by the Government. This information shall be provided and / or updated to the Contracting Officer, in writing, upon request, and at no additional cost to the Government. The GTP 2.0 Integrator is responsible for all transportation costs associated with this inventory. The follow-on Integrator shall be provided with the option to inspect the retread tire carcass inventory prior to any purchase with any disputes to be reconciled by the Contracting Officer.

P3 - 3.4.2 After the first 30 months of GTP 2.0 contract performance, if the GTP 2.0 contract is terminated or otherwise ends and the GTP 2.0 Integrator has not been awarded a follow-on contract to continue total supply chain management and support of tires, the GTP 2.0 Integrator shall provide the NSNs and applicable quantity and tonnage of its retread tire carcass inventory for purchase to the follow-on Integrator. This information shall be provided and / or updated to the Contracting Officer, in writing, upon request, and at no additional cost to the Government. The GTP 2.0 Integrator is responsible for all transportation costs associated with the retread tire carcass inventory.

P3 - 3.4.2.1 If the GTP 2.0 Integrator is awarded a follow-on (successor) contract to continue supply chain management, the contractor is permitted to transfer GTP 2.0 carcass inventory in accordance with the terms and conditions outlined in the follow-on contract. However, GTP 2.0 Integrator is not permitted to invoice for any supply chain management costs incurred with respect to the transferred inventory or resulting from the transfer. P3 - 3.4.3 and its subparts are only applicable insofar as the GTP 2.0 Integrator has not been awarded the follow-on contract.

P3 - 3.4.3 The follow-on Integrator will purchase any remaining retread tire carcass inventory at 2% of the current applicable CLIN 0001 price, by NSN. The follow-on Integrator shall be provided with the option to inspect the retread tire carcass inventory prior to any purchase with any disputes to be reconciled by the Contracting Officer. The follow-on Integrator shall be responsible for the cost of shipping said retread carcass inventory to its warehouse facilities.

P3 - 3.4.3.1 The retread tire carcass inventory may be purchased as early as 60 days prior to the end of the GTP 2.0 contract.

P3 - 4.0 Data

P3 - 4.1 The GTP 2.0 Integrator shall provide the Government with all historical data collected during the GTP 2.0 contract performance regarding the supply chain management of each tire under said contract and at a minimum consistent with the data requirements set forth at Sections P2 - 3.4, P2 - 15.0 and P2 - 16.0 and their subparts, respectively. The Contracting Officer may request this data in a format suitable to the Government prior to the start of the Exit Phase and every 30 days or more frequent intervals thereafter during Phase III. All data provided herein shall be delivered to the Government with unlimited rights marked in accordance with DFARS 252.204-7012 and shall not be identified as Proprietary Data.

P3 - 4.2 The GTP 2.0 Integrator shall provide the Government with a list of tires that are known / expected to become obsolete

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Form (CONTINUED)

within the ensuing six (6) month period after the GTP 2.0 contract has been completed. It is not intended that this list shall require any additional effort on the part of the GTP 2.0 Integrator beyond what the GTP 2.0 Integrator would normally do as part of its ongoing efforts under its obsolescence management and obsolescence status brief requirements under the GTP 2.0 contract, but the list shall include information reasonably available or known to the GTP 2.0 Integrator as a result of those ongoing activities.

P3 - 4.3 Monitoring of Phase III GTP 2.0 Integrator Tire Inventory Levels

P3 - 4.3.1 The GTP 2.0 Integrator shall maintain no more than a three (3) month inventory level as detailed at Section P3 - 3.2. In the event the GTP 2.0 Integrator can substantiate a need for inventory levels higher than three (3) months' worth of tires during the final six (6) months of the GTP 2.0 contract, the GTP 2.0 Integrator will coordinate with the Contracting Officer prior to procuring inventory more than the three (3) month level to mutually agree on appropriate levels considering the circumstances. Examples of this type of situation would include minimum production run requirements under the Vendor Contract requirements or surges in demand. The GTP 2.0 Integrator shall submit, in writing to the Contracting Officer, a rationale to substantiate any inventory buys that place it beyond the three (3) month inventory level for any NSN. The Contracting Officer will notify the GTP 2.0 Integrator, in writing, whether the additional inventory level purchase is authorized.

P3 - 5.0 Buy Around Authority

P3 - 5.1 The GTP 2.0 Integrator shall provide the Government 10 days advance notice, as feasible, when the GTP 2.0 Integrator identifies a perceived break in supply. It is recognized that a significant surge in demand could minimize the GTP 2.0 Integrator's ability to provide this notification and in that case, immediate notification is required. Significant surge in demand is defined as three (3) times the monthly demand as calculated in Section P3 - 3.2. In this event, notwithstanding any term in the GTP 2.0 contract to the contrary, the Government shall have automatic approval to buy the tire(s) / NSN(s) outside of the GTP 2.0 contract without liability to the GTP 2.0 Integrator throughout the remaining period of performance of the GTP 2.0 contract.

SECTION D - PACKAGING AND MARKINGS

D.1 The GTP 2.0 NSN Product Item Description (PID) and Packaging information is found in the GTP 2.0 RFP as Attachment 18 that corresponds to the current tire / NSN listing found in the GTP 2.0 RFP Attachment 4.

Part 12 Clauses

52.212-4 CONTRACT TERMS AND CONDITIONS -- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2023) FAR

CLAUSES ADDED TO PART 12 BY ADDENDUM

52.203-3 GRATUITIES (APR 1984) FAR

52.203-6 RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT (JUN 2020) FAR

52.203-6 RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT - ALTERNATE I (NOV 2021) FAR

52.203-12 LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (JUN 2020) FAR

52.203-13 CONTRACTOR CODE OF BUSINESS ETHICS AND CONDUCT (NOV 2021) FAR

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Part 12 Clauses (CONTINUED)

52.203-19 PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS (JAN 2017) FAR

252.203-7000 REQUIREMENTS RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (SEP 2011) DFARS

252.203-7002 REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (DEC 2022) DFARS

52.204-10 REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARDS (JUN 2020) FAR

52.204-19 INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS (DEC 2014) FAR

52.204-7 SYSTEM FOR AWARD MANAGEMENT (NOV 2024) FAR

52.204-13 SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (OCT 2018) FAR

52.204-14 SERVICE CONTRACT REPORTING REQUIREMENTS (OCT 2016) FAR

52.204-15 SERVICE CONTRACT REPORTING REQUIREMENTS FOR INDEFINITE-DELIVERY CONTRACTS (OCT 2016) FAR

52.204-18 COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE (AUG 2020) FAR

52.204-21 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (NOV 2021) FAR

252.204-7000 DISCLOSURE OF INFORMATION (OCT 2016) DFARS

252.204-7003 CONTROL OF GOVERNMENT PERSONNEL WORK PRODUCT (APR 1992) DFARS

252.204-7004 ANTITERRORISM AWARENESS TRAINING FOR CONTRACTORS (JAN 2023) DFARS

252.204-7009 LIMITATIONS ON THE USE OR DISCLOSURE OF THIRD-PARTY CONTRACTOR REPORTED CYBER INCIDENT INFORMATION (JAN 2023) DFARS

252.204-7012 SAFEGUARDING COVERED DEFENSE INFORMATION AND CYBER INCIDENT REPORTING (DEVIATION 2024-O0013) (MAY 2024) DFARS

(a) *Definitions.* As used in this clause

Adequate security means protective measures that are commensurate with the consequences and probability of loss, misuse, or unauthorized access to, or modification of information.

Compromise means disclosure of information to unauthorized persons, or a violation of the security policy of a system, in which unauthorized intentional or unintentional disclosure, modification, destruction, or loss of an object, or the copying of information to unauthorized media may have occurred.

Contractor attributional/proprietary information means information that identifies the contractor(s), whether directly or indirectly, by the grouping of information that can be traced back to the contractor(s) (e.g., program description, facility locations), personally identifiable information, as well as trade secrets, commercial or financial information, or other commercially sensitive information that is not customarily shared outside of the company.

Controlled technical information means technical information with military or space application that is subject to controls on the access, use, reproduction, modification, performance, display, release, disclosure, or dissemination. Controlled technical information would meet the criteria, if disseminated, for distribution statements B through F using the criteria set forth in DoD Instruction 5230.24, Distribution Statements on Technical Documents. The term does not include information that is lawfully publicly available without restrictions.

Covered contractor information system means an unclassified information system that is owned, or operated by or for, a contractor and that processes, stores, or transmits covered defense information.

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Part 12 Clauses (CONTINUED)

Covered defense information means unclassified controlled technical information or other information, as described in the Controlled Unclassified Information (CUI)

Registry at http://www.archives.gov/cui/registry/category-list.html, that requires safeguarding or dissemination controls pursuant to and consistent with law, regulations, and Governmentwide policies, and is --

(1) Marked or otherwise identified in the contract, task order, or delivery order and provided to the contractor by or on behalf of DoD in support of the performance of the contract; or

(2) Collected, developed, received, transmitted, used, or stored by or on behalf of the contractor in support of the performance of the contract.

Cyber incident means actions taken through the use of computer networks that result in a compromise or an actual or potentially adverse effect on an information system and/or the information residing therein.

Forensic analysis means the practice of gathering, retaining, and analyzing computer-related data for investigative purposes in a manner that maintains the integrity of the data.

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information.

Malicious software means computer software or firmware intended to perform an unauthorized process that will have adverse impact on the confidentiality, integrity, or availability of an information system. This definition includes a virus, worm, Trojan horse, or other code-based entity that infects a host, as well as spyware and some forms of adware.

Media means physical devices or writing surfaces including, but is not limited to, magnetic tapes, optical disks, magnetic disks, large-scale integration memory chips, and printouts onto which covered defense information is recorded, stored, or printed within a covered contractor information system.

Operationally critical support means supplies or services designated by the Government as critical for airlift, sealift, intermodal transportation services, or logistical support that is essential to the mobilization, deployment, or sustainment of the Armed Forces in a contingency operation.

Rapidly report means within 72 hours of discovery of any cyber incident.

Technical information means technical data or computer software, as those terms are defined in the clause at DFARS 252.227-7013, Rights in Technical Data --Other Than Commercial Products and Commercial Services, regardless of whether or not the clause is incorporated in this solicitation or contract. Examples of technical information include research and engineering data, engineering drawings, and associated lists, specifications, standards, process sheets, manuals, technical reports, technical orders, catalog-item identifications, data sets, studies and analyses and related information, and computer software executable code and source code.

(b) *Adequate security*. The Contractor shall provide adequate security on all covered contractor information systems. To provide adequate security, the Contractor shall implement, at a minimum, the following information security protections:

(1) For covered contractor information systems that are part of an Information Technology (IT) service or system operated on behalf of the Government, the following security requirements apply:

(i) Cloud computing services shall be subject to the security requirements specified in the clause 252.239-7010, Cloud Computing Services, of this contract.
(ii) Any other such IT service or system (i.e., other than cloud computing) shall be subject to the security requirements specified elsewhere in this contract.

(2) For covered contractor information systems that are not part of an IT service or system operated on behalf of the Government and therefore are not subject to the security requirement specified at paragraph (b)(1) of this clause, the following security requirements apply:

(i) Except as provided in paragraph (b)(2)(ii) of this clause, the covered contractor information system shall be subject to the security requirements in National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171, "Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations", Revision 2 (available via the internet at http://dx.doi.org/10.6028/NIST.SP.800-171*)*.

(ii)(A) The Contractor shall implement NIST SP 800-171, as soon as practical, but not later than December 31, 2017. For all contracts awarded prior to October 1, 2017, the Contractor shall notify the DoD Chief Information Officer (CIO), via email at osd.dibcsia@mail.mil, within 30 days of contract award, of any security requirements specified by NIST SP 800-171 not implemented at the time of contract award.

(B) The Contractor shall submit requests to vary from NIST SP 800-171 in writing to the Contracting Officer, for consideration by the DoD CIO. The Contractor need not implement any security requirement adjudicated by an authorized representative of the DoD CIO to be nonapplicable or to have an alternative, but equally effective, security measure that may be implemented in its place.

(C) If the DoD CIO has previously adjudicated the contractor's requests indicating that a requirement is not applicable or that an alternative security measure

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Part 12 Clauses (CONTINUED)

is equally effective, a copy of that approval shall be provided to the Contracting Officer when requesting its recognition under this contract.

(D) If the Contractor intends to use an external cloud service provider to store, process, or transmit any covered defense information in performance of this contract, the Contractor shall require and ensure that the cloud service provider meets security requirements equivalent to those established by the Government for the Federal Risk and Authorization Management Program (FedRAMP) Moderate baseline (*https://*www.fedramp.gov/resources/documents/) and that the cloud service provider complies with requirements in paragraphs (c) through (g) of this clause for cyber incident reporting, malicious software, media preservation and protection, access to additional information and equipment necessary for forensic analysis, and cyber incident damage assessment.

(3) Apply other information systems security measures when the Contractor reasonably determines that information systems security measures, in addition to those identified in paragraphs (b)(1) and (2) of this clause, may be required to provide adequate security in a dynamic environment or to accommodate special circumstances (e.g., medical devices) and any individual, isolated, or temporary deficiencies based on an assessed risk or vulnerability. These measures may be addressed in a system security plan.

(c) *Cyber incident reporting requirement*.

(1) When the Contractor discovers a cyber incident that affects a covered contractor information system or the covered defense information residing therein, or that affects the contractor's ability to perform the requirements of the contract that are designated as operationally critical support and identified in the contract, the Contractor shall --

(i) Conduct a review for evidence of compromise of covered defense information, including, but not limited to, identifying compromised computers, servers, specific data, and user accounts. This review shall also include analyzing covered contractor information system(s) that were part of the cyber incident, as well as other information systems on the Contractor's network(s), that may have been accessed as a result of the incident in order to identify compromised covered defense information, or that affect the Contractor's ability to provide operationally critical support; and

(ii) Rapidly report cyber incidents to DoD at *https://dibnet.dod.mil*.

(2) *Cyber incident report*. The cyber incident report shall be treated as information created by or for DoD and shall include, at a minimum, the required elements at *https://dibnet.dod.mil*.

(3) *Medium assurance certificate requirement.* In order to report cyber incidents in accordance with this clause, the Contractor or subcontractor shall have or acquire a DoD-approved medium assurance certificate to report cyber incidents. For information on obtaining a DoD-approved medium assurance certificate, see *https://public.cyber.mil/eca/*.

(d) *Malicious software.* When the Contractor or subcontractors discover and isolate malicious software in connection with a reported cyber incident, submit the malicious software to DoD Cyber Crime Center (DC3) in accordance with instructions provided by DC3 or the Contracting Officer. Do not send the malicious software to the Contracting Officer.

(e) *Media preservation and protection*. When a Contractor discovers a cyber incident has occurred, the Contractor shall preserve and protect images of all known affected information systems identified in paragraph (c)(1)(i) of this clause and all relevant monitoring/packet capture data for at least 90 days from the submission of the cyber incident report to allow DoD to request the media or decline interest.

(f) *Access to additional information or equipment necessary for forensic analysis*. Upon request by DoD, the Contractor shall provide DoD with access to additional information equipment that is necessary to conduct a forensic analysis.

(g) *Cyber incident damage assessment activities*. If DoD elects to conduct a damage assessment, the Contracting Officer will request that the Contractor provide all of the damage assessment information gathered in accordance with paragraph (e) of this clause.

(h) *DoD safeguarding and use of contractor attributional/proprietary information.* The Government shall protect against the unauthorized use or release of information obtained from the contractor (or derived from information obtained from the contractor) under this clause that includes contractor attributional/ proprietary information, including such information submitted in accordance with paragraph (c). To the maximum extent practicable, the Contractor shall identify and mark attributional/proprietary information. In making an authorized release of such information, the Government will implement appropriate procedures to minimize the contractor attributional/proprietary information that is included in such authorized release, seeking to include only that information that is necessary for the authorized purpose(s) for which the information is being released.

(i) *Use and release of contractor attributional/proprietary information not created by or for DoD.* Information that is obtained from the contractor (or derived from information obtained from the contractor) under this clause that is not created by or for DoD is authorized to be released outside of DoD --

(1) To entities with missions that may be affected by such information;

(2) To entities that may be called upon to assist in the diagnosis, detection, or mitigation of cyber incidents;

(3) To Government entities that conduct counterintelligence or law enforcement investigations;

(4) For national security purposes, including cyber situational awareness and defense purposes (including with Defense Industrial Base (DIB) participants in

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Part 12 Clauses (CONTINUED)

the program at 32 CFR part 236); or

(5) To a support services contractor ("recipient") that is directly supporting Government activities under a contract that includes the clause at 252.204-7009, Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.

(j) *Use and release of contractor attributional/proprietary information created by or for DoD.* Information that is obtained from the contractor (or derived from information obtained from the contractor) under this clause that is created by or for DoD (including the information submitted pursuant to paragraph (c) of this clause) is authorized to be used and released outside of DoD for purposes and activities authorized by paragraph

(i) of this clause, and for any other lawful Government purpose or activity, subject to all applicable statutory, regulatory, and policy based restrictions on the Government's use and release of such information.

(k) The Contractor shall conduct activities under this clause in accordance with applicable laws and regulations on the interception, monitoring, access, use, and disclosure of electronic communications and data.

(l) *Other safeguarding or reporting requirements.* The safeguarding and cyber incident reporting required by this clause in no way abrogates the Contractor's responsibility for other safeguarding or cyber incident reporting pertaining to its unclassified information systems as required by other applicable clauses of this contract, or as a result of other applicable U.S. Government statutory or regulatory requirements.

(m) *Subcontracts*. The Contractor shall --

(1) Include this clause, including this paragraph (m), in subcontracts, or similar contractual instruments, for operationally critical support, or for which subcontract performance will involve covered defense information, including subcontracts for commercial products or commercial services, without alteration, except to identify the parties. The Contractor shall determine if the information required for subcontractor performance retains its identity as covered defense information and will require protection under this clause, and, if necessary, consult with the Contracting Officer; and

(2) Require subcontractors to --

(i) Notify the prime Contractor (or next higher-tier subcontractor) when submitting a request to vary from a NIST SP 800-171 security requirement to the Contracting Officer, in accordance with paragraph (b)(2)(ii)(B) of this clause; and

(ii) Provide the incident report number, automatically assigned by DoD, to the prime Contractor (or next higher-tier subcontractor) as soon as practicable, when reporting a cyber incident to DoD as required in paragraph (c) of this clause.

(End of clause)

252.204-7015 NOTICE OF AUTHORIZED DISCLOSURE OF INFORMATION FOR LITIGATION SUPPORT (JAN 2023) DFARS

252.205-7000 PROVISION OF INFORMATION TO COOPERATIVE AGREEMENT HOLDERS (JUN 2023) DFARS

H14 CONTRACTOR PERSONNEL SECURITY REQUIREMENTS (DEC 2021)

H16 OPERATIONS SECURITY (OPSEC) FOR ON-SITE CONTRACTORS (DEC 2021)

L02 ELECTRONIC ORDER TRANSMISSION (JUN 2020)

Offerors shall select one of the following alternatives for paperless order transmission:
[ ] American National Standards Institute (ANSI) X12 Standards through a value added network (VAN) approved by DLA Transaction Services; or
[ ] Electronic mail (email) award notifications containing web links to electronic copies of the Department of Defense (DD) Form 1155, Order for Supplies or Services.
Offerors must register on the DLA Internet Bid Board System (DIBBS) (https://www.dibbs.bsm.dla.mil/) to receive email notification. If the offeror elects ANSI/VAN order transmission, DLA will send Electronic Data Interchange (EDI) transaction sets at time of award. The contractor shall acknowledge receipt of transaction sets with a functional acknowledgement or order receipt message within 24 hours. If the contractor receives the award transaction set on a weekend or Federal holiday, the contractor shall acknowledge receipt on the next business day. This acknowledgement will confirm that the contractor's interface with the system is working as needed for contract ordering.
Offerors can obtain information regarding EDI, ANSI X12 transactions, and VANs approved by DLA Transaction Services at Defense Automatic Addressing System (DAAS) Value Added Network List (https://www.transactionservices.dla.mil/daashome/edi-vanlist-dla.asp).
Offerors should direct questions concerning electronic ordering to the appropriate procuring organization point of contact below:
DLA Land and Maritime, Helpdesk.EBS.L&M.LTCs@dla.mil

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Part 12 Clauses (CONTINUED)

DLA Troop Support, dlaedigroup@dla.mil
DLA Aviation, avnprocsysproceddiv@dla.mil, phone # 804-279-4026

52.209-1 QUALIFICATION REQUIREMENTS (FEB 1995) FAR

As prescribed in 9.206-2 , insert the following clause:
(a) Definition. “Qualification requirement,” as used in this clause, means a Government requirement for testing or other quality assurance demonstration that must be completed before award.
(b) One or more qualification requirements apply to the supplies or services covered by this contract. For those supplies or services requiring qualification, whether the covered product or service is an end item under this contract or simply a component of an end item, the product, manufacturer, or source must have demonstrated that it meets the standards prescribed for qualification before award of this contract. The product, manufacturer, or source must be qualified at the time of award whether or not the name of the product, manufacturer, or source is actually included on a qualified products list, qualified manufacturers list, or qualified bidders list. Offerors should contact the agency activity designated below to obtain all requirements that they or their products or services, or their subcontractors or their products or services, must satisfy to become qualified and to arrange for an opportunity to demonstrate their abilities to meet the standards specified for qualification.
http://quicksearch.dla.mil/qsSearch.aspx
(c) If an offeror, manufacturer, source, product or service covered by a qualification requirement has already met the standards specified, the relevant information noted below should be provided.
Offeror's Name:
Manufacturer's Name:
Source's Name:
Item Name:
Service Identification:
Test Number: (to the extent known)
(d) Even though a product or service subject to a qualification requirement is not itself an end item under this contract, the product, manufacturer, or source must nevertheless be qualified at the time of award of this contract. This is necessary whether the Contractor or a subcontractor will ultimately provide the product or service in question. If, after award, the Contracting Officer discovers that an applicable qualification requirement was not in fact met at the time of award, the Contracting Officer may either terminate this contract for default or allow performance to continue if adequate consideration is offered and the action is determined to be otherwise in the Government's best interests.
(e) If an offeror, manufacturer, source, product or service has met the qualification requireme nt but is not yet on a qualified products list, qualified manufacturers list, or qualified bidders list, the offeror must submit evidence of qualification prior to award of this contract. Unless determined to be in the Government's interest, award of this contract shall not be delayed to permit an offeror to submit evidence of qualification.
(f) Any change in location or ownership of the plant where a previously qualified product or service was manufactured or performed requires reevaluation of the qualification. Similarly, any change in location or ownership of a previously qualified manufacturer or source requires reevaluation of the qualification. The reevaluation must be accomplished before the date of award.

(End of clause)

52.209-2 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS - REPRESENTATION (NOV 2015) FAR

As prescribed in 9.108-5(a), insert the following provision:

(a) *Definitions*. “Inverted domestic corporation” and “subsidiary” have the meaning given in the clause of this contract entitled Prohibition on Contracting with Inverted Domestic Corporations (52.209-10).

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(c) *Representation*. The Offeror represents that-

(1) It [ ] is,[ ] is not an inverted domestic corporation; and

(2) It [ ] is,[ ] is not a subsidiary of an inverted domestic corporation.

(End of provision)

52.209-6 PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED (JAN 2025) FAR

52.209-9 UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018) FAR

52.209-10 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS (NOV 2015) FAR

252.209-7004 SUBCONTRACTING WITH FIRMS THAT ARE OWNED OR CONTROLLED BY THE GOVERNMENT OF A COUNTRY THAT IS A STATE SPONSOR OF TERRORISM (MAY 2019) DFARS

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Part 12 Clauses (CONTINUED)

H02 COMPONENT QUALIFIED PRODUCTS LIST (QPL)/QUALIFIED MANUFACTURERS LIST (QML) (SEP 2016)

52.215-8 ORDER OF PRECEDENCE - UNIFORM CONTRACT FORMAT (OCT 1997) FAR

52.216-18 ORDERING (AUG 2020) FAR

As prescribed in 16.506(a), insert the following clause:
(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from **the contract award date** through **the current period of performance**.
(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.
(c) If mailed, a delivery order or task order is considered "issued" when the Government deposits the order in the mail. Orders may be issued orally, by facsimile, or by electronic commerce methods only if authorized in the Schedule.

(End of clause)

52.216-19 ORDER LIMITATIONS (OCT 1995) FAR

As prescribed in 16.506(b), insert a clause substantially the same as follows:
(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than [insert dollar figure or quantity], the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.
(b) Maximum order. The Contractor is not obligated to honor --
(1) Any order for a single item in excess of [insert dollar figure or quantity];
(2) Any order for a combination of items in excess of [insert dollar figure or quantity]; or
(3) A series of orders from the same ordering office within days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.
(c) If this is a requirements contract (i.e., includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.
(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-21 REQUIREMENTS (OCT 1995) FAR

As prescribed in 16.506(d), insert the following clause:
(a) This is a requirements contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies or services specified in the Schedule are estimates only and are not purchased by this contract. Except as this contract may otherwise provide, if the Government's requirements do not result in orders in the quantities described as "estimated" or "maximum" in the Schedule, that fact shall not constitute the basis for an equitable price adjustment.
(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. Subject to any limitations in the Order Limitations clause or elsewhere in this contract, the Contractor shall furnish to the Government all supplies or services specified in the Schedule and called for by orders issued in accordance with the Ordering clause. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.
(c) Except as this contract otherwise provides, the Government shall order from the Contractor all the supplies or services specified in the Schedule that are required to be purchased by the Government activity or activities specified in the Schedule.
(d) The Government is not required to purchase from the Contractor requirements in excess of any limit on total orders under this contract.
(e) If the Government urgently requires delivery of any quantity of an item before the earliest date that delivery may be specified under this contract, and if the Contractor will not accept an order providing for the accelerated delivery, the Government may acquire the urgently required goods or services from another source.
(f) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after **ten years after contract start date**.

(End of Clause)

252.216-7009 ALLOWABILITY OF COSTS INCURRED IN CONNECTION WITH A WHISTLEBLOWER PROCEEDING (DEC 2022) DFARS

C14 CORRECTION OF NONCONFORMING PACKAGING OR MARKING (MAY 2020)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000) FAR

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Part 12 Clauses (CONTINUED)

As prescribed in 17.208(g), insert a clause substantially the same as the following:
(a) The Government may extend the term of this contract by written notice to the Contractor within **30** [insert the period of time within which the Contracting Officer may exercise the option]; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least **45** days [60 days unless a different number of days is inserted] before the contract expires. The preliminary notice does not commit the Government to an extension.
(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.
(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed **10 years** (months) (years).
(End of clause)

52.219-16 LIQUIDATED DAMAGES - SUBCONTRACTING PLAN (SEP 2021) FAR

52.219-28 POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (JAN 2025) FAR

Insert the clause at 52.219-28, Postaward Small Business Program Rerepresentation, in solicitations and contracts exceeding the micro-purchase threshold when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied this part in accordance with 19.000(b)(1)(ii):

(a) *Definitions.* As used in this clause --
Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217 -8, Option to Extend Services, or other appropriate authority.
Small business concern --
(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.
(2) *Affiliates,* as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.
(b) If the Contractor represented that it was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:
(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.
(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.
(3) For long-term contracts --
(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and
(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.
(c) If the Contractor represented its status as any of the small business concerns identified at 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)—
(1) Set aside exclusively for a small business concern identified at 19.000(a)(3) that is issued under an unrestricted multiple-award contract, unless the order is issued under the reserved portion of an unrestricted multiple-award contract (e.g., an order set aside for a woman-owned small business under a multiple-award contract that is not set-aside, unless the order is issued under the reserved portion of the multiple-award contract);
(2) Issued under a multiple-award contract set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying multiple-award contract (e.g., an order set aside for a HUBZone small business concern under a multiple-award contract that is set aside for small businesses);
(3) Issued under the part of the multiple-award contract that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the multiple-award contract (e.g., an order set aside for a WOSB concern under the part of the multiple-award contract that is partially set aside for small businesses); and
(4) When the Contracting Officer explicitly requires it for an order issued under a multiple-award contract, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).
(d) The Contractor shall represent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at https://www.sba.gov/document/support--table-size-standards.
(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition --
(1) Was set aside for small business and has a value above the simplified acquisition threshold;
(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or
(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.
(f) Except as provided in paragraph (h) of this clause, the Contractor shall make the representation(s) required by paragraphs (b) and (c) of this clause by

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Part 12 Clauses (CONTINUED)

validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, or with its offer for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.
(g) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.
(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:
(1) The Contractor represents that it **[]** is, **[]** is not a small business concern under NAICS Code assigned to contract number .
(2) [*Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.*] The Contractor represents that it **[]** is, **[]** is not, a small disadvantaged business concern as defined in 13 CFR 124.1002.
(3) [*Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.*] The Contractor represents that it **[]** is, **[]** is not a women-owned small business concern.
(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it **[]** is, **[]** is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The Contractor shall enter the name and unique entity identifier of each party to the joint venture:* .]
(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it **[]** is, **[]** is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The Contractor shall enter the name and unique entity identifier of each party to the joint venture:* .]
(6) [*Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.*] The Contractor represents that it **[]** is, **[]** is not a veteran-owned small business concern.
(7) [*Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.*] The Contractor represents that it **[]** is, **[]** is not a service-disabled veteran-owned small business concern.
(8) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it **[]** is, **[]** is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*The Contractor shall enter the name and unique entity identifier of each party to the joint venture:* **.]**
(9) [*Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.*] The Contractor represents that --
(i) It **[]** is, **[]** is not a HUBZone small business concern listed, on the date of this representation, on the List of Qualified HUBZone Small Business Concerns maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or HUBZone employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and
(ii) It **[]** is, **[]** is not a HUBZone joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each HUBZone small business concern participating in the HUBZone joint venture. [*The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture:* .] Each HUBZone small business concern participating in the HUBZone joint venture shall submit a separate signed copy of the HUBZone representation.
[*Contractor to sign and date and insert authorized signer's name and title* .]

(End of clause)

252.219-7003 SMALL BUSINESS SUBCONTRACTING PLAN (DOD CONTRACTS)—BASIC (DEC 2019) DFARS

52.222-1 NOTICE TO THE GOVERNMENT OF LABOR DISPUTES (FEB 1997) FAR

52.219-4 NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (OCT 2022) FAR

As prescribed in 19.1309(b), insert the following clause:
(a) Evaluation preference.
(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except --
(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and
(ii) Otherwise successful offers from small business concerns.
(2) The factor of 10 percent shall be applied on a line item basis or to any group of items on which award may be made. Other evaluation factors described in the solicitation shall be applied before application of the factor.
(3) When the two highest rated offerors are a HUBZone small business concern and a large business, and the evaluated offer of the HUBZone small business concern is equal to the evaluated offer of the large business after considering the price evaluation preference, award will be made to the HUBZone small business concern.
(b) *Waiver of evaluation preference*. A HUBZone small business concern may elect to waive the evaluation preference, in which case the factor will be added to its offer for evaluation purposes.
[ ] Offeror elects to waive the evaluation preference.
(c) *Notice.* The HUBZone small business offeror acknowledges that a prospective HUBZone awardee must be a HUBZone small business concern at the time of award of this contract. The HUBZone offeror shall provide the Contracting Officer a copy of the notice required by 13 CFR 126.501 if material changes occur before contract award that could affect its HUBZone eligibility. If the apparently successful HUBZone offeror is not a HUBZone small business concern at the time of award of this contract, the Contracting Officer will proceed to award to the next otherwise successful HUBZone small business concern or other offeror.

(End of Clause)

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Part 12 Clauses (CONTINUED)

52.219-8 UTILIZATION OF SMALL BUSINESS CONCERNS (JAN 2025) FAR

52.222-19 CHILD LABOR - COOPERATION WITH AUTHORITIES AND REMEDIES (JAN 2025) FAR

52.222-40 NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEC 2010) FAR

52.222-50 COMBATING TRAFFICKING IN PERSONS (NOV 2021) FAR

52.222-54 EMPLOYMENT ELIGIBILITY VERIFICATION (JAN 2025) FAR

52.222-62 PAID SICK LEAVE UNDER EXECUTIVE ORDER 13706 (JAN 2022) FAR

52.223-3 HAZARDOUS MATERIAL IDENTIFICATION AND MATERIAL SAFETY DATA (FEB 2021) FAR

(a) *"Hazardous material,"* as used in this clause, includes any material defined as hazardous under the latest version of Federal Standard No. 313 (including revisions adopted during the term of the contract).

(b) The offeror must list any hazardous material, as defined in paragraph (a) of this clause, to be delivered under this contract. The hazardous material shall be properly identified and include any applicable identification number, such as National Stock Number or Special Item Number. This information shall also be included on the Material Safety Data Sheet submitted under this contract.

Material (If none, insert None)	Identification No.

(c) This list must be updated during performance of the contract whenever the Contractor determines that any other material to be delivered under this contract is hazardous.

(d) The apparently successful offeror agrees to submit, for each item as required prior to award, a Material Safety Data Sheet, meeting the requirements of 29 CFR 1910.1200(g) and the latest version of Federal Standard No. 313, for all hazardous material identified in paragraph (b) of this clause. Data shall be submitted in accordance with Federal Standard No. 313, whether or not the apparently successful offeror is the actual manufacturer of these items. Failure to submit the Material Safety Data Sheet prior to award may result in the apparently successful offeror being considered nonresponsible and ineligible for award.

(e) If, after award, there is a change in the composition of the item(s) or a revision to Federal Standard No. 313, which renders incomplete or inaccurate the data submitted under paragraph (d) of this clause, the Contractor shall promptly notify the Contracting Officer and resubmit the data.

(f) Neither the requirements of this clause nor any act or failure to act by the Government shall relieve the Contractor of any responsibility or liability for the safety of Government, Contractor, or subcontractor personnel or property.

(g) Nothing contained in this clause shall relieve the Contractor from complying with applicable Federal, State, and local laws, codes, ordinances, and regulations (including the obtaining of licenses and permits) in connection with hazardous material.

(h) The Government's rights in data furnished under this contract with respect to hazardous material are as follows:

(1) To use, duplicate and disclose any data to which this clause is applicable. The purposes of this right are to --

(i) Apprise personnel of the hazards to which they may be exposed in using, handling, packaging, transporting, or disposing of hazardous materials;

(ii) Obtain medical treatment for those affected by the material; and

(iii) Have others use, duplicate, and disclose the data for the Government for these purposes.

(2) To use, duplicate, and disclose data furnished under this clause, in accordance with subparagraph (h)(1) of this clause, in precedence over any other clause of this contract providing for rights in data.

(3) The Government is not precluded from using similar or identical data acquired from other sources.

(End of Clause)

52.223-11 OZONE-DEPLETING SUBSTANCES AND HIGH GLOBAL WARNING POTENTIAL HYDROFLUOROCARBONS (JUN 2016) FAR

As prescribed in 23.804(a)(1), insert the following clause:

(a) *Definition*. As used in this clause -

"Global warming potential" means how much a given mass of a chemical contributes to global warming over a given time period compared to the same mass of carbon dioxide. Carbon dioxide's global warming potential is defined as 1.0.

"High global warming potential hydrofluorocarbons" means any hydrofluorocarbons in a particular end use for which EPA's Significant New Alternatives

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Part 12 Clauses (CONTINUED)

Policy (SNAP) program has identified other acceptable alternatives that have lower global warming potential. The SNAP list of alternatives is found at 40 CFR Part 82 subpart G with supplemental tables of alternatives available at (http://www.epa.gov/snap/).
"Hydrofluorocarbons" means compounds that only contain hydrogen, fluorine, and carbon.
"Ozone-depleting substance," means any substance the Environmental Protection Agency designates in 40 CFR Part 82 as -
(1) Class I, including, but not limited to, chlorofluorocarbons, halons, carbon tetrachloride, and methyl chloroform; or
(2) Class II, including, but not limited to, hydrochlorofluorocarbons.
(b) The Contractor shall label products that contain or are manufactured with ozone-depleting substances in the manner and to the extent required by 42 U.S.C. 7671j (b), (c), (d), and (e) and 40 CFR part 82, subpart E, as follows:

WARNING

Contains (or manufactured with, if applicable) * _ , a substance(s) which harm(s) public health and environment by destroying ozone in the upper atmosphere.
* The Contractor shall insert the name of the substance(s).

(c) *Reporting*. For equipment and appliances that normally each contain 50 or more pounds of hydrofluorocarbons or refrigerant blends containing hydrofluorocarbons, the Contractor shall -
(1) Track on an annual basis, between October 1 and September 30, the amount in pounds of hydrofluorocarbons or refrigerant blends containing hydrofluorocarbons contained in the equipment and appliances delivered to the Government under this contract by -
(i) Type of hydrofluorocarbon (*e.g.*, HFC-134a, HFC-125, R-410A, R-404A, *etc.*);
(ii) Contract number; and
(iii) Equipment/appliance;
(2) Report that information to the Contracting Officer for FY16 and to www.sam.gov, for FY17 and after -
(i) Annually by November 30 of each year during contract performance; and
(ii) At the end of contract performance.
(d) The Contractor shall refer to EPA's SNAP program (available at http://www.epa.gov/snap) to identify alternatives. The SNAP list of alternatives is found at 40 CFR part 82 subpart G with supplemental tables available at http://www.epa.gov/snap.

(End of clause)

252.223-7001 HAZARD WARNING LABELS (DEC 1991) DFARS

(a) "Hazardous material," as used in this clause, is defined in the Hazardous Material Identification and Material Safety Data clause of this contract.
(b) The Contractor shall label the item package (unit container) of any hazardous material to be delivered under this contract in accordance with the Hazard Communication Standard (29 CFR 1910.1200 et seq). The Standard requires that the hazard warning label conform to the requirements of the standard unless the material is otherwise subject to the labelling requirements of one of the following statutes:
(1) Federal Insecticide, Fungicide and Rodenticide Act;
(2) Federal Food, Drug and Cosmetics Act;
(3) Consumer Product Safety Act;
(4) Federal Hazardous Substances Act; or
(5) Federal Alcohol Administration Act.
(c) The Offeror shall list which hazardous material listed in the Hazardous Material Identification and Material Safety Data clause of this contract will be labelled in accordance with one of the Acts in paragraphs (b)(1) through (5) of this clause instead of the Hazard Communication Standard. Any hazardous material not listed will be interpreted to mean that a label is required in accordance with the Hazard Communication Standard.

MATERIAL (If None, Insert "None.")	ACT

(d) The apparently successful Offeror agrees to submit, before award, a copy of the hazard warning label for all hazardous materials not listed in paragraph (c) of this clause. The Offeror shall submit the label with the Material Safety Data Sheet being furnished under the Hazardous Material Identification and Material Safety Data clause of this contract.
(e) The Contractor shall also comply with MIL-STD-129, Marking for Shipment and Storage (including revisions adopted during the term of this contract).

(End of clause)

252.223-7006 PROHIBITION ON STORAGE, TREATMENT, AND DISPOSAL OF TOXIC OR HAZARDOUS MATERIALS - BASIC (SEP 2014) DFARS

252.225-7013 DUTY-FREE ENTRY (NOV 2023) DFARS

252.223-7009 PROHIBITION OF PROCUMENT OF FLOURINATED AQUEOUS FILM-FORMING FOAM FIRE-FIGHTING AGENT FOR USE ON MILITARY INSTALLATIONS (MAR 2024) FAR

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Part 12 Clauses (CONTINUED)

252.225-7002 QUALIFYING COUNTRY SOURCES AS SUBCONTRACTORS (MAR 2022) DFARS

252.225-7005 IDENTIFICATION OF EXPENDITURES IN THE UNITED STATES (JUN 2005) DFARS

252.225-7012 PREFERENCE FOR CERTAIN DOMESTIC COMMODITIES (APR 2022) DFARS

(a) *Definitions.* As used in this clause --

“Component” means any item supplied to the Government as part of an end product or of another component.

“End product” means supplies delivered under a line item of this contract.

"Qualifying country" means a country with a reciprocal defense procurement memorandum of understanding or international agreement with the United States in which both countries agree to remove barriers to purchases of supplies produced in the other country or services performed by sources of the other country, and the memorandum or agreement complies, where applicable, with the requirements of section 36 of the Arms Export Control Act (22 U.S.C. 2776) and with 10 U.S.C. 2457. Accordingly, the following are qualifying countries:

Australia
Austria
Belgium
Canada
Czech Republic
Denmark
Egypt
Estonia
Finland
France
Germany
Greece
Israel
Italy
Japan
Latvia
Lithuania
Luxembourg
Netherlands
Norway
Poland
Portugal
Slovenia
Spain
Sweden
Switzerland
Turkey
United Kingdom of Great Britain and Northern Ireland.

“Structural component of a tent” --

(1) Means a component that contributes to the form and stability of the tent (e.g., poles, frames, flooring, guy ropes, pegs); and

(2) Does not include equipment such as heating, cooling, or lighting.

“United States” means the 50 States, the District of Columbia, and outlying areas.

“U.S.-flag vessel” means a vessel of the United States or belonging to the United States, including any vessel registered or having national status under the laws of the United States.

(b) The Contractor shall deliver under this contract only such of the following items, either as end products or components, that have been

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Part 12 Clauses (CONTINUED)

grown, reprocessed, reused, or produced in the United States:

(1) Food.

(2) Clothing and the materials and components thereof, other than sensors, electronics, or other items added to, and not normally associated with, clothing and the materials components thereof. Clothing includes items such as outerwear, headwear, underwear, nightwear. footwear, hosiery, handwear, belts, badges, and insignia.

(3)(i) Tents and structural components of tents;

(ii) Tarpaulins; or

(iii) Covers.

(4) Cotton and other natural fiber products.

(5) Woven silk or woven silk blends.

(6) Spun silk yarn for cartridge cloth.

(7) Synthetic fabric, and coated synthetic fabric, including all textile fibers and yarns that are for use in such fabrics.

(8) Canvas products.

(9) Wool (whether in the form of fiber or yarn or contained in fabrics, materials, or manufactured articles).

(10) Any item of individual equipment (Federal Supply Class 8465) manufactured from or containing fibers, yarns, fabrics, or materials listed in this paragraph (b).

(c) This clause does not apply --

(1) To items listed in section 25.104(a) of the Federal Acquisition Regulation, or other items for which the Government has determined that a satisfactory quality and sufficient quantity cannot be acquired as and when needed at U.S. market prices;

(2) To incidental amounts of cotton, other natural fibers, or wool incorporated in an end product, for which the estimated value of the cotton, other natural fibers, or wool --

(i) Is not more than 10 percent of the total price of the end product; and

(ii) Does not exceed the threshold at Defense Federal Acquisition Regulation Supplement 225.7002-2(a);

(3) To waste and byproducts of cotton or wool fiber for use in the production of propellants and explosives;

(4) To foods, other than fish, shellfish, or seafood, that have been manufactured or processed in the United States, regardless of where the foods (and any component if applicable) were grown or produced. Fish, shellfish, or seafood manufactured or processed in the United States and fish, shellfish, or seafood contained in foods manufactured or processed in the United States shall be provided in accordance with paragraph (d) of this clause;

(5) To chemical warfare protective clothing produced in a qualifying country; or

(6) To fibers and yarns that are for use in synthetic fabric or coated synthetic fabric (but does apply to the synthetic or coated synthetic fabric itself), if --

(i) The fabric is to be used as a component of an end product that is not a textile product. Examples of textile products, made in whole or in part of fabric, include ¾

(A) Draperies, floor coverings, furnishings, and bedding (Federal Supply Group 72, Household and Commercial Furnishings and Appliances);

(B) Items made in whole or in part of fabric in Federal Supply Group 83, Textile/leather/furs/apparel/findings/tents/flags, or Federal Supply Group 84, Clothing, Individual Equipment and Insignia;

(C) Upholstered seats (whether for household, office, or other use); and

(D) Parachutes (Federal Supply Class 1670); or

(ii) The fibers and yarns are para-aramid fibers and continuous filament para-aramid yarns manufactured in a qualifying country.

(d)(1) Fish, shellfish, and seafood delivered under this contract, or contained in foods delivered under this contract --

(i) Shall be taken from the sea by U.S.-flag vessels; or

(ii) If not taken from the sea, shall be obtained from fishing within the United States; and

(2) Any processing or manufacturing of the fish, shellfish, or seafood shall be performed on a U.S.-flag vessel or in the United States.

(End of clause)

252.225-7021 TRADE AGREEMENTS - BASIC (FEB 2024) DFARS

252.225-7027 RESTRICTION ON CONTINGENT FEES FOR FOREIGN MILITARY SALES (APR 2003) DFARS

(a) Except as provided in paragraph (b) of this clause, contingent fees, as defined in the Covenant Against Contingent Fees clause of this

CONTINUED ON NEXT PAGE

Part 12 Clauses (CONTINUED)

contract, are generally an allowable cost, provided the fees are paid to --

(1) A bona fide employee of the Contractor; or

(2) A bona fide established commercial or selling agency maintained by the Contractor for the purpose of securing business.

(b) For foreign military sales, unless the contingent fees have been identified and payment approved in writing by the foreign customer before contract award, the following contingent fees are unallowable under this contract:

(1) For sales to the Government(s) of **(b)(1) of this clause, contingent fees exceeding $50,000 per foreign military sale case.**, contingent fees in any amount.

(2) For sales to Governments not listed in paragraph (b)(1) of this clause, contingent fees exceeding $50,000 per foreign military sale case.

(End of clause)

252.225-7028 EXCLUSIONARY POLICIES AND PRACTICES OF FOREIGN GOVERNMENTS (APR 2003) DFARS

252.225-7041 CORRESPONDENCE IN ENGLISH (JUN 1997) DFARS

252.225-7052 RESTRICTION ON THE ACQUISITION OF CERTAIN MAGNETS, TANTALUM, AND TUNGSTEN (MAY 2024) DFARS

252.225-7056 PROHIBITION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (JAN 2023) DFARS

252.225-7975 ADDITIONAL ACCESS TO CONTRACTOR AND SUBCONTRACTOR RECORDS (DEVIATION 2020-O0022) (AUG 2020)

(a) In addition to any other existing examination-of-records authority, the Government is authorized to examine any records of the Contractor and its subcontractors to the extent necessary to ensure that funds, including supplies and services, available under this contract are not provided, directly or indirectly, to a person or entity that is actively opposing United States or coalition forces involved in a contingency operation in which members of the Armed Forces are actively engaged in hostilities.

(b) The substance of this clause, including this paragraph (b), is required to be included in subcontracts, including subcontracts for commercial items, under this contract that have an estimated value over $50,000 and will be performed outside the United States and its outlying areas.

(End of clause)

252.225-7993 PROHIBITION ON PROVIDING FUNDS TO THE ENEMY (DEVIATION 2020-O0022) (AUG 2020) DFARS

(a) The Contractor shall --

(1) Exercise due diligence to ensure that none of the funds, including supplies and services, received under this contract are provided directly or indirectly (including through subcontracts) to a person or entity who is actively opposing United States or Coalition forces involved in a contingency operation in which members of the Armed Forces are actively engaged in hostilities;

(2) Check the list of prohibited/restricted sources in the System for Award Management (SAM) at www.sam.gov --

(i) Prior to subcontract award; and

(ii) At least on a monthly basis; and

(3) Terminate or void in whole or in part any subcontract with a person or entity listed in SAM as a prohibited or restricted source pursuant to section 841 of the National Defense Authorization Act for Fiscal Year 2015 (Pub. L. 113-291), as amended, unless the Contracting Officer provides to the Contractor written approval of the head of the contracting activity to continue the subcontract.

(b) The Head of the Contracting Activity has the authority to --

(1) Terminate this contract for default, in whole or in part, if the Head of the Contracting Activity determines in writing that the contractor failed to exercise due diligence, as required by paragraph (a) of this clause; or

(2)(i) Void this contract, in whole or in part, if the Head of the Contracting Activity determines in writing that any funds received under this contract have been provided directly or indirectly to a person or entity who is actively opposing United States or Coalition forces involved in a contingency operation in which members of the Armed Forces are actively engaged in hostilities.

(ii) When voided in whole or in part, a contract is unenforceable as contrary to public policy, either in its entirety or with regard to a segregable task or effort under the contract, respectively.

(c) The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts, including subcontracts for commercial items, under this contract that have an estimated value over $50,000 and will be performed outside the United States and its outlying areas.

(End of clause

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Part 12 Clauses (CONTINUED)

52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024) FAR

252.226-7001 UTILIZATION OF INDIAN ORGANIZATIONS, INDIAN-OWNED ECONOMIC ENTERPRISES, AND NATIVE HAWAIIAN SMALL BUSINESS CONCERNS (JAN 2023) DFARS

52.227-1 AUTHORIZATION AND CONSENT (JUN 2020) FAR

52.227-2 NOTICE AND ASSISTANCE REGARDING PATENT AND COPYRIGHT INFRINGEMENT (JUN 2020) FAR

252.227-7015 TECHNICAL DATA - COMMERCIAL PRODUCTS OR COMMERICAL SERVICES (JAN 2025) DFARS

252.227-7037 VALIDATION OF ASSERTED RESTRICTIONS ON TECHNICAL DATA (JAN 2025) DFARS

252.231-7000 SUPPLEMENTAL COST PRINCIPLES (DEC 1991) DFARS

52.232-8 DISCOUNTS FOR PROMPT PAYMENT (FEB 2002) FAR

52.232-1 PAYMENTS (APR 1984) FAR

52.232-11 EXTRAS (APR 1984) FAR

52.232-17 INTEREST (MAY 2014) FAR

52.232-25 PROMPT PAYMENT (JAN 2017) FAR

52.232-40 PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023) FAR

252.232-7003 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS AND RECEIVING REPORTS (DEC 2018) DFARS

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (PRE-FILLED) (JAN 2023) DFARS

As prescribed in 232.7004 (b), use the following clause:
(a) *Definitions.* As used in this clause -
Department of Defense Activity Address Code (DoDAAC) is a six position code that uniquely identifies a unit, activity, or organization.
Document type means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).
Local processing office (LPO) is the office responsible for payment certification when payment certification is done external to the entitlement system.
Payment request and *receiving report* are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.
(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation System (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.
(c) *WAWF access.* To access WAWF, the Contractor shall -
(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov and
(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this Web site.
(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/.
(e) *WAWF methods of document submission.* Document submissions may be via Web entry, Electronic Data Interchange, or File Transfer Protocol.
(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:
(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):
(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.
(ii) For fixed price line items -
(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.
(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

Invoice (stand-alone) and Receiving Report (stand-alone) or Invoice and Receiving Report (combination)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving

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Part 12 Clauses (CONTINUED)

report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)
(iii) For customary progress payments based on costs incurred, submit a progress payment request.
(iv) For performance based payments, submit a performance based payment request.
(v) For commercial financing, submit a commercial financing request.
(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.
[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]
(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table *

Field Name in WAWF	Data to be entered in WAWF	Guidance
Pay Official DoDAAC	See Block 12 (SF26), 15 (DD 1155), or 18a (SF1449)	(If blank, see resulting award)
Issue By DoDAAC	See Block 5 (SF26), 6 (DD 1155), or 9 (SF1449)	(If blank, see resulting award)
Admin DoDAAC	See Block 6 (SF26), 7 (DD 1155), or 16 (SF1449)	(If blank, see resulting award)
Inspect By DoDAAC	SEE SECTION B	(If blank, see resulting award)
Ship To Code	SEE SECTION B	(If blank, see resulting award)
Ship From Code	SEE SECTION B	(If blank, see resulting award)
Mark For Code	SEE SECTION B	(If blank, see resulting award)
Service Approver (DoDAAC)		(If blank, see resulting award)
Service Acceptor (DoDAAC)		(If blank, see resulting award)
Accept at Other DoDAAC		(If blank, see resulting award)
LPO DoDAAC		(If blank, see resulting award)
DCAA Auditor DoDAAC		(If blank, see resulting award)
Other DoDAAC(s)		(If blank, see resulting award)

(* Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")
(** Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)
(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.
(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.
(g) *WAWF point of contact.* (1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

See administer listed on page 1

(*Contracting Officer: Insert applicable information or "Not applicable."*)
(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of Clause)

252.232-7008 ASSIGNMENT OF CLAIMS (OVERSEAS) (JUN 1997) DFARS

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Part 12 Clauses (CONTINUED)

252.232-7010 LEVIES ON CONTRACT PAYMENTS (DEC 2006) DFARS

252.232-7011 PAYMENTS IN SUPPORT OF EMERGENCIES AND CONTINGENCY OPERATIONS (MAY 2013) DFARS

52.233-1 DISPUTES (MAY 2014) FAR

52.233-3 PROTEST AFTER AWARD (AUG 1996) FAR

52.233-4 APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (OCT 2004) FAR

252.233-7001 CHOICE OF LAW (OVERSEAS) (JUN 1997) DFARS

52.242-5 PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (JAN 2017) FAR

52.242-13 BANKRUPTCY (JUL 1995) FAR

52.242-15 STOP-WORK ORDER (AUG 1989) FAR

52.242-17 GOVERNMENT DELAY OF WORK (APR 1984) FAR

52.243-1 CHANGES - FIXED PRICE (AUG 1987) FAR

252.243-7001 PRICING OF CONTRACT MODIFICATIONS (DEC 1991) DFARS

252.243-7002 REQUESTS FOR EQUITABLE ADJUSTMENTS (DEC 2022) DFARS

As prescribed in 243.205-71 , use the following clause:
(a) The amount of any request for equitable adjustment to contract terms shall accurately reflect the contract adjustment for which the Contractor believes the Government is liable. The request shall include only costs for performing the change, and shall not include any costs that already have been reimbursed or that have been separately claimed. All indirect costs included in the request shall be properly allocable to the change in accordance with applicable acquisition regulations.
(b) In accordance with 10 U.S.C. 3862(a), any request for equitable adjustment to contract terms that exceeds the simplified acquisition threshold shall bear, at the time of submission, the following certificate executed by an individual authorized to certify the request on behalf of the Contractor:
I certify that the request is made in good faith, and that the supporting data are accurate and complete to the best of my knowledge and belief.

(Official's Name)

(Title)
(c) The certification in paragraph (b) of this clause requires full disclosure of all relevant facts, including -
(1) Certified cost or pricing data if required in accordance with subsection 15.403-4 of the Federal Acquisition Regulation (FAR); and
(2) Data other than certified cost or pricing data, in accordance with subsection 15.403-3 of the FAR, including actual cost data and data to support any estimated costs, even if certified cost or pricing data are not required.
(d) The certification requirement in paragraph (b) of this clause does not apply to -
(1) Requests for routine contract payments; for example, requests for payment for accepted supplies and services, routine vouchers under a cost-reimbursement type contract, or progress payment invoices; or
(2) Final adjustment under an incentive provision of the contract.

(End of clause)

52.244-6 SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025) (DEVIATION 2025-O0003) FAR

(a)*Definitions.* As used in this clause --
Commercial product, commercial service and *commercially available off-the-shelf item* have the meanings contained in Federal Acquisition Regulation (FAR) *2.101*.
Subcontract includes a transfer of commercial products or commercial services between divisions, subsidiaries, or affiliates of the Contractor or subcontractor at any tier.
(b)To the maximum extent practicable, the Contractor shall incorporate, and require its subcontractors at all tiers to incorporate, commercial products, commercial services, or non-developmental items as components of items to be supplied under this contract.

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Part 12 Clauses (CONTINUED)

(c)(1)The Contractor shall insert the following clauses in subcontracts for commercial products or commercial services:
(i)52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509), if the subcontract exceeds the threshold specified in FAR 3.1004(a) on the date of subcontract award, and has a performance period of more than 120 days. In altering this clause to identify the appropriate parties, all disclosures of violation of the civil False Claims Act or of Federal criminal law shall be directed to the agency Office of the Inspector General, with a copy to the Contracting Officer.
(ii)52.203-15, Whistleblower Protections Under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5), if the subcontract is funded under the Recovery Act.
(iii)52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community --see FAR 3.900(a).
(iv)52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017).
(v)52.204-21, Basic Safeguarding of Covered Contractor Information Systems (Nov 2021) , other than subcontracts for commercially available off-the-shelf items, if flow down is required in accordance with paragraph (c) of FAR clause 52.204-21.
(vi)52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).
(vii)52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
(viii)52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).
(ix)(A)52.204-30, Federal Acquisition Supply Chain Security Act Orders --Prohibition. (Dec 2023) (Pub. L. 115 -390, title II).
(B)Alternate I (Dec 2023) of 52.204-30.
(x)52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C.637(d)(2) and (3)), if the subcontract offers further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.
(xi) [Reserved]
(xii) [Reserved]
(xiii)52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C.4212(a));
(xiv)52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020)(29 U.S.C.793).
(xv)52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C.4212).
(xvi)52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496), if flow down is required in accordance with paragraph (f) of FAR clause 52.222-40.
(xvii)(A)52.222-50, Combating Trafficking in Persons (Nov 2021) (22 U.S.C. chapter 78 and E.O. 13627).
(B)Alternate I (Mar 2015) of 52.222-50(22 U.S.C. chapter 78 and E.O. 13627).
(xviii)52.222-55, Minimum Wages for Contractor Workers under Executive Order 14026 (Jan 2022), if flow down is required in accordance with paragraph (k) of FAR clause 52.222-55.
(xix)52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706), if flow down is required in accordance with paragraph (m) of FAR clause 52.222-62.
(xx)(A)52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a) if flow down is required in accordance with 52.224-3(f).
(B)Alternate I (Jan 2017) of 52.224-3, if flow down is required in accordance with 52.224-3(f) and the agency specifies that only its agency-provided training is acceptable).
(xxi)52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
(xxii)52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) , if flow down is required in accordance with paragraph (c) of FAR clause 52.232-40.
(xxiii)52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).
(xxiv)52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C.2631), if flow down is required in accordance with paragraph (d) of FAR clause 52.247-64.
(2)While not required, the Contractor may flow down to subcontracts for commercial products or commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.
(d)The Contractor shall include the terms of this clause, including this paragraph (d), in subcontracts awarded under this contract.
(End of clause)

252.244-7000 SUBCONTRACTS FOR COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES (NOV 2023) DFARS

52.246-2 INSPECTION OF SUPPLIES FIXED PRICE (AUG 1996) FAR

52.246-11 HIGHER-LEVEL CONTRACT QUALITY REQUIREMENT (DEC 2014) FAR

As prescribed in 46.311, insert the following clause:
(a) The Contractor shall comply with the higher-level quality standard(s) listed below.

Title	Number	Date	Tailoring

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Part 12 Clauses (CONTINUED)

Title	Number	Date	Tailoring

[*Contracting Officer insert the title, number, date, and tailoring (if any) of the higher-level quality standards*.]
(b) The Contractor shall include applicable requirements of the higher-level quality standard(s) listed in paragraph (a) of this clause and the requirement to flow down such standards, as applicable, to lower-tier subcontracts, in-
(1) Any subcontract for critical and complex items (see 46.203(b) and (c)); or
(2) When the technical requirements of a subcontract require-
(i) Control of such things as design, work operations, in-process control, testing, and inspection; or
(ii) Attention to such factors as organization, planning, work instruction, documentation control, and advanced metrology.
(End of Clause)

52.246-23 LIMITATION OF LIABILITY (FEB 1997) FAR

252.246-7003 NOTIFICATION OF POTENTIAL SAFETY ISSUES (JAN 2023) DFARS

E05 PRODUCT VERIFICATION TESTING (MAY 2020)

(1) Product verification testing (PVT) under this procurement note will only apply when the contracting officer specifically invokes it in writing. The contracting officer may invoke PVT at or after contract award. If the contracting officer invokes PVT at contract award, the contract will explicitly state this testing requirement. If the contracting officer invokes PVT after contract award, the contracting officer shall notify the contractor and the cognizant DCMA ACO. The Government will perform PVT testing at a Government-designated testing laboratory.
(2) The contractor shall not ship or deliver any material until it receives notification of the acceptable PVT results, unless the contracting officer directs it to do so in writing The Government will provide the PVT results to the contractor within 20 business days after receipt at the Government testing facility, unless the Government specifies otherwise in writing.
(3) The contractor shall provide and maintain an inspection system acceptable to the Government in accordance with FAR Clause 52.246-2 or 52.246-3; and maintain and make available all records evidencing those details if requested by the Government. When the Government finds evidence of risk associated with the contractor's sampling process, the Government may witness and evaluate the contractors sampling process. The contractor shall randomly select samples from the production lot(s), unless the contracting officer specifies otherwise in writing. The contractor shall ship the selected PVT samples with a copy of the system of record receiving report (i.e., WAWF, DD Form 250, or commercial shipping document) and the contractor's signed DD Form 1222. The contractor shall prepare the shipping container(s) by marking the external packages in bold letters, “Product Verification Test Samples - Do Not Post to Stock," Contract Number [ ] and Lot/Item Number [ ]” adjacent to the MIL-STD-129 (latest revision) identification markings. The contractor shall use a hard copy of the system of record receiving report as a packing list, in accordance with DFARS Appendix F. The contractor shall mark the exterior of the shipping container in accordance with MIL-STD129 (latest revision), paragraph 5.11. The contractor shall send samples by traceable means (e.g., certified or registered mail, United Parcel Service, Federal Express). The contractor shall include the following in the interior package:
(a) Hard copies of the contract;
(b) Material certifications/process operation sheets; and
(c) Drawings used to manufacture the units and return shipping information.
(4) The Government will return samples that pass testing and are not destroyed during evaluation to the contractor at the Government's expense for the contractor to include as part of the total contract quantity to be delivered under the contract. The contractor and Government may agree to dispose of samples not destroyed when the cost of the item does not justify the shipping expense. If the Government does not return approved samples that pass testing to the contractor, the Government will consider those samples as part of the contract quantity for payment and delivery.
(5) If samples fail testing, the Government may reject the entire contract lot from which the contractor took the samples. The Government may, at its discretion, retain samples that fail testing without obligation to the contractor.

E06 INSPECTION AND ACCEPTANCE AT SOURCE (JUN 2018)

Inspection and acceptance are at source. The place of acceptance is the location where the Government conducts the last inspection before shipment, unless the contractor indicated a different physical location for acceptance below.
The contractor shall indicate the location where supplies will be inspected, if different from the production location:
Commercial and Government Entity (CAGE) code:
Address:
Applicable to contract line item numbers(s) (CLIN(s)):
The contractor shall indicate the location where packaging will be inspected, if different from the production location:
[ ] Same as for supplies OR
CAGE code:
Address:
Applicable to CLIN(s):
The contractor shall indicate the location where supplies will be accepted, if different from the inspection location:
Commercial and Government Entity (CAGE) code:
Address:
Applicable to contract line item numbers(s) (CLIN(s)):

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Part 12 Clauses (CONTINUED)

52.247-1 COMMERCIAL BILL OF LADING NOTATIONS (FEB 2006) FAR

As prescribed in 47.104-4, insert the following clause:

When the Contracting Officer authorizes supplies to be shipped on a commercial bill of lading and the Contractor will be reimbursed these transportation costs as direct allowable costs, the Contractor shall ensure before shipment is made that the commercial shipping documents are annotated with either of the following notations, as appropriate:

(a) If the Government is shown as the consignor or the consignee, the annotation shall be: Transportation is for the [name the specific agency] and the actual total transportation charges paid to the carrier(s) by the consignor or consignee are assignable to, and shall be reimbursed by, the Government.

(b) If the Government is not shown as the consignor or the consignee, the annotation shall be:

Transportation is for the [name the specific agency] and the actual total transportation charges paid to the carrier(s) by the consignor or consignee shall be reimbursed by the Government, pursuant to cost-reimbursement contract No. . This may be confirmed by contacting [Name and address of the contract administration office listed in the contract].

(End of clause)

52.247-29 F.O.B. ORIGIN (FEB 2006) FAR

52.247-34 F.O.B. DESTINATION (JAN 1991) FAR

52.247-48 F.O.B. DESTINATION - EVIDENCE OF SHIPMENT (FEB 1999) FAR

52.247-52 CLEARANCE AND DOCUMENTATION REQUIREMENTS - SHIPMENTS TO DOD AIR OR WATER TERMINAL TRANSSHIPMENT POINTS (FEB 2006) FAR

52.247-58 LOADING, BLOCKING, AND BRACING OF FREIGHT CAR SHIPMENTS (APR 1984) FAR

252.247-7023 TRANSPORATION OF SUPPLIES BY SEA --- BASIC (OCT 2024) DFARS

Basic. As prescribed in 247.574(b) and (b)(1), use the following clause:
(a) Definitions. As used in this clause --
“Foreign-flag vessel” means any vessel that is not a U.S.-flag vessel.
“Ocean transportation” means any water-borne transportation aboard a ship, vessel, boat, barge, ferry, or the like outside the internal waters of the United States as defined in 33 CFR 2.24.
“Subcontractor” means a supplier, materialman, distributor, or vendor at any level below the prime contractor whose contractual obligation to perform results from, or is conditioned upon, award of the prime contract and who is performing any part of the work or other requirement of the prime contract.
“Supplies” means supplies that are clearly identifiable for eventual use by or owned by DoD at the time of transportation by sea, or are otherwise transported by DoD, regardless of ownership or use by DoD. An item is clearly identifiable for eventual use by DoD if, for example, the contract documentation contains a reference to a DoD contract number or a military destination.
“U.S.-flag vessel” means either a vessel belonging to the United States or a vessel of the United States as that term is defined in 46 U.S.C. 116.
(b)(1) The Contractor shall use U.S.-flag vessels when transporting any supplies by sea under this contract.
(2) A subcontractor transporting supplies by sea under this contract shall use U.S.-flag vessels if --
(i) This contract is a construction contract; or
(ii) The supplies being transported are --
(A) Other than commercial products; or
(B) Commercial products that --
(1) The Contractor is reselling or distributing to the Government without adding value (generally, the Contractor does not add value to items that it subcontracts for f.o.b. destination shipment);
(2) Are shipped in direct support of U.S. military contingency operations, exercises, or forces deployed in humanitarian or peacekeeping operations; or
(3) Are commissary or exchange cargoes transported outside of the Defense Transportation System in accordance with 10 U.S.C. 2643.
(c) The Contractor and its subcontractors may request, via the Contracting Officer, a waiver of the requirement to use a U.S.-flag vessel, or identification of any available U.S.-flag vessels, if the Contractor or a subcontractor sufficiently explains that --
(1) U.S.-flag vessels are not available at a fair and reasonable rate for commercial vessels of the United States; or
(2) U.S.-flag vessels are otherwise not available.
(d) The Contractor must submit any request for use of foreign-flag vessels in writing to the Contracting Officer at least 45 days prior to the sailing date necessary to meet its delivery schedules. The Contracting Officer will process requests submitted after such date(s) as expeditiously as possible, however, if a DoD waiver is not approved prior to shipper's sailing date, this will not of itself constitute a compensable delay under this or any other clause of this contract. Requests shall contain at a minimum --

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Part 12 Clauses (CONTINUED)

(1) Type, weight, and cube of cargo;
(2) Required shipping date;
(3) Special handling and discharge requirements;
(4) Loading and discharge points;
(5) Name of shipper and consignee;
(6) Prime contract number; and
(7) A documented description of current, diligent efforts made to secure U.S.-flag vessels, including points of contact (with names and telephone numbers) with at least two U.S.-flag carriers contacted. Copies of quotes will suffice for this purpose. Copies of telephone notes, emails, and other relevant communications will otherwise be considered for this purpose.
(e) The Contractor shall, within 30 days after each shipment covered by this clause, provide the Contracting Officer and the Maritime Administration, Office of Cargo Preference, U.S. Department of Transportation, 400 Seventh Street SW, Washington, DC 20590, one copy of the rated on board vessel operating carrier's ocean bill of lading, which shall contain the following information:
(1) Prime contract number;
(2) Name of vessel;
(3) Vessel flag of registry;
(4) Date of loading;
(5) Port of loading;
(6) Port of final discharge;
(7) Description of commodity;
(8) Gross weight in pounds and cubic feet if available;
(9) Total ocean freight in U.S. dollars; and
(10) Name of the carrier.
(f) If this contract exceeds the simplified acquisition threshold, the Contractor shall provide with its final invoice under this contract a representation that to the best of its knowledge and belief --
(1) No ocean transportation was used in the performance of this contract;
(2) Ocean transportation was used and only U.S.-flag vessels were used for all ocean shipments under the contract;
(3) Ocean transportation was used, and the Contractor had received a prior-approved waiver for U.S.-flag vessels for all foreign-flag ocean transportation; or
(4) Ocean transportation was used and some or all of the shipments were made on foreign-flag vessels without the written consent of DoD. The Contractor shall describe these shipments in the following format:

*	ITEM DESCRIPTION	CONTRACT LINE ITEMS	QUANTITY
TOTAL			

(g) If this contract exceeds the simplified acquisition threshold and the final invoice does not include the required representation, the Government will reject and return it to the Contractor as an improper invoice for the purposes of the Prompt Payment clause of this contract. In the event there has been unauthorized use of foreign-flag vessels in the performance of this contract, the Contracting Officer is entitled to equitably adjust the contract, based on the unauthorized use.
(h) If the Contractor indicated in response to the solicitation provision, Representation of Extent of Transportation by Sea, that it did not anticipate transporting by sea any supplies; however, after the award of this contract, the Contractor learns that supplies will be transported by sea, the Contractor --
(1) Shall notify the Contracting Officer of that fact; and
(2) Hereby agrees to comply with all the terms and conditions of this clause.
(i) Subcontracts. In the award of subcontracts, for the types of supplies described in paragraph (b)(2) of this clause, including subcontracts for commercial products, the Contractor shall flow down the requirements of this clause as follows:
(1) The Contractor shall insert the substance of this clause, including this paragraph (i), in subcontracts that exceed the simplified acquisition threshold in part 2 of the Federal Acquisition Regulation.
(2) The Contractor shall insert the substance of paragraphs (a) through (e) of this clause, and this paragraph (i), in subcontracts that are at or below the simplified acquisition threshold in part 2 of the Federal Acquisition Regulation.

(End of clause)

252.247-7023 TRANSPORTATION OF SUPPLIES BY SEA - ALTERNATE I (OCT 2024) DFARS

Alternate I. As prescribed in 247.574(b) and (b)(2), use the following clause, which uses a different paragraph (b) than the basic clause:
(a) Definitions. As used in this clause --
“Foreign-flag vessel” means any vessel that is not a U.S.-flag vessel.
“Ocean transportation” means any water-borne transportation aboard a ship, vessel, boat, barge, ferry, or the like outside the internal waters of the United States as defined in 33 CFR 2.24.
“Subcontractor” means a supplier, materialman, distributor, or vendor at any level below the prime contractor whose contractual obligation to perform results from, or is conditioned upon, award of the prime contract and who is performing any part of the work or other requirement of the prime contract.
“Supplies” means supplies that are clearly identifiable for eventual use by or owned by DoD at the time of transportation by sea, or are otherwise transported

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Part 12 Clauses (CONTINUED)

by DoD, regardless of ownership or use by DoD. An item is clearly identifiable for eventual use by DoD if, for example, the contract documentation contains a reference to a DoD contract number or a military destination.
"U.S.-flag vessel" means [either a vessel belonging to the United States or a vessel of the United States as that term is defined in 46 U.S.C. 116.
(b)(1) The Contractor shall use U.S.-flag vessels when transporting any supplies by sea under this contract.
(2) A subcontractor transporting supplies by sea under this contract shall use U.S.-flag vessels if the supplies being transported are --
(i) Other than commercial products; or
(ii) Commercial products that --
(A) The Contractor is reselling or distributing to the Government without adding value (generally, the Contractor does not add value to items that it subcontracts for f.o.b. destination shipment);
(B) Are shipped in direct support of U.S. military contingency operations, exercises, or forces deployed in humanitarian or peacekeeping operations (Note: This contract requires shipment of commercial products in direct support of U.S. military contingency operations, exercises, or forces deployed in humanitarian or peacekeeping operations); or
(C) Are commissary or exchange cargoes transported outside of the Defense Transportation System in accordance with 10 U.S.C. 2643.
(c) The Contractor and its subcontractors may request, via the Contracting Officer, a waiver of the requirement to use a U.S.-flag vessel, or identification of any available U.S.-flag vessels, if the Contractor or a subcontractor sufficiently explains that --
(1) U.S.-flag vessels are not available at a fair and reasonable rate for commercial vessels of the United States; or
(2) U.S.-flag vessels are otherwise not available.
(d) The Contractor must submit any request for use of foreign-flag vessels in writing to the Contracting Officer at least 45 days prior to the sailing date necessary to meet its delivery schedules. The Contracting Officer will process requests submitted after such date(s) as expeditiously as possible, however, if a DoD waiver is not approved prior to the shipper's sailing date, this will not of itself constitute a compensable delay under this or any other clause of this contract. Requests shall contain at a minimum --
(1) Type, weight, and cube of cargo;
(2) Required shipping date;
(3) Special handling and discharge requirements;
(4) Loading and discharge points;
(5) Name of shipper and consignee;
(6) Prime contract number; and
(7) A documented description of current, diligent efforts made to secure U.S.-flag vessels, including points of contact (with names and telephone numbers) with at least two U.S.-flag carriers contacted. Copies of quotes will suffice for this purpose. Copies of telephone notes, emails, and other relevant communications will otherwise be considered for this purpose.
(e) The Contractor shall, within 30 days after each shipment covered by this clause, provide the Contracting Officer and the Maritime Administration, Office of Cargo Preference, U.S. Department of Transportation, 400 Seventh Street SW, Washington, DC 20590, one copy of the rated on board vessel operating carrier's ocean bill of lading, which shall contain the following information:
(1) Prime contract number;
(2) Name of vessel;
(3) Vessel flag of registry;
(4) Date of loading;
(5) Port of loading;
(6) Port of final discharge;
(7) Description of commodity;
(8) Gross weight in pounds and cubic feet if available;
(9) Total ocean freight in U.S. dollars; and
(10) Name of the carrier.

(f) If this contract exceeds the simplified acquisition threshold, the Contractor shall provide with its final invoice under this contract a representation that to the best of its knowledge and belief --
(1) No ocean transportation was used in the performance of this contract;
(2) Ocean transportation was used and only U.S.-flag vessels were used for all ocean shipments under the contract;
(3) Ocean transportation was used, and the Contractor had received a prior-approved waiver for U.S.-flag vessels for all foreign-flag ocean transportation; or
(4) Ocean transportation was used and some or all of the shipments were made on foreign-flag vessels without the written consent of DoD. The Contractor shall describe these shipments in the following format:

*	ITEM DESCRIPTION	CONTRACT LINE ITEMS	QUANTITY

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Part 12 Clauses (CONTINUED)

*	ITEM DESCRIPTION	CONTRACT LINE ITEMS	QUANTITY
TOTAL			

(g) If this contract exceeds the simplified acquisition threshold and the final invoice does not include the required representation, the Government will reject and return it to the Contractor as an improper invoice for the purposes of the Prompt Payment clause of this contract. In the event there has been unauthorized use of foreign-flag vessels in the performance of this contract, the Contracting Officer is entitled to equitably adjust the contract, based on the unauthorized use.
(h) If the Contractor has indicated by the response to the solicitation provision, Representation of Extent of Transportation by Sea, that it did not anticipate transporting by sea any supplies; however, after the award of this contract, the Contractor learns that supplies will be transported by sea, the Contractor --
(1) Shall notify the Contracting Officer of that fact; and
(2) Hereby agrees to comply with all the terms and conditions of this clause.
(i) Subcontracts. In the award of subcontracts for the types of supplies described in paragraph (b)(2) of this clause, including subcontracts for commercial products, the Contractor shall flow down the requirements of this clause as follows:
(1) The Contractor shall insert the substance of this clause, including this paragraph (i), in subcontracts that exceed the simplified acquisition threshold in part 2 of the Federal Acquisition Regulation.
(2) The Contractor shall insert the substance of paragraphs (a) through (e) of this clause, and this paragraph (i), in subcontracts that are at or below the simplified acquisition threshold in part 2 of the Federal Acquisition Regulation.

(End of clause)

252.247-7028 APPLICATION FOR U.S. GOVERNMENT SHIPPING DOCUMENTATION/INSTRUCTIONS (JUN 2012) DFARS

C20 VENDOR SHIPMENT MODULE (VSM) (JUL 2024)

C18 SHIPPING INSTRUCTIONS FOR EXPORT AND U.S. TERRITORIES (AUG 2017)

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998) FAR

As prescribed in 52.107(b), insert the following clause:
This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):
FAR: https://www.acquisition.gov/?q=browsefar
DFARS: https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html
DLAD: http://www.dla.mil/HQ/Acquisition/Offers/DLAD.aspx

(End of clause)

52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020) FAR

As prescribed in 52.107(f), insert the following clause in solicitations and contracts that include any FAR or supplemental clause with an authorized deviation. Whenever any FAR or supplemental clause is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the clause when it is used without deviation, include regulation name for any supplemental clause, except that the contracting officer shall insert "(DEVIATION)" after the date of the clause.
(b) The use in this solicitation or contract of any DoD FAR Supplement (DFARS) (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

52.253-1 COMPUTER GENERATED FORMS (JAN 1991) FAR

252.204-7018 PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES (JAN 2023) DFARS

252.204-7020 NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023) DFARS

As prescribed in 204.7304(e), use the following clause:
(a) *Definitions.*

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Part 12 Clauses (CONTINUED)

Basic Assessment means a contractor's self-assessment of the contractor's implementation of NIST SP 800 -171 that --
(1) Is based on the Contractor's review of their system security plan(s) associated with covered contractor information system(s);
(2) Is conducted in accordance with the NIST SP 800 -171 DoD Assessment Methodology; and
(3) Results in a confidence level of "Low" in the resulting score, because it is a self-generated score.
Covered contractor information system has the meaning given in the clause 252.204 -7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this contract.
High Assessment means an assessment that is conducted by Government personnel using NIST SP 800 -171A, Assessing Security Requirements for Controlled Unclassified Information that --
(1) Consists of --
(i) A review of a contractor's Basic Assessment;
(ii) A thorough document review;
(iii) Verification, examination, and demonstration of a Contractor's system security plan to validate that NIST SP 800 -171 security requirements have been implemented as described in the contractor's system security plan; and
(iv) Discussions with the contractor to obtain additional information or clarification, as needed; and
(2) Results in a confidence level of "High" in the resulting score.
Medium Assessment means an assessment conducted by the Government that --
(1) Consists of --
(i) A review of a contractor's Basic Assessment;
(ii) A thorough document review; and
(iii) Discussions with the contractor to obtain additional information or clarification, as needed; and
(2) Results in a confidence level of "Medium" in the resulting score.
(b) *Applicability.* This clause applies to covered contractor information systems that are required to comply with the National Institute of Standards and Technology (NIST) Special Publication (SP) 800 -171, in accordance with Defense Federal Acquisition Regulation System (DFARS) clause at 252.204 -7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this contract.
(c) *Requirements.* The Contractor shall provide access to its facilities, systems, and personnel necessary for the Government to conduct a Medium or High NIST SP 800 -171 DoD Assessment, as described in NIST SP 800 -171 DoD Assessment Methodology at *https://www.acq.osd.mil/asda/dpc/cp/cyber/docs/safeguarding/NIST-SP-800-171-Assessment-Methodology-Version-1.2.1-6.24.2020.pdf*, if necessary.
(d) *Procedures.* Summary level scores for all assessments will be posted in the Supplier Performance Risk System (SPRS) (*https://www.sprs.csd.disa.mil/*) to provide DoD Components visibility into the summary level scores of strategic assessments.
(1) *Basic Assessments.* A contractor may submit, via encrypted email, summary level scores of Basic Assessments conducted in accordance with the NIST SP 800 -171 DoD Assessment Methodology to *webptsmh@navy.mil* for posting to SPRS.
(i) The email shall include the following information:
(A) Version of NIST SP 800 -171 against which the assessment was conducted.
(B) Organization conducting the assessment (*e.g.,* Contractor self-assessment).
(C) For each system security plan (security requirement 3.12.4) supporting the performance of a DoD contract --
(*1*) All industry Commercial and Government Entity (CAGE) code(s) associated with the information system(s) addressed by the system security plan; and
(*2*) A brief description of the system security plan architecture, if more than one plan exists.
(D) Date the assessment was completed.
(E) Summary level score (*e.g.,* 95 out of 110, NOT the individual value for each requirement).
(F) Date that all requirements are expected to be implemented (*i.e.,* a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800 -171.
(ii) If multiple system security plans are addressed in the email described at paragraph (b)(1)(i) of this section, the Contractor shall use the following format for the report:

System security plan	CAGE codes supported by this plan	Brief description of the plan architecture	Date of assessment	Total score	Date score of 110 will achieved

(2) *Medium and High Assessments.* DoD will post the following Medium and/or High Assessment summary level scores to SPRS for each system security plan assessed:
(i) The standard assessed (*e.g.,* NIST SP 800 -171 Rev 1).
(ii) Organization conducting the assessment, *e.g.,* DCMA, or a specific organization (identified by Department of Defense Activity Address Code (DoDAAC)).
(iii) All industry CAGE code(s) associated with the information system(s) addressed by the system security plan.
(iv) A brief description of the system security plan architecture, if more than one system security plan exists.
(v) Date and level of the assessment, *i.e.,* medium or high.
(vi) Summary level score (*e.g.,* 105 out of 110, not the individual value assigned for each requirement).
(vii) Date that all requirements are expected to be implemented (*i.e.,* a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800 -171.
(e) *Rebuttals.* (1) DoD will provide Medium and High Assessment summary level scores to the Contractor and offer the opportunity for rebuttal and adjudication of assessment summary level scores prior to posting the summary level scores to SPRS (see SPRS User's Guide https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf).
(2) Upon completion of each assessment, the contractor has 14 business days to provide additional information to demonstrate that they meet any security

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Part 12 Clauses (CONTINUED)

requirements not observed by the assessment team or to rebut the findings that may be of question.
(f) *Accessibility.* (1) Assessment summary level scores posted in SPRS are available to DoD personnel, and are protected, in accordance with the standards set forth in DoD Instruction 5000.79, Defense-wide Sharing and Use of Supplier and Product Performance Information (PI).
(2) Authorized representatives of the Contractor for which the assessment was conducted may access SPRS to view their own summary level scores, in accordance with the SPRS Software User's Guide for Awardees/Contractors available at https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf.
(3) A High NIST SP 800 -171 DoD Assessment may result in documentation in addition to that listed in this clause. DoD will retain and protect any such documentation as “Controlled Unclassified Information (CUI)” and intended for internal DoD use only. The information will be protected against unauthorized use and release, including through the exercise of applicable exemptions under the Freedom of Information Act (*e.g.,* Exemption 4 covers trade secrets and commercial or financial information obtained from a contractor that is privileged or confidential).
(g) *Subcontracts.* (1) The Contractor shall insert the substance of this clause, including this paragraph (g), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services (excluding commercially available off-the-shelf items).
(2) The Contractor shall not award a subcontract or other contractual instrument, that is subject to the implementation of NIST SP 800 -171 security requirements, in accordance with DFARS clause 252.204 -7012 of this contract, unless the subcontractor has completed, within the last 3 years, at least a Basic NIST SP 800 -171 DoD Assessment, as described in https://www.acq.osd.mil/asda/dpc/cp/cyber/docs/safeguarding/NIST-SP-800-171-Assessment-Methodology-Version-1.2.1-6.24.2020.pdf, for all covered contractor information systems relevant to its offer that are not part of an information technology service or system operated on behalf of the Government.
(3) If a subcontractor does not have summary level scores of a current NIST SP 800 -171 DoD Assessment (*i.e.,* not more than 3 years old unless a lesser time is specified in the solicitation) posted in SPRS, the subcontractor may conduct and submit a Basic Assessment, in accordance with the NIST SP 800 -171 DoD Assessment Methodology, to webptsmh@navy.mil for posting to SPRS along with the information required by paragraph (d) of this clause.
(End of clause)

252.204-7022 EXPEDITING CONTRACT CLOSEOUT (MAY 2021) DFARS

252.225-7048 EXPORT CONTROLLED ITEMS (JUN 2013) DFARS

C02 MANUFACTURING PHASE OUT OR DISCONTINUATION OF PRODUCTION, DIMINISHING SOURCES, AND OBSOLETE MATERIALS OR COMPONENTS (DEC 2016)

C19 TRANS-SHIPMENT OF MATERIAL THROUGH DLA CONTAINERIZATION AND CONSOLIDATION POINTS (CCP) (JUL 2024)

52.204-23 PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB COVERED ENTITIES (DEC 2023) FAR

52.204-25 PROHIBITION ON CONTRACTING FOR CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021) FAR

52.204-27 PROHIBITION ON A BYTEDANCE COVERED APPLICATION (JUN 2023) FAR

52.204-28 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS -- FEDERAL SUPPLY SCHEDULES, GOVERNMENTWIDE ACQUISITION CONTRACTS, AND MULTI--AGENCY CONTRACTS (DEC 2023) FAR

52.232-39 UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUN 2013) FAR

52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER-SYSTEM FOR AWARD MANAGEMENT (OCT 2018) FAR

C01 SUPERSEDED PART NUMBERED ITEMS (FEB 2025)

L27 ADDITION AND DELETION OF ITEMS (AUG 2017)

G01 ADDITIONAL WIDE AREA WORKFLOW (WAWF) INFORMATION (AUG 2017)

C17 FIRST DESTINATION TRANSPORTATION (FDT) PROGRAM – SHIPMENTS ORIGINATING FROM OUTSIDE THE CONTIGUOUS UNITED STATES (JUN 2020)
(1) The FDT Program applies to this acquisition. Delivery terms are f.o.b. origin. The Government will conduct inspection and acceptance at

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Part 12 Clauses (CONTINUED)

destination.

(2) If an offeror's shipments will originate from outside the contiguous United States, the offeror shall include in its f.o.b. origin price transportation to a contiguous United States location that the offeror selects based on cost-effectiveness or other variables at the offeror's discretion. The location the offeror selects becomes the point of origin for purposes of the f.o.b. origin terms and conditions of the solicitation or award. The offeror shall identify this contiguous United States location as the pick-up point in the Vendor Shipment Module (https://www.dau.edu/guidebooks/Shared%20Documents%20HTML/Guidebook%20for%20Contract%20Property%20Administration.aspx).

C16 FIRST DESTINATION TRANSPORTATION PROGRAM, GOVERNMENT ARRANGED TRANSPORTATION FOR MANUAL AWARDS (AUG 2017)

C03 CONTRACTOR RETENTION OF SUPPLY CHAIN TRACEABILITY DOCUMENTATION (JUN 2023)

Part 12 Provisions

GTP 2.0 RFP Attachment 1 - Section B - Pricing Spreadsheet

GTP 2.0 RFP Attachment 2 - Global Tires Program (GTP) Vendor Contract Pricing and Lead Times

GTP 2.0 RFP Attachment 3 - GTP Delivery Orders (DOs)

GTP 2.0 RFP Attachment 4 - Source of Supply (SoS)

GTP 2.0 RFP Attachment 5 - Requisition History

GTP 2.0 RFP Attachment 6 - Retreadable Tire Carcasses

GTP 2.0 RFP Attachment 7 - GTP Implementation Inventory

GTP 2.0 RFP Attachment 8 - Trailer Locations

GTP 2.0 RFP Attachment 9 - Sample of Written Authorization

GTP 2.0 RFP Attachment 10 - Scrap Tire Pick Up and Disposal Management History

GTP 2.0 RFP Attachment 11 - Retreadable Tire Carcass Scrap Rate

GTP 2.0 RFP Attachment 12 - Retread Casing Pickup Report

GTP 2.0 RFP Attachment 13 - Cooperative Tire Qualification Program (CTQP) Cooperative Approved Tire List (CATL) 1922

GTP 2.0 RFP Attachment 14 - CTQP CATL 1923

GTP 2.0 RFP Attachment 15 - Special Requirements List

GTP 2.0 RFP Attachment 16 - Palletization Sheet and Wood Packaging Material

GTP 2.0 RFP Attachment 17 - Palletization Requirements Department of Defense (DoD) Activity Address Code (DoDAAC) Listing

GTP 2.0 RFP Attachment 18 - GTP 2.0 National Stock Number (NSN) Product Item Description (PID) and Packaging

GTP 2.0 RFP Attachment 19 - FACTS Sheet

GTP 2.0 RFP Attachment 20 - Subcontractor / Teaming Partner Consent Form

GTP 2.0 RFP Attachment 21 - Present and Past Performance Questionnaire

CONTINUED ON NEXT PAGE

Part 12 Provisions (CONTINUED)

GTP 2.0 RFP Attachment 22 - Transmittal Letter

GTP 2.0 RFP Attachment 23 - Client Authorization Letter

GTP 2.0 RFP Attachment 24 - Small Business Participation Commitment Document (SBPCD)

GTP 2.0 RFP Attachment 25 - Pricing Example

GTP 2.0 RFP Attachment 26 - Palletization History

GTP 2.0 RFP Attachment 27 - Special Packaging Instructions (SPI)

GTP 2.0 RFP Attachment 28 - Tire Weights

NOTE: Due to system constraints, the full title of the Attachments may not be reflected in the actual Attachment itself.

PROVISIONS ADDED TO PART 12 BY ADDENDUM

52.212-2 EVALUATION---COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021) FAR

As prescribed in 12.301(c), the Contracting Officer may insert a provision substantially as follows:

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

See Sections L & M

(Contracting Officer shall insert the significant evaluation factors, such as (i) technical capability of the item offered to meet the Government requirement; (ii) price; (iii) past performance (see FAR 15.304); and include them in the relative order of importance of the evaluation factors, such as in descending order of importance.)

Technical and past performance, when combined, are **See Sections L & M** (Contracting Officer state, in accordance with FAR 15.304, the relative importance of all other evaluation factors, when combined, when compared to price.)

(b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

52.203-2 CERTIFICATE OF INDEPENDENT PRICE DETERMINATION (APR 1985) FAR

As prescribed in 3.103-1 , insert the following provision. If the solicitation is a Request for Quotations, the terms "Quotation" and "Quoter" may be substituted for "Offer" and "Offeror."

(a) The offeror certifies that.

(1) The prices in this offer have been arrived at independently, without, for the purpose of restricting competition, any consultation, communication, or agreement with any other offeror or competitor relating to.

(i) Those prices;

(ii) The intention to submit an offer; or

(iii) The methods or factors used to calculate the prices offered.

(2) The prices in this offer have not been and will not be knowingly disclosed by the offeror, directly or indirectly, to any other offeror or competitor before bid opening (in the case of a sealed bid solicitation) or contract award (in the case of a negotiated solicitation) unless otherwise required by law; and

(3) No attempt has been made or will be made by the offeror to induce any other concern to submit or not to submit an offer for the purpose of restricting competition.

(b) Each signature on the offer is considered to be a certification by the signatory that the signatory.

(1) Is the person in the offeror's organization responsible for determining the prices being offered in this bid or proposal, and that the signatory has not participated and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; or

(2)(i) Has been authorized, in writing, to act as agent for the following principals in certifying that those principals have not participated, and will not participate in any action contrary to paragraphs (a)(1) through (a)(3) of this provision [insert full name of person(s) in the offeror's organization responsible for determining the prices offered in this bid or proposal, and the title of his or her position in the offeror's organization];

(ii) As an authorized agent, does certify that the principals named in subdivision (b)(2)(i) of this provision have not participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision; and

(iii) As an agent, has not personally participated, and will not participate, in any action contrary to paragraphs (a)(1) through (a)(3) of this provision.

(c) If the offeror deletes or modifies paragraph (a)(2) of this provision, the offeror must furnish with its offer a signed statement setting forth in detail the

CONTINUED ON NEXT PAGE

Part 12 Provisions (CONTINUED)

circumstances of the disclosure.

(End of provision)

52.203-11 CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (SEP 2007) FAR

52.203-18 PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS-REPRESENTATION (JAN 2017) FAR

M06 EVALUATION OF OFFERS OF ALTERNATE PRODUCT FOR PART NUMBERED ITEMS (SEP 2016)

L04 OFFERS FOR PART NUMBERED ITEMS (SEP 2016)

(a) For part numbered items, identified in the item description only by the name of an approved source (CAGE code), a part number, and a brief description.
Exact product - applies to contract line-item(s) (CLIN(s)):
CAGE code _ Part number
Alternate product - applies to CLIN(s):
CAGE code _ Part number
Superseding part number - applies to CLIN(s):
CAGE code _ Part number
Identify reason for superseding Part number:
Administrative P/N change only: Yes _ No
Minor change/No change in configuration: Yes _ No
Previously-approved product - applies to CLIN(s):
Contract or Solicitation Number:
CAGE code _ Part number
Correction to CAGE/Part Number - applies to CLIN(s)
CAGE code in error/same corporation, different division Yes _ No
CAGE code in error/sold to different corporation Yes _ No
Part number not recognized Yes _ No
Obsolete part number Yes _ No
Other Yes _ No
(b) Exact product means a product described by the name of an approved source and its corresponding part number cited in the item description; and manufactured by, or under the direction of, that approved source. An offeror of an exact product must meet one of the descriptions below.
(1) An approved source offering its part number cited in the item description;
(2) A dealer/distributor offering the product of an approved source and part number cited in the item description;
(3) A manufacturer who produces the offered item under the direction of an approved source; and has authorization from that approved source to manufacture the item, identify it as that approved source's name and part number, and sell the item directly to the Government.
(4) A dealer/distributor offering the product of a manufacturer that meets the description in subparagraph (3) above.
(c) Alternate product.
(1) The offeror must indicate that an alternate product is being offered if the offeror is any one of the following:
(i) An offeror who manufactures the item for an approved source cited in the item description, but does not have authorization from the approved source to identify it as the approved source part number, and sell the item directly to the Government;
(ii) A dealer/distributor offering the product of a manufacturer that meets the description in (i) above;
(iii) An offeror of a reverse-engineered product that is not cited in the item description; or
(iv) An offeror whose product does not meet the criteria of exact product, superseding product or previously approved product.
(2) An offer of an alternate product is an alternate offer.
(d) The offeror must indicate that a superseding part number is being offered if the offered item otherwise qualifies as an exact product, except that the part number cited in the item description has been superseded due to an administrative part number change with no change in configuration of the item.
(e) The offeror must indicate that a previously-approved product is being offered if the product offered has previously been delivered to the Government or otherwise previously evaluated and approved.
(f) Correction to CAGE/Part Number Cited in the Item Description
Submitted by offeror to notify the Government if there is a CAGE code error: same corporation/different division; sold to different corporation; part number not recognized; obsolete part number; other.
(g) Traceability documentation.
(1) The contracting officer may request evidence of the technical acceptability of the product offered. The evidence must be submitted within 2 days, or as otherwise specified, or the offer will not be considered.
(2) For offers of exact product, offerors other than the approved manufacturing source must retain evidence and provide the traceability evidence of the identity of the item and its manufacturing source when requested by the contracting officer.
(i) If offered item(s) are not in stock or not yet manufactured a copy of an original quotation from the approved source to the offeror identifying exact item cited in item description and a quantity sufficient to satisfy the solicitation requirement.
(ii) If offered item(s) are shipped or in stock, a copy of invoice on approved source's letterhead; or a copy of packing slip which accompanied shipment from approved source to offeror. The invoices and packing slips must identify exact item cited in item description and a quantity sufficient to satisfy the solicitation requirement.
(iii) If the offeror is an authorized dealer/distributor, or manufactures the item for an approved source, a copy of the contractual agreement with, or the express written authority of, the approved source to buy, stock, repackage, sell, or distribute the part. The agreement must specifically identify the exact item, or otherwise ensure that the offeror is authorized by the approved source to manufacture or distribute the exact item being acquired. If the agreement covers a general product line or is otherwise not product specific, the offeror must furnish additional documentation to address the exact item being acquired.

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Part 12 Provisions (CONTINUED)

(iv) Other verifiable information.
(1) For superseding part number, the offeror may be requested to furnish evidence to establish that there are no changes in the configuration of the part.
(2) For previously approved products, upon request of the contracting officer, the offeror must furnish the contract, solicitation, source approval request (SAR) package, or letter of approval under which the product was previously furnished or approved.
(h) Alternate offer data.
(1) The contracting officer may request drawings, specifications, or other data necessary to clearly describe the characteristics and features of an alternate offer. Data submitted shall cover design, materials, performance, function, interchangeability, inspection or testing criteria, and other characteristics of the offered product. The contracting officer may also request drawings and other data covering the design, materials, etc., of the exact product cited in the item description if the Agency does not possess data sufficient to evaluate the alternate product. The data must be submitted within 10 days, or as otherwise specified, or the offer will not be considered.
(2) If the alternate product is a reverse-engineered product, the offeror shall provide: technical documentation to establish that the offered item represents the exact item specified in the item description (i.e., invoice from an approved source or submission of samples having markings of an approved source); number of samples that were examined; the process/logic used; raw data (measurements, lab reports, test results) used to prepare drawings or specifications for the offered item; any additional evidence that indicates the reverse-engineered item will function properly in the end item; and any evidence that life cycle/ reliability considerations have been analyzed.
(j) Evaluation of alternate offers
If the solicitation does not provide for evaluation of alternate offers for the current procurement, the offeror may submit a request for evaluation of the alternate product's technical acceptability for future procurements of the same item. The request for evaluation shall cite the national stock number (NSN) of the exact product and include the applicable level of technical data. The level of technical data that the Government has available for use to evaluate the acceptability of an alternate product offered, and the corresponding level of technical data that must be furnished with an offer of alternate product, will be identified in the item description and/or via correspondence with the appropriate location below.
(1) For solicitation numbers beginning with SPE7:
DLA Land and Maritime
Directorate of Procurement Alternate offer monitor, BPP
Post Office (P.O.) Box 3990
Columbus, Ohio 43218-3990
(2) For solicitation numbers beginning with SPE4:
DLA Aviation
Office of the Competition Advocate
Attention: BPC
8000 Jefferson Davis Highway
Richmond, Virginia 23297-5100
(3) For solicitation numbers beginning with SPE1, SPE2, SPE3, SPE5, or SPE8:
DLA Troop Support
Attention: (see note below)
700 Robbins Avenue
Philadelphia, Pennsylvania 19111-5096
Note: The address (attention line) will change based on the 4th digit of the PIIN as follows:
SPE1 = Clothing and Textile (C&T)
SPE2 = Medical
SPE3 = Subsistence
SPE5 = Industrial Hardware (formerly Aviation or L&M detachments)
SPE8 = Construction and Equipment (C&E)
(4) For solicitation numbers beginning with SPRRA1 and SPRRA2:
Defense Logistics Agency - DLA Aviation
Office of the Competition Advocate
Building 5201
Redstone Arsenal, Alabama 35898
(5) For solicitation numbers beginning with SPRPA1:
DLA Philadelphia
Competition Advocate Office
700 Robbins Avenue Building 1
Philadelphia, Pennsylvania 19111-5098
(6) For Tank-Automotive and Armaments Command (TACOM) Depot Level Repairable (DLR) - DLA Land and Maritime solicitations beginning with SPRDL1:
Defense Logistics Agency
DLR Procurement Operations - ZG
6501 East Eleven Mile Road
Warren, Michigan 48397-5000
(7) For Communications-Electronics Command (CECOM) DLR-DLA Land and Maritime solicitations beginning with SPRBL1: Defense Logistics Agency
DLR Procurement Operations - ZL
6001 Combat Dr., Rm. C1-301
Aberdeen Proving Ground, MD 21005-1846

H15 TRANSPORTER PROOF OF DELIVERY (TPD) (JAN 2021)

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Part 12 Provisions (CONTINUED)

252.225-7031 SECONDARY ARAB BOYCOTT OF ISRAEL (JUN 2005) DFARS

52.222-56 CERTIFICATION REGARDING TRAFFICKING IN PERSONS COMPLIANCE PLAN (OCT 2020) FAR

252.215-7008 ONLY ONE OFFER (DEC 2022) DFARS

252.203-7005 REPRESENTATION RELATING TO COMPENSATION OF FORMER DOD OFFICIALS (SEP 2022) DFARS

52.204-3 TAXPAYER IDENTIFICATION (OCT 1998) FAR

As prescribed in 4.905 , insert the following provision:
(a) Definitions.
“Common parent,” as used in this provision, means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.
“Taxpayer Identification Number (TIN),” as used in this provision, means the number required by the Internal Revenue Service (IRS) to be used by the offeror in reporting income tax and other returns. The TIN may be either a Social Security Number or an Employer Identification Number.
(b) All offerors must submit the information required in paragraphs (d) through (f) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the IRS. If the resulting contract is subject to the payment reporting requirements described in Federal Acquisition Regulation (FAR) 4.904, the failure or refusal by the offeror to furnish the information may result in a 31 percent reduction of payments otherwise due under the contract.
(c) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.
(d) Taxpayer Identification Number (TIN).
[ ] TIN: _.
[ ] TIN has been applied for.
[ ] TIN is not required because:
[ ] Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;
[ ] Offeror is an agency or instrumentality of a foreign government;
[ ] Offeror is an agency or instrumentality of the Federal Government.
(e) Type of organization.
[ ] Sole proprietorship;
[ ] Partnership;
[ ] Corporate entity (not tax-exempt);
[ ] Corporate entity (tax-exempt);
[ ] Government entity (Federal, State, or local);
[ ] Foreign government;
[ ] International organization per 26 CFR 1.6049-4;
[ ] Other .
(f) Common parent.
[ ] Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision.
[ ] Name and TIN of common parent:
Name
TIN

(End of provision)

52.204-5 WOMEN-OWNED BUSINESS (OTHER THAN SMALL BUSINESS) (OCT 2014) FAR

52.204-17 OWNERSHIP OR CONTROL OF OFFEROR (AUG 2020) FAR

As prescribed in 4.1804(b), use the following provision:

(a) Definitions. As used in this provision --

Commercial and Government Entity (CAGE) code means --

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: Ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

(b) The Offeror represents that it [ ] has or [_] does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (c) and if applicable, paragraph (d) of this provision for each participant in the joint venture.

(c) If the Offeror indicates “has” in paragraph (b) of this provision, enter the following information:

Immediate owner CAGE code:

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Part 12 Provisions (CONTINUED)

Immediate owner legal name:
(Do not use a "doing business as" name)
Is the immediate owner owned or controlled by another entity?: [_] Yes or [ ] No.
(d) If the Offeror indicates "yes" in paragraph (c) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:
Highest-level owner CAGE code:
Highest-level owner legal name:
(Do not use a "doing business as" name)

(End of provision)

252.204-7008 COMPLIANCE WITH SAFEGUARDING COVERED DEFENSE INFORMATION CONTROLS (OCT 2016) DFARS

L31 ADDITIVE MANUFACTURING (JUN 2018)

52.209-5 CERTIFICATION REGARDING RESPONSIBILITY MATTERS (AUG 2020) FAR

As prescribed in 9.104-7(a), insert the following provision:
(a)(1) The Offeror certifies, to the best of its knowledge and belief, that --
(i) The Offeror and/or any of its Principals --
(A) Are [ ] are not [ ] presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;
(B) Have [ ] have not [ ], within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);
(C) Are [ ] are not [ ] presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in subdivision (a)(1)(i)(B) of this provision; and
(D) Have [ ] have not [ ] ,within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.
(1) Federal taxes are considered delinquent if both of the following criteria apply:
(i) The tax liability is finally determined. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.
(ii) The taxpayer is delinquent in making payment. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.
(2) Examples. (i) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.
(ii) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.
(iii) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.
(iv) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).
(ii) The Offeror has [ ] has not [ ] , within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.
(2) Principal, for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).
(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.
(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be considered in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.
(d) Nothing contained in the foregoing shall be construed to require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a) of this provision. The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.
(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018) FAR

(a) Definitions. As used in this provision -
"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g.,

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Part 12 Provisions (CONTINUED)

Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.
“Federal contracts and grants with total value greater than $10,000,000” means -
(1) The total value of all current, active contracts and grants, including all priced options; and
(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).
“Principal” means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).
(b) The offeror [ ] has [ ] does not have current active Federal contracts and grants with total value greater than $10,000,000.
(c) If the offeror checked “has” in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:
(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:
(i) In a criminal proceeding, a conviction.
(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.
(iii) In an administrative proceeding, a finding of fault and liability that results in -
(A) The payment of a monetary fine or penalty of $5,000 or more; or
(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.
(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.
(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.
(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the Central Contractor Registration database via https://www.acquisition.gov (see 52.204-7).
(End of provision)

52.209-11 REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2016) FAR

As prescribed in 9.104-7(d), insert the following provision:

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that --

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that --

(1) It is [ ] is not [ ] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is [ ] is not [ ] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

H18 DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM (DPAS) RATED AWARDS (FEB 2025)

E07 EVALUATION FACTOR FOR ORIGIN INSPECTION (JAN 2018)

252.215-7010 REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA---ALTERNATE I (JAN 2023) DFARS

Alternate I. As prescribed in 215.408(5)(i) and (5)(i)(B), use the following provision, which includes a different paragraph (c)(1).
(a) Definitions. As used in this provision -
Market prices means current prices that are established in the course of ordinary trade between buyers and sellers free to bargain and that can be substantiated through competition or from sources independent of the offerors.
Non-Government sales means sales of the supplies or services to non-Governmental entities for purposes other than governmental purposes.
Relevant sales data means information provided by an offeror on sales of the same or similar items that can be used to establish price reasonableness taking

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Part 12 Provisions (CONTINUED)

into consideration the age, volume, and nature of the transactions (including any related discounts, refunds, rebates, offsets, or other adjustments).
Sufficient non-Government sales means relevant sales data that reflects market pricing and contains enough information to make adjustments covered by FAR 15.404-1(b)(2)(ii)(B).
Uncertified cost data means the subset of “data other than certified cost or pricing data” (see FAR 2.101) that relates to cost.
(b) Exceptions from certified cost or pricing data. (1) In lieu of submitting certified cost or pricing data, the Offeror may submit a written request for exception by submitting the information described in paragraphs (b)(1)(i) and (ii) of this provision. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted and whether the price is fair and reasonable.
(i) Exception for price set by law or regulation - Identification of the law or regulation establishing the price offered. If the price is controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.
(ii) Commercial product or commercial service exception. For a commercial product or commercial service exception, the Offeror shall submit, at a minimum, information that is adequate for evaluating the reasonableness of the price for this acquisition, including prices at which the same product or service or similar products or services have been sold in the commercial market. Such information shall include -
(A) For products or services previously determined to be commercial, the contract number and military department, defense agency, or other DoD component that rendered such determination, and if available, a Government point of contact;
(B) For items priced based on a catalog -
(1) A copy of or identification of the Offeror's current catalog showing the price for that item; and
(2) If the catalog pricing provided with this proposal is not consistent with all relevant sales data, a detailed description of differences or inconsistencies between or among the relevant sales data, the proposed price, and the catalog price (including any related discounts, refunds, rebates, offsets, or other adjustments);
(C) For items priced based on market pricing, a description of the nature of the commercial market, the methodology used to establish a market price, and all relevant sales data. The description shall be adequate to permit the DoD to verify the accuracy of the description;
(D) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item; or
(E) For items provided by nontraditional defense contractors, a statement that the entity is not currently performing and has not performed, for at least the 1-year period preceding the solicitation of sources by the DoD for the procurement or transaction, any contract or subcontract for the DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. 1502 and the regulations implementing such section.
(2) The Offeror grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this provision, and to determine the reasonableness of price.
(c) Requirements for certified cost or pricing data. If the Offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:
(1) The Offeror shall submit certified cost or pricing data and supporting attachments in the following format: [ ].
(2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the Offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.406-2.
(3) The Offeror is responsible for determining whether a subcontractor qualifies for an exception from the requirement for submission of certified cost or pricing data on the basis of adequate price competition, i.e., two or more responsible offerors, competing independently, submit priced offers that satisfy the Government's expressed requirement in accordance with FAR 15.403-1(c)(1)(i).
(d) Requirements for data other than certified cost or pricing data. (1) Data other than certified cost or pricing data submitted in accordance with this provision shall include all data necessary to permit a determination that the proposed price is fair and reasonable, to include the requirements in DFARS 215.402(a)(i) and 215.404-1(b).
(2) In cases in which uncertified cost data is required, the information shall be provided in the form in which it is regularly maintained by the Offeror or prospective subcontractor in its business operations.
(3) The Offeror shall provide information described as follows: [Previous procurement history, production information, informal cost breakdowns, sales invoices, published price lists, etc.].
(4) Within 10 days of a written request from the Contracting Officer for additional information to support proposal analysis, the Offeror shall provide either the requested information, or a written explanation for the inability to fully comply.
(5) Subcontract price evaluation. (i) Offerors shall obtain from subcontractors the information necessary to support a determination of price reasonableness, as described in FAR part 15 and DFARS part 215.
(ii) No cost information may be required from a prospective subcontractor in any case in which there are sufficient non-Government sales of the same item to establish reasonableness of price.
(iii) If the Offeror relies on relevant sales data for similar items to determine the price is reasonable, the Offeror shall obtain only that technical information necessary -
(A) To support the conclusion that items are technically similar; and
(B) To explain any technical differences that account for variances between the proposed prices and the sales data presented.
(e) Subcontracts. The Offeror shall insert the substance of this provision, including this paragraph (e), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2. The Offeror shall require prospective subcontractors to adhere to the requirements of -
(1) Paragraph (c) and (d) of this provision for subcontracts above the threshold for submission of certified cost or pricing data in FAR 15.403-4; and
(2) Paragraph (d) of this provision for subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

252.215-7013 SUPPLES AND SERVICES PROVIDED BY NONTRADITIONAL DEFENSE CONTRACTORS (JAN 2023) DFARS

252.215-7016 NOTIFICATION TO OFFERORS - POSTAWARD DEBRIEFINGS (DEC 2022) DFARS

52.216-1 TYPE OF CONTRACT (APR 1984) FAR

As prescribed in 16.105 , complete and insert the following provision:

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Part 12 Provisions (CONTINUED)

The Government contemplates award of a **Firm Fixed Price** contract resulting from this solicitation.

(End of provision)

52.217-5 EVALUATION OF OPTIONS (JUL 1990) FAR

L22 RESTRICTION OF ALTERNATE OFFERS FOR SOURCE CONTROLLED ITEMS (SEP 2017)

52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (CLASS DEVIATION 2024-O0002) (FEB 2024) FAR

Insert the following deviation provision with its Alternate I in solicitations exceeding the micro-purchase threshold when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied this part in accordance with 19.000 (b)(1)(ii).

(a) *Definitions*. As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with *13 CFR part 127*, and the concern is certified by SBA or an approved third-party certifier in accordance with *13 CFR 127.300*. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

(1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran or;

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C.101(2), with a disability that is service-connected, as defined in 38 U.S.C.101(16), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that --

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern --

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C.101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with *13 CFR part 127*) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with *13 CFR 127.300*.

(b)(1) The North American Industry Classification System (NAICS) code for this acquisition is **493190** *[insert NAICS code]*.

(2) The small business size standard is **$36.5M** *[insert size standard]*.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition --

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

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Part 12 Provisions (CONTINUED)

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.
(c) *Representations.*
(1) The offeror represents as part of its offer that --
(i) It **[]** is, **[]** is not a small business concern; or
(ii) It **[]** is, **[]** is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* .]
(2) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it **[]** is, **[]** is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.
(3) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents as part of its offer that it **[]** is, **[]** is not a women-owned small business concern.
(4) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The offeror represents as part of its offer that it **[]** is, **[]** is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* .]
(5) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents as part of its offer that it **[]** is, **[]** is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* .]
(6) *Veteran-owned small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents as part of its offer that it **[]** is, **[]** is not a veteran-owned small business concern.
(7) *SDVOSB concern.* [*Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.*] The offeror represents as part of its offer that it **[]** is, **[]** is not an SDVOSB concern.
(8) *SDVOSB joint venture eligible under the SDVOSB Program*. [*Complete only if the offeror represented itself as a SDVOSB concern in paragraph (c)(7) of this provision*]. The offeror represents as part of its offer that it **[]** is, **[]** is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _.]
(9) *HUBZone small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents, as part of its offer, that --
(i) It **[]** is, **[]** is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and
(ii) It **[]** is, **[]** is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* .] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.
(d) *Notice.* Under 15 U.S.C.645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall-
(1) Be punished by imposition of fine, imprisonment, or both;
(2) Be subject to administrative remedies, including suspension and debarment; and
(3) Be ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS --- ALTERNATE I (CLASS DEVIATION 2024-O0002) (FEB 2024) FAR

Alternate I (FEB 2024). As prescribed in *19.309* (a)(2) add the following paragraph (c)(10) to the basic provision:
(10) [*Complete if offeror represented itself as disadvantaged in paragraph (c)(2) of this provision.*] The offeror shall check the category in which its ownership falls:
[] Black American.
[] Hispanic American.
[] Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).
[] Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).
[] Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).
[] Individual/concern, other than one of the preceding.

(End of provision)

252.219-7000 ADVANCING SMALL BUSINESS GROWTH (JUN 2023) FAR

52.222-18 CERTIFICATION REGARDING KNOWLEDGE OF CHILD LABOR FOR LISTED END PRODUCTS (FEB 2021) FAR

As prescribed in 22.1505(a), insert the following provision:
(a) Definition.
“Forced or indentured child labor” means all work or service --
(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself

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Part 12 Provisions (CONTINUED)

voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

(b) Listed end products. The following end product(s) being acquired under this solicitation is (are) included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, identified by their country of origin. There is a reasonable basis to believe that listed end products from the listed countries of origin may have been mined, produced, or manufactured by forced or indentured child labor.

Listed End Product	Listed Countries of Origin

(c) Certification. The Government will not make award to an offeror unless the offeror, by checking the appropriate block, certifies to either paragraph (c)(1) or paragraph (c)(2) of this provision.

(1) The offeror will not supply any end product listed in paragraph (b) of this provision that was mined, produced, or manufactured in a corresponding country as listed for that end product.

(2) The offeror may supply an end product listed in paragraph (b) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture such end product. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(End of provision)

52.222-38 COMPLIANCE WITH VETERANS' EMPLOYMENT REPORTING REQUIREMENTS (FEB 2016) FAR

52.223-13 ACQUISITION OF EPEAT® - REGISTERED IMAGING EQUIPMENT (JUN 2014) FAR

52.225-18 PLACE OF MANUFACTURE (AUG 2018) FAR

As prescribed in 25.1101(f), insert the following solicitation provision:
(a) Definitions. As used in this provision --
“Manufactured end product” means any end product in Federal Supply Classes (FSC) 1000-9999, except --
(1) FSC 5510, Lumber and Related Basic Wood Materials;
(2) Federal Supply Group (FSG) 87, Agricultural Supplies;
(3) FSG 88, Live Animals;
(4) FSG 89, Food and Related Consumables;
(5) FSC 9410, Crude Grades of Plant Materials;
(6) FSC 9430, Miscellaneous Crude Animal Products, Inedible;
(7) FSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
(8) FSC 9610, Ores;
(9) FSC 9620, Minerals, Natural and Synthetic; and
(10) FSC 9630, Additive Metal Materials.
“Place of manufacture” means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.
(b) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly --
(1) **[ ]** In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or
(2) **[ ]** Outside the United States.

(End of provision)

252.225-7042 AUTHORIZATION TO PERFORM (APR 2003) DFARS

252.225-7055 REPRESENTATION REGARDING BUSINESS OPERATIONS WITH THE MADURO REGIME (MAY 2022) DFARS

252.225-7057 PREAWARD DISCLOSURE OF EMPLOYMENT OF INDIVIDUALS WHO WORK IN THE PEOPLE’S REPUBLIC OF CHINA (AUG 2022) DFARS

L06 AGENCY PROTESTS (DEC 2016)

5452.233-9001 DISPUTES - AGREEMENT TO USE ALTERNATIVE DISPUTE RESOLUTION (JUN 2020) DLAD

(a) The parties agree to negotiate with each other to try to resolve any disputes that may arise. If unassisted negotiations are unsuccessful, the parties will use alternative dispute resolution (ADR) techniques to try to resolve the dispute. Litigation will only be considered as a last resort when ADR is unsuccessful or has been documented by the party rejecting ADR to be inappropriate for resolving the dispute.

(b) Before either party determines ADR inappropriate, that party must discuss the use of ADR with the other party. The documentation rejecting ADR must be signed by an official authorized to bind the Contractor (see Federal Acquisition Regulation (FAR) clause 52.233-1), or, for the Agency, by the Contracting Officer, and approved at a level above the Contracting Officer after consultation with the ADR Specialist and with legal. Contractor personnel are also encouraged to include the ADR Specialist in their discussions with the Contracting Officer before determining ADR to be inappropriate.

(c) The offeror should check here to opt out of this clause:

[ ] Alternate wording may be negotiated with the contracting officer.

C21 SHIPPING INSTRUCTION REQUEST (SIR) (JUL 2024)

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998) FAR

As prescribed in 52.107(a), insert the following provision:

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Part 12 Provisions (CONTINUED)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):
FAR: https://www.acquisition.gov/?q=browsefar
DFARS: https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html
DLAD: http://www.dla.mil/HQ/Acquisition/Offers/DLAD.aspx

(End of provision)

52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020) FAR

As prescribed in 52.107(e), insert the following provision in solicitations that include any FAR or supplemental provision with an authorized deviation. Whenever any FAR or supplemental provision is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the provision when it is used without deviation, include regulation name for any supplemental provision, except that the contracting officer shall insert "(DEVIATION)" after the date of the provision.

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the date of the provision.

(b) The use in this solicitation of any DoD FAR Supplement (DFARS) (48 CFR Chapter 2) provision with an authorized deviation Is indicated by the addition of “(DEVIATION)” after the name of the regulation.

(End of Provision)

252.204-7016 COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES---REPRESENTATION (DEC 2019) DFARS

As prescribed in 204.2105 (a), use the following provision:

(a) *Definitions*. As used in this provision, “covered defense telecommunications equipment or services” has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for “covered defense telecommunications equipment or services”.

(c) *Representation*. The Offeror represents that it [ ] does, [ ] does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 PROHIBITION ON THE ACQUISITON OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES---REPRESENTATION (MAY 2021) DFARS

As prescribed in 204.2105 (b), use the following provision:
The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016 , Covered Defense Telecommunications Equipment or Services --Representation, that it “does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.”
(a) *Definitions*. “Covered defense telecommunications equipment or services,” “covered mission,” “critical technology,” and “substantial or essential component,” as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.
(b) *Prohibition*. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.
(c) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.
(d) *Representation*. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016 , Covered Defense Telecommunications Equipment or Services --Representation, that it “does” provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:
The Offeror represents that it [ ] will [] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.
(e) *Disclosures*. If the Offeror has represented in paragraph (d) of this provision that it “will provide covered defense telecommunications equipment or services,” the Offeror shall provide the following information as part of the offer:
(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).
(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.
(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).
(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.204-7019 NOTICE OF NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023) DFARS

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Part 12 Provisions (CONTINUED)

As prescribed in 204.7304(d), use the following provision:
(a) *Definitions.*
Basic Assessment, Medium Assessment, and *High Assessment* have the meaning given in the clause 252.204 -7020, NIST SP 800 -171 DoD Assessments.
Covered contractor information system has the meaning given in the clause 252.204 -7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this solicitation.
(b) *Requirement.* In order to be considered for award, if the Offeror is required to implement NIST SP 800 -171, the Offeror shall have a current assessment (*i.e.,* not more than 3 years old unless a lesser time is specified in the solicitation) (see 252.204 -7020) for each covered contractor information system that is relevant to the offer, contract, task order, or delivery order. The Basic, Medium, and High NIST SP 800 -171 DoD Assessments are described in the NIST SP 800 -171 DoD Assessment Methodology located at *https://www.acq.osd.mil/asda/dpc/cp/cyber/docs/safeguarding/NIST-SP-800-171-Assessment-Methodology-Version-1.2.1-6.24.2020.pdf*
(c) *Procedures.* (1) The Offeror shall verify that summary level scores of a current NIST SP 800 -171 DoD Assessment (*i.e.,* not more than 3 years old unless a lesser time is specified in the solicitation) are posted in the Supplier Performance Risk System (SPRS) (*https://www.sprs.csd.disa.mil/*) for all covered contractor information systems relevant to the offer.
(2) If the Offeror does not have summary level scores of a current NIST SP 800 -171 DoD Assessment (*i.e.,* not more than 3 years old unless a lesser time is specified in the solicitation) posted in SPRS, the Offeror may conduct and submit a Basic Assessment to *webptsmh@navy.mil* for posting to SPRS in the format identified in paragraph (d) of this provision.
(d) *Summary level scores.* Summary level scores for all assessments will be posted 30 days post-assessment in SPRS to provide DoD Components visibility into the summary level scores of strategic assessments.
(1) *Basic Assessments.* An Offeror may follow the procedures in paragraph (c)(2) of this provision for posting Basic Assessments to SPRS.
(i) The email shall include the following information:
(A) Cybersecurity standard assessed (*e.g.,* NIST SP 800 -171 Rev 1).
(B) Organization conducting the assessment (*e.g.,* Contractor self-assessment).
(C) For each system security plan (security requirement 3.12.4) supporting the performance of a DoD contract --
(*1*) All industry Commercial and Government Entity (CAGE) code(s) associated with the information system(s) addressed by the system security plan; and
(*2*) A brief description of the system security plan architecture, if more than one plan exists.
(D) Date the assessment was completed.
(E) Summary level score (*e.g.,* 95 out of 110, NOT the individual value for each requirement).
(F) Date that all requirements are expected to be implemented (*i.e.,* a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800 -171.
(ii) If multiple system security plans are addressed in the email described at paragraph (d)(1)(i) of this section, the Offeror shall use the following format for the report:

System Security Plan	CAGE Codes supported by this plan	Brief description of the plan architecture	Date of assessment	Total Score	Date score of 110 will achieved

(2) *Medium and High Assessments.* DoD will post the following Medium and/or High Assessment summary level scores to SPRS for each system assessed:
(i) The standard assessed (*e.g.,* NIST SP 800 -171 Rev 1).
(ii) Organization conducting the assessment, *e.g.,* DCMA, or a specific organization (identified by Department of Defense Activity Address Code (DoDAAC)).
(iii) All industry CAGE code(s) associated with the information system(s) addressed by the system security plan.
(iv) A brief description of the system security plan architecture, if more than one system security plan exists.
(v) Date and level of the assessment, *i.e.,* medium or high.
(vi) Summary level score (*e.g.,* 105 out of 110, not the individual value assigned for each requirement).
(vii) Date that all requirements are expected to be implemented (*i.e.,* a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800 -171.
(3) *Accessibility.* (i) Assessment summary level scores posted in SPRS are available to DoD personnel, and are protected, in accordance with the standards set forth in DoD Instruction 5000.79, Defense-wide Sharing and Use of Supplier and Product Performance Information (PI).
(ii) Authorized representatives of the Offeror for which the assessment was conducted may access SPRS to view their own summary level scores, in accordance with the SPRS Software User's Guide for Awardees/Contractors available at https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf.
(iii) A High NIST SP 800 -171 DoD Assessment may result in documentation in addition to that listed in this section. DoD will retain and protect any such documentation as “Controlled Unclassified Information (CUI)” and intended for internal DoD use only. The information will be protected against unauthorized use and release, including through the exercise of applicable exemptions under the Freedom of Information Act (*e.g.,* Exemption 4 covers trade secrets and commercial or financial information obtained from a contractor that is privileged or confidential).
(End of provision)

252.204-7024 NOTICE ON THE USE OF THE SUPPLIER PERFORMANCE RISK SYSTEM (MAR 2023) DFARS

252.239-7098 PROHIBITION ON CONTRACTING TO MAINTAIN OR ESTABLISH A COMPUTER NETWORK UNLESS SUCH NETWORK IS DESIGNED TO BLOCK ACCESS TO CERTAIN WEBSITES---REPRESENTATION (DEVIATION 2021-O0003) (APR 2021)

Include the following provision in all solicitations, including solicitations for the acquisition of commercial items under FAR part 12, that will use funds

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Part 12 Provisions (CONTINUED)

made available by the Consolidated Appropriations Act, 2021 (Pub. L. 116-260), or any other Act that extends to fiscal year 2021 funds the same prohibitions as contained in section 8116, division C, title VIII, of the Consolidated Appropriations Act, 2021 (Pub. L. 116-260).
(a) In accordance with section 8116 of Division C of the Consolidated Appropriations Act, 2021 (Pub. L. 116-260), or any other Act that extends to fiscal year 2021 funds the same prohibitions, none of the funds appropriated (or otherwise made available) by this or any other Act for DoD may be used to enter into a contract to maintain or establish a computer network unless such network is designed to block access to pornography websites. This prohibition does not limit the use of funds necessary for any Federal, State, tribal, or local law enforcement agency or any other entity carrying out criminal investigations, prosecution, or adjudication activities, or for any activity necessary for the national defense, including intelligence activities.
(b) *Representation*. By submission of its offer, the Offeror represents that it is not providing as part of its offer a proposal to maintain or establish a computer network unless such network is designed to block access to pornography websites.
(End of provision)

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021) FAR

As prescribed in 4.2105(a), insert the following provision:
The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it “does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument” in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services --Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services . The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it “does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services” in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.
(a) *Definitions.* As used in this provision-
Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and *substantial or essential component* have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.
(b) *Prohibition.* (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to --
(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or
(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.
(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to --
(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or
(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.
(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (*https://www.sam.gov*) for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”
(d) *Representations.* The Offeror represents that --
(1) It [ ] will, [ ] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds “will” in paragraph (d)(1) of this section; and
(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that --
It [ ] does, [ ] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds “does” in paragraph (d)(2) of this section.
(e) *Disclosures.* (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded “will” in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:
(i) For covered equipment --
(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);
(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and
(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.
(ii) For covered services --
(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or
(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered

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Part 12 Provisions (CONTINUED)

telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.
(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:
(i) For covered equipment --
(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);
(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and
(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.
(ii) For covered services --
(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or
(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES---REPRESENTATION (OCT 2020) FAR

As prescribed in 4.2105(c), insert the following provision:
(a) *Definitions.* As used in this provision, "covered telecommunications equipment or services" has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.
(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".
(c) *Representation.* The Offeror represents that it [ ] does, [ ] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.
(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it [ ] does, [ ] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.233-2 SERVICE OF PROTEST (SEP 2006) FAR

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from **Charles E. Mielke II; charles.mielkeii@dla.mil**. [Contracting Officer designate the official or location where a protest may be served on the Contracting Officer.]

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Clause)

SECTION L
INSTRUCTIONS, CONDITIONS AND NOTICES TO OFFERORS

Preparation and Submittal: The following instructions cover the preparation of an offeror's proposal for this GTP 2.0 Request for Proposal (RFP). To assure timely and equitable evaluation of proposals, offerors must follow the instructions contained herein. Offerors are cautioned that any noncompliance with the terms and conditions of the GTP 2.0 RFP may cause their proposals to be determined "Unacceptable" and therefore not eligible for award. Proposals shall be submitted in electronic format as set forth below in Table A.

Table A
VOLUME DESCRIPTION PAGE LIMITS
Volume I Completed GTP 2.0 RFP (Proposal shall include the entire GTP 2.0 RFP with clause and provision fill ins addressed) N/A

Volume II Factor 1: Past Performance 15

Volume III Factor 4: Price 75

Volume IV Factor 2: Technical 50
Subfactor 1: Management and Operations
Subfactor 2: Transition and Implementation
Subfactor 3: Resource Availability / Financing

Volume V Factor 3: Small Business Participation 10

In addition to the page limitations set forth above in Table A, proposals shall comply with the following format:

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Part 12 Provisions (CONTINUED)

1. The offeror shall submit their proposal package within the Solicitation Module within the Procurement Integrated Enterprise Environment, accessible at https://piee.eb.mil/.

2. The offeror shall attach a cover sheet to the outer cover of each volume, which clearly identifies each volume-by-volume number, volume name, GTP 2.0 RFP number, date of submission, the offeror's company name and address, and the offeror's CAGE code. Any page(s) containing proprietary information should be identified by the offeror. The cover sheet shall not count towards the page limitations.

3. Proposals shall be in the English language and all monies shall be proposed in United States (U.S.) dollars.

4. The offeror's proposal shall be prepared with a font of "Times New Roman" and font size no smaller than 12. Any pages submitted in excess of the page limits identified above in Table A will not be evaluated. Each page containing proprietary information should be marked. In addition to the specific requirements for each proposed volume, the offeror shall provide any supporting materials (indexes, matrixes, charts, acronym lists, or graphics) considered necessary for the Government to fully understand the proposal. All supporting materials are not subject to the page limit requirements. It is the vendor's discretion in the font type and size to use in their supporting material so long as the supporting material remains legible if printed on 8.5 x11 inch paper. Each page should contain the following legend at the bottom of each page/sheet:

SOURCE SELECTION INFORMATION - SEE FAR 2.101 AND 3.104 - CUI

5. Volume III, Attachment 1 - Section B - Pricing Spreadsheet for Contract Line-Item Numbers (CLINs) 0001 - 0010 shall be submitted via Microsoft Excel format and formatted and labeled as stated above.

6. Each proposal volume shall begin with an executive summary. Executive summaries are not subject to the page limit requirements per volume as outlined in Table A however, each proposal volume's executive summary is limited to four (4) pages.

7. Proposals shall be neat, indexed / cross indexed and logically assembled. All pages of each volume shall be appropriately numbered and identify the GTP 2.0 RFP number. To facilitate ease of reference in correspondence and meetings, offerors shall use a page numbering system. Consecutive page numbering within tabs is preferred: e.g., Page A-5 identifies Tab A, Page 5. Indexes, matrixes, acronym lists (i.e., proposal reference materials) are not subject to the page limit requirements.

8. Any GTP 2.0 RFP amendment, Evaluation Notice (EN), or Final Proposal Revision (FPR) requiring offeror proposal page revisions shall be submitted and identified by amendment number and date as well as by page number. In addition to the specific requirements for each proposed volume, the offeror shall provide any supporting materials (indexes, matrixes, charts, acronym lists, or graphics) considered necessary for the Government to fully understand the proposal.

9. Proposals shall be received no later than the time specified in Block 8 on page one (1) of the Standard Form (SF) 1449 for GTP 2.0 RFP number SPE7LX-26-R-0030. The time reflected in Block 8 is Eastern Standard Time (EST) for Columbus, OH.

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Part 12 Provisions (CONTINUED)

Submission of proposals (signed and dated) shall be submitted in accordance with the L&M Procurement Note 215-9008. Offerors shall ensure that the information contained in their proposal is factual, accurate, and complete. If the Government accepts the offer, it will contractually bind the offeror to the terms and conditions of the GTP 2.0 RFP.

The following method(s) of submitting a proposal are authorized in the solicitation:

Signed and dated proposals/amendments shall be provided based on the format stated in section L and submitted to the secure file exchange site listed below.

Offerors shall submit their proposal package within the Solicitation Module within the Procurement Integrated Enterprise Environment, accessible at https://piee.eb.mil/.
NOTE: GTP 2.0 RFP amendments that only require acknowledgement (offeror signature) may be sent by email charles.mielkeii@dla.mil. The email must be 10 MB or smaller.

For GTP 2.0 RFP information, please see the Point of Contact (POC) listed in Block 7a of the SF 1449 for SPE7LX-26-R-0030.

All proposals must be identified with the GTP 2.0 RFP number and be received by the closing date and time. Submitted proposals shall be valid for a period of six months from the solicitation closing date and time.

Each page containing proprietary information should be marked accordingly. CUI markings should be clearly stated.

The following must be stamped, at the bottom, or in the footer of each page: SOURCE SELECTION INFORMATION - SEE FAR 2.101 and 3.104.

OFFEROR AUTHORIZED REPRESENTATIVE(S)
Offerors shall identify individual(s) authorized to represent the offeror's position and commit the offeror in all exchanges between the Government and offeror:

Name:
Title / Position:
Phone Number:
Email Address:

EXECUTED GTP 2.0 RFP DOCUMENTS AND CERTIFICATIONS

Executed GTP 2.0 RFP documents and certifications shall contain the signed original of all documents requiring signature of the offeror, use of reproductions of signed originals of the SF 1449, GTP 2.0 RFP, Offer and Award; SF 30 Amendment of the GTP 2.0 RFP / Modification of Contract; and Representations, Certifications and Other Statements of Offerors, is authorized in the copies of the proposal. Subsequent pages following the SF 1449 (except for the completed Representations, Certifications and Other Statements of Offerors) or SF 30 should not be submitted.

The North American Industry Classification System (NAICS) code utilized for the GTP acquisition will be 493190 “Other Warehousing and Storage”. This industry comprises establishments primarily engaged in warehousing and storage facilities. Per the U.S. Small Business Administration, the size standard for this classification is $36.5 million. The NAICS code and size standard for this acquisition appears in Block 10 of the GTP 2.0 RFP cover sheet (SF 1449).

COMMUNICATIONS BETWEEN THE GOVERNMENT AND OFFERORS

Exchanges of source selection information between Government and Offerors will be controlled by the Contracting Officer. Email may be used to transmit such information only if the email can be sent encrypted and must include “Source Selection Information - See FAR 2.101 and 3.104” in the subject line of the email as well as marked CUI. In order to facilitate the sending and receiving of encrypted emails, Offerors must use Microsoft

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Part 12 Provisions (CONTINUED)

(MS) Outlook email configured to support encryption or a different email product that is S/MIME compatible and configured to support encryption. To submit your source selection information via encrypted email, you will need to contact the Buyer/Contracting Officer indicated on the face page of the solicitation prior to that first submittal in order to exchange certificates used for encryption. To ensure the process is working correctly, send a test encrypted message first (without including any source selection information). When you are ready to send an encrypted email, ensure encryption is selected and include "Source Selection Information - See FAR 2.101 and 3.104" in the subject line of the email.

Communications are exchanges between the Government and offerors. Exchanges of source selection information after submission of the initial proposal packages between Government and offerors will be controlled by the Contracting Officer. Communications prior to proposal submission may occur for the purpose of clarifying elements of the GTP 2.0 RFP. They will be conducted as follows:

Requests for clarification, questions and / or information concerning the GTP 2.0 RFP shall be submitted in writing via email to the following:

Primary: Charles E. Mielke II, Contracting Officer

Email: charles.mielkeii@dla.mil

Subject: GTP 2.0 RFP# SPE7LX-26-R-0030

The Government will acknowledge receipt within one (1) business day. Offerors not receiving an acknowledgement within one (1) business day should assume the request was not received and resend. The Government assumes no responsibility for delay or loss of correspondence.

Request(s) for clarification and / or information concerning the GTP 2.0 RFP should be submitted in the following format:

Reference: Section ____, Page , Paragraph , (or Figure).

Question: ____

Company: (provide once) ____

Company Representative: (provide once) __________________________________

No information concerning the GTP 2.0 RFP or requests for clarification will be provided in response to offeror-initiated telephone calls. All such requests shall be made in writing and submitted to the above addresses. Inquiries will be answered in writing and provided to all offerors. However, because of response time, requests may not be answered if received by the above addressee within 15 calendar days of the due date for proposal submission.

SUMMARY OF EVALUATION FACTORS

Proposals will be evaluated in terms of four (4) Factors and their corresponding Subfactors listed in Table A above in accordance with the evaluation criteria contained in Section M of the GTP 2.0 RFP. Offerors should thoroughly read and understand the terms and conditions contained in the GTP 2.0 RFP. Failure to provide any information requested in the GTP 2.0 RFP may render the offeror's proposal technically "Unacceptable" and preclude it from any further consideration for GTP 2.0 contract award. Offerors shall ensure that the information contained in their proposal is factual, accurate, and complete. If the Government accepts the offer and upon bilateral signature of the Government and offeror, it will contractually bind the contractor to the terms and conditions of the GTP 2.0 RFP.

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Part 12 Provisions (CONTINUED)

Volume I - Completed GTP 2.0 RFP

Volume I will consist of the completed and signed GTP 2.0 RFP with a cover letter delineating any exceptions taken to the GTP 2.0 RFP terms and conditions with accompanying rationale. However, offerors are cautioned that any noncompliance with the terms and conditions of the GTP 2.0 RFP may cause their proposal to be determined unacceptable and therefore not eligible for award. **Offerors shall ensure that all clauses and provisions that require "fill-in" information are completed, including the proposed prices associated with the CLINs in the schedule of the GTP 2.0 RFP.** Proposals received are subject to the requirements specified in FAR 52.212-1, unless otherwise tailored in the Addendum to the GTP 2.0 RFP.

Volume II - Factor 1: Past Performance

Volume II will consist of the offeror's past performance proposal. The offeror shall submit Present and Past Performance Information and describe the extent of experience similar to the proposed GTP 2.0 RFP requirements (Similar experience is further described in subsequent paragraphs). Past Performance shall only be submitted for its own corporate entity and critical subcontractor (if applicable) and its subsidiaries and affiliated companies. If past performance is submitted based on a corporate entities subsidiary and/or affiliated company (different CAGE Code than the offeror), the offeror shall clearly explain how the personnel, knowledge, experience, tools, expertise, etc. from the past performance submitted have been retained or will be made available to support this effort in accordance with the format contained in the "FACTS Sheet" (Attachment 19) and the past performance cover letter discussed in the following paragraphs. FACT sheets and past performance cover letters are not included in the page limits to Volume II. Material sources of supply are not considered critical subcontractors.
Efforts submitted for proposed critical subcontractors (if applicable) not meeting the established definition defined in Volume IV Subfactor 1, may not be evaluated.

For purposes of this evaluation, recency is defined as the effort must have at least six (6) months of performance and either be active or have been completed within the past three (3) years from the closing date of this GTP 2.0 RFP. Relevancy is defined as present / past performance effort compared to the scope and magnitude of effort and complexities the GTP 2.0 RFP requires.
Relevant past performance requires similarity in scope and magnitude of effort; while this effort entails logistic support for tires only, the Government is not restricting the scope relevancy to tire logistics, rather the Government's scope entails wholistic logistics integrator support. Offerors with similar logistics support shall consider its relevancy with the nature of tires and the magnitude in terms of volume and portfolio breadth. Quality is defined as the offeror's and critical subcontractor's (if applicable) performance [i.e., how well offeror and critical subcontractor (if applicable) performed on the contracts] of the recent and relevant submitted contracts. Each offeror and critical subcontractor (if applicable) shall complete a separate FACTS Sheet for each submitted contract.

Past performance for the offeror and critical subcontractors (if applicable) should be submitted as follows:

Offeror: No more than five (5) relevant contracts should be submitted for consideration; however, only a minimum of three (3) relevant contracts shall be submitted. If more than five (5) contracts are submitted to the Government, the Contracting Officer shall discard the excess contracts at their own discretion. Contracts may either be Government or commercial contracts. If the Offeror's experience is not sufficient to provide enough past performance. Information (five relevant contracts), the offeror may provide no more than two (2) relevant contracts for the past performance of any significant critical subcontractor. The total of the submitted relevant contracts for the prime and critical subcontractors cannot total more than five contracts. The Offeror shall clearly detail how the past performance of the significant partner, joint venture, critical subcontractor, predecessor entity, etc. is relevant to the performance under the proposed contract. Offerors are permitted to attach one (1) cover letter to each past performance effort submitted to describe in further detail the work performed, the magnitude, and to explain to the Government how the past performance is demonstrative of the GTP 2.0 scope, in terms of logistics support, number of unique items, volume, and if applicable - similar characteristics of those items.

Critical Subcontractor (if applicable): A "critical subcontractor" is defined as any subcontractor, team member, or consultant (at any tier) designated by the prime contractor as being necessary to perform management and operational oversight activities required by the GTP 2.0 RFP.

No more than two (2) relevant contracts (for each identified critical subcontractor) should be submitted for consideration. If more than two (2) contracts are submitted to the Government, the Contracting Officer shall discard the excess contracts at their own discretion. Contracts listed may include those with the Federal Government, state and local Governments or their agencies, and commercial customers.

For the contracts listed above, identify the metrics measured during contract performance and the offeror's performance history against those stated / contracted metrics. If an ordering contract is being submitted for evaluation, which has numerous Delivery Orders (DOs) (which cannot be evaluated individually), the offeror and critical subcontractor (if applicable) shall provide an executive summary of the magnitude of the work performed on the contract, including the number of orders issued, performance metrics, dollar values, delivery standards, and other information that shall provide sufficient information to evaluate its overall past performance evaluation. Information submitted in this format shall be considered collectively one (1) contract. The executive summary in this section is limited to two (2) double-sided pages and are included in the page limitations for Volume II.

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Part 12 Provisions (CONTINUED)

In addition to the FACTS Sheets, the offeror must submit a consent letter executed by each of its proposed critical subcontractors (if applicable) authorizing release of adverse past performance information to the prime offeror to allow the prime offeror an opportunity to respond. A sample Subcontractor / Teaming Partner Consent Form is provided in Attachment 20. The consent form should be completed by the critical subcontractors (if applicable) identified in your proposal. The completed consent forms should be submitted as part of the Past Performance Volume and are excluded from the Volume II page limit requirement.

If the offeror and critical subcontractor (if applicable) has no past performance history, the offeror and critical subcontractor (if applicable) should provide information regarding the experience of its key management and / or technical personnel on contracts for the same or similar items. Contracts performed by any predecessor company for the same or similar items may also be submitted. However, the offeror shall identify the prior CAGE Code, the new CAGE Code, rationale for why the CAGE Code changed, why the old CAGE Code was no longer interested, and demonstrate how the prior CAGE Code has retained the personnel, tools, and expertise to provide the Government full confidence the predecessor CAGE code would perform at the same capacity as the CAGE code bidding to this effort. In the case of an offeror and critical subcontractor (if applicable) without a record of relevant past performance or for whom information on past performance is not available, the offeror and critical subcontractor (if applicable) may not be evaluated favorably or unfavorably on past performance.

Intentional failure to fully report requested past performance information might adversely impact the evaluation of the offeror's proposal. Failure by the offeror and critical subcontractor (if applicable) to provide evidence of performance on contracts of a similar nature in terms of period of performance, size and complexities of the requirement provided will result in the Government evaluating past performance of no relevant history.

On the contracts submitted from the offeror and critical subcontractors (if applicable), the offeror and critical subcontractors (if applicable) shall include relevant information in the FACTS Sheets in accordance with FAR 52.219-8, Utilization of Small Business Concerns or FAR 52.219-9, Small Business Subcontracting Plan if these clauses are or were contained in the contract. When subcontracting possibilities existed on the contracts submitted by the offeror and critical subcontractors (if applicable), the offeror and critical subcontractors (if applicable) shall address whether or not they awarded subcontracts to small business concerns, women-owned small business concerns, small disadvantaged business concerns, veteran-owned small business concerns, HUBZone small business concerns, and service-disabled veteran-owned small business concerns to the maximum practicable extent consistent with efficient contract performance. If none of the submitted contracts included these clauses, whenever subcontracting possibilities existed in the performance of these contracts, the offeror and critical subcontractors (if applicable) shall address whether or not it was the offeror's and critical subcontractor's (if applicable) policy to utilize small business concerns, women-owned small business concerns, small disadvantaged business concerns, veteran- owned small business concerns, HUBZone small business concerns, and service-disabled veteran-owned small business concerns to the fullest extent consistent with efficient contract performance. If subcontracting occurred with the small business concerns identified above in this paragraph, the offeror and critical subcontractor (if applicable) shall describe the extent of its past performance in the past three (3) years, prior to the issuance date of the GTP 2.0 RFP, for the contracts submitted.

The offeror and critical subcontractor (if applicable) shall focus its FACTS Sheet responses on clearly correlating present and past performance with the requirements of the GTP 2.0 RFP. The FACTS Sheet responses shall clearly describe the relevance of the effort to the work proposed. In particular, offerors and critical subcontractors (if applicable) should describe how present and past performance correlates to each of the three (3) technical subfactors as the Government's past performance evaluation will focus on and target performance which is relevant to the technical subfactors. The answering space on the FACTS Sheet may be expanded so that the filled-in FACTS Sheet for each relevant contract covers no more than five (5) pages (double-sided) 12-point font, minimum. Provide the most current information for the Points of Contact (POCs) identified on the FACTS Sheets.

If problems were encountered during the performance of the identified contracts, the offeror and critical subcontractors (if applicable) shall provide evidence of the ability to isolate the root causes of problems and include in the FACTS Sheet a description of actions taken to resolve those causes. Problems not addressed in the FACTS Sheet but found by the Government during the evaluation of the information in this volume, will be assumed to still exist for present work and to be unresolved for past work, which will contribute to the overall performance rating. Note: In the case of Contractor Performance Assessment Report System (CPARS), if the offeror's input has already been provided and the rationale / circumstances have not changed, DO NOT repeat them here.

The Present / Past Performance Questionnaire (Attachment 21) will be one (1) means used by the Government to obtain present / past performance information. The offeror shall send out - and track the completion of - the Present / Past Performance Questionnaires (Attachment 21) to each of the offeror's and critical subcontractor's (if applicable) (i.e., each entity's) Points of Contact (POCs) identified in each FACTS Sheet. The responsibility to send out - and track the completion of the Present / Past Performance Questionnaires rests solely with the offeror - i.e., it **shall not be delegated** to any other entity. The Transmittal Letter (Attachment 22) shall be used by the offeror in sending out the Present / Past Performance Questionnaires. Exert your best effort to ensure that at least two (2) POCs per relevant contract submit a completed Present / Past Performance Questionnaire **directly to the Government not later than the date established for receipt of proposals**. POCs may submit their completed Present / Past Performance Questionnaire either electronically or by mail. Follow the procedures outlined in paragraph "Communications" above, and email to: charles.mielkeii@dla.mil with subject line to read as follows:

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Part 12 Provisions (CONTINUED)

"Questionnaire attached for Company XYZ.".

The completed questionnaires should be labeled with the following legend:
SOURCE SELECTION INFORMATION - SEE FAR 2.101 AND 3.104

Once the Present / Past Performance Questionnaires are completed by the offerors POCs, the information contained therein shall be considered source selection sensitive and shall not be released to the offeror. Therefore, any exchange / contact between the offeror and critical subcontractor (if applicable) and its own POCs in regard to comments made on the questionnaire is not permitted. The offeror is responsible to ensure the Questionnaires are sent to its respective POCs and submitted to the Government on time to the primary POCs specified on the FACTS Sheet.

In the event that commercial contracts are included as present / past performance sources of information, a client authorization letter shall be issued to those commercial POCs requesting / authorizing them to complete a Present / Past Performance Questionnaire. A client authorization letter is provided in Attachment 23. The offeror is required to send the client authorization letter(s) with the Present / Past Performance Questionnaire(s) to each POC on commercial contracts. A separate copy of client authorization letter(s) for each commercial contract shall be included in the offeror's Present / Past Performance submission for the Government's use in case additional questionnaires need to be sent by the Government after the GTP 2.0 RFP closing. Authorization letters / Questionnaire's will not count against page limits.

The Government may conduct follow-up discussions with any of the POCs identified in the FACT Sheets or in the offeror's Past Performance Volume. The Government may obtain and use past performance information from sources other than those identified by the contractor. The Government may obtain other information by sending out additional questionnaires and / or through other sources such as the other past performance information defined below. The Government will determine which customers to survey and may forward questionnaires or initiate other communications to elicit additional relevant information. Adverse past performance for which a contractor did not previously have an opportunity to comment will be handled in accordance with FAR 15.202(a)(2) if negotiations are not held.

Attachment 19 and 21 *(FACTS Sheet and Present / Past Performance Questionnaire)* must include the following legend at the top and bottom of the page:

CUI - SOURCE SELECTION INFORMATION - SEE FAR 2.101 AND 3.104

Performance Risk will be assessed based on delivery history and quality history obtained from the Supplier Performance Risk System (SPRS) for the Federal Supply Classes (FSCs) and/or the North American Industry Classification System (NAICS) code listed within this solicitation. See DLAD PROC Note L08, Use of Supplier Performance Risk System (SPRS) in Past Performance Evaluations, for additional information. For further details concerning SPRS classification calculations and contractor data challenge procedures, see user guides under References at https://www.sprs.csd.disa.mil. The Government may also consider general trends of a vendor in the areas of on-time delivery and/or quality that may not be reflected in SPRS for the particular FSC/NAICS and information from various other sources such as contracting agency experience with the contractor, previous contract history available from DCMA, etc. If negative information from sources other than SPRS or the contracting agency's own experience impacts the evaluation, the affected offeror will be given the opportunity to discuss that information. Offerors aware of errors in the SPRS records pertaining to prior efforts should take action, prior to submitting their proposal for the GTP 2.0, to challenge and correct those records through procedures identified in those systems for such purpose.

Other Past Performance Information:

Contractor Performance Assessment Reports (CPARS): CPARS collects and manages past performance evaluations on Government contracts. Summary data from the CPARS database or from the reports themselves may be used to measure the status of industry performance. Offerors aware of errors in the CPARS records pertaining to prior efforts should take action, prior to submitting their proposal for the GTP 2.0, to challenge and correct those records through procedures identified in those systems for such purpose.

Responsibility & Integrity Information (located in the System for Award Management (SAM)): FAPIIS contains specific information on the integrity and performance of covered Federal agency contractors and grantees. FAPIIS provides users access to integrity and performance information from the FAPIIS reporting module in the CPARS, proceedings information from the Entity Management section of the SAM database, and suspension / debarment information from the Performance Information section of SAM.

DCMA: The DCMA gathers insight on suppliers through the execution of their Contract Administration Services (CAS) oversight mission. DCMA's CAS oversight activity is assessing a supplier's ability to perform to the terms of a contract, and to identify, analyze, and mitigate risk.

Vendor Performance History Database (VPH): The VPH is an internal DLA L&M tool that summarizes information from SPRS in a report view as well as other DLA tracked data specific to DLA contract awards, such as On Time Delivery (OTD), Open and Delinquent Purchase Orders, Quality Notification statistics, an Overview of Contract Awards, and Termination and Cancellation data from Enterprise Data Warehouse Tables.

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Part 12 Provisions (CONTINUED)

Volume II - Factor 4: Price

Volume II will consist of the offeror's price proposal.

The following information shall be provided in the offeror's price proposal and will be evaluated to assess the proposed price approach in accordance with Section M, Evaluation Basis for Award.

Attachment 4 contains the list of NSNs that the GTP 2.0 Integrator will be required to support. Offerors shall submit proposed firm fixed pricing in accordance with the CLIN structure identified in Section B of the GTP 2.0 RFP. Offerors shall submit pricing via the Section B - Pricing Spreadsheet (Attachment 1). Surplus offers will not be accepted on the GTP 2.0. REMINDER: DO NOT DELETE LINES OR ADD LINES IN THE SECTION B - PRICING SPREADSHEET.

On each tab of the Section B - Pricing Spreadsheet the offeror may price each tire / NSN for each year of the five-year (5-year) base period, each year of the two-year (2-year) option periods and the four (4), two-month (2-month) option periods for CLINs 0002, 0003, 0004, 0005, 0006 and 0007 as detailed at CLINs 0002, 0003, 0004, 0005, 0006 and 0007 below. Alternatively, if an offeror chooses they may propose a single price in row two (2) (highlighted in blue) on each tab for each base and option period that will be to applied to all tires / NSNs for CLINs 0002, 0003, 0004, 0005, 0006 and 0007. CLIN 0010 shall be priced out in one (1) lump payment as detailed at CLIN 0010 below.

Prospective offerors shall not place a fee or percentage on the Section B - Pricing Spreadsheet for CLIN 0001, CLIN 0008 and CLIN 0010. CLIN 0001 and CLIN 0008 are pass through CLINs that reflect the tire / NSN price and S&S tire / NSN price (if S&S is invoked by the Government), respectively, identified on the applicable Vendor Contract, which is the GTP 2.0 Integrator's tire / NSN price and S&S tire / NSN price (if S&S is invoked by the Government) under the GTP 2.0. CLIN 0001 will pay out the tire price and CLIN 0008 will pay out the S&S tire price (if S&S is invoked by the Government) to the GTP 2.0 Integrator. CLIN 0010 will be used to pay out the reconciliation amount as detailed at Section C, P2 - 16.3 and its subparts of the GTP 2.0 RFP.

Offerors shall provide other than certified cost or pricing data in accordance with FAR 52.215-20 for CLINs 0002, 0003, 0004, 0005, 0006 and 0007 and 0010 to include cost elements. No specific format is required for providing this information. The following are examples of other than certified cost or pricing data elements the Government is seeking:

Basis for costs provided (such as hours and rates utilized) Equipment Costs
Freight
Inbound Freight
Outbound
General and Administrative (G&A)
Inventory Carrying Costs (Cost of Money)
IT Costs
Obsolescence Costs
Other Infrastructure Acquired (non-warehouse)
Packaging (excluding labor and CLIN 0010 Palletization)
Personnel Costs for Direct Labor (including benefits)
Profit / Fee
Warehouse Costs

Failure to submit a price for each CLIN, for each base and option period, for each tire / NSN identified requiring a price, in accordance with the “All or None” L&M Procurement Note 215-9010 of the GTP 2.0 RFP, may result in an unacceptable price proposal and thus, the offeror may not be considered for award.

Offeror's shall provide a written narrative to accompany the pricing that explains the basis for and methodology used in developing the pricing for each CLIN. Additionally, this narrative shall include the differentiation of the unique elements for the price proposals for CLINs 0002, 0003, 0004, 0005, 0006, 0007 and 0010.

Table of Contents: Tab 1

Tab 1 lists the table of contents for all tabs contained in the Section B - Pricing Spreadsheet.

Instructions: Tab 2

Tab 2 lists the instructions for the Section B - Pricing Spreadsheet.

CLIN 0001: Tab 3

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Part 12 Provisions (CONTINUED)

Offerors shall not propose CLIN 0001 - Tire Price on Tab 4.

This CLIN is a pass through CLIN that reflects the tire / NSN price identified on the applicable Vendor Contract, which is the GTP 2.0 Integrator's tire / NSN price under the GTP 2.0.

This CLIN shall not contain any additional pricing other than the tire / NSN price on the applicable Vendor Contract. If S&S is invoked by the Government, the GTP 2.0 Integrator will invoice under CLIN 0008 and no costs shall be made under CLIN 0001.

CLIN 0001: Tab 4

This CLIN is a pass-through cost that reflects the tire price identified in the applicable Vendor Contract, which is the GTP 2.0 Integrator purchase price under the GTP 2.0 construct.

This CLIN shall not contain any additional pricing other than the actual tire price in the applicable Vendor Contract.

If S&S is invoked by the Government, the GTP 2.0 Integrator will invoice under CLIN 0011 and no costs shall be made under CLIN 0001.

CLINs 0001, 0008, 0009 and 0010 will not be utilized in the calculation for the Total Evaluated Price.

OFFERORS SHALL NOT PRICE THIS TAB.

CLIN 0002: Tabs 5 and 6

Offerors shall propose CLIN 0002 on Tabs 5 and 6.

Tab 5 consists of the Supply Chain Management Fee* for CONUS with a 95% FR and a 95% OTD.

Tab 6 consists of the Supply Chain Management Fee* for CONUS with a 97% FR and a 97% OTD.

If the Supply Chain Management Fee* for CONUS with a 95% FR and a 95% OTD is chosen, Tab 5 will be used for CLIN 0002.

If the Supply Chain Management Fee* for CONUS with a 97% FR and a 97% OTD is chosen, Tab 6 will be used for CLIN 0002.

CLIN 0003: Tabs 7 and 8

Offerors shall propose CLIN 0003 on Tabs 7 and 8.

Tab 7 consists of the Supply Chain Management Fee* for OCONUS with a 95% FR** and a 95% OTD.

Tab 8 consists of the Supply Chain Management Fee* for OCONUS with a 97% FR** and a 97% OTD.

If the Supply Chain Management Fee* for OCONUS with a 95% FR** and a 95% OTD is chosen, Tab 7 will be used for CLIN 0003.

If the Supply Chain Management Fee* for OCONUS with a 97% FR** and a 97% OTD is chosen, Tab 8 will be used for CLIN 0003.

CLIN 0004: Tabs 9 and 10

Offerors shall propose CLIN 0004 on Tabs 9 and 10.

Tab 9 consists of the Supply Chain Management Fee* for Foreign Military Sales (FMS) with a 95% FR***.

Tab 10 consists of the Supply Chain Management Fee* for FMS with a 97% FR***.

CONTINUED ON NEXT PAGE

Part 12 Provisions (CONTINUED)

If the Supply Chain Management Fee* for FMS with a 95% FR*** is chosen, Tab 9 will be used for CLIN 0004.

If the Supply Chain Management Fee* for FMS with a 97% FR*** is chosen, Tab 10 will be used for CLIN 0004.

CLIN 0005: Tab 11

Offerors shall propose CLIN 0005 on Tab 11.

Tab 11 consists of the Scrap / Disposal Management Fee.

CLIN 0006: Tab 12

Offerors shall propose CLIN 0006 on Tab 12.

Tab 12 consists of the CONUS Retread Management Fee.

CLIN 0007: Tab 13

Offerors shall propose CLIN 0007 on Tab 13.

Tab 13 consists of the OCONUS Retread Management Fee.

CLIN 0008: Tab 14

Offerors shall not propose on CLIN 0008 - S&S Tire Price on Tab 14.

This CLIN is a pass through CLIN that reflects the S&S tire / NSN price (if S&S is invoked by the Government) identified on the applicable Vendor Contract, which is the GTP 2.0 Integrator's S&S tire / NSN price under the GTP 2.0. This CLIN shall not contain any additional pricing other than the S&S tire / NSN price (if S&S is invoked by the Government) on the applicable Vendor Contract.

If the Government does not invoke S&S, the GTP 2.0 Integrator will invoice under CLIN 0001 and no costs shall be made under CLIN 0008.

CLIN 0009: Tab 15

Offerors shall not propose CLIN 0009 - Reconciliation on Tab 15.

This CLIN will be used to pay out the reconciliation amount as detailed at Section C, P2 - 16.3 and its subparts of the GTP 2.0 RFP

CLIN 0010: Tab 16

Offerors shall propose CLIN 0010 - GTP to GTP 2.0 Implementation Fee on Tab 16.

Tab 16 consists of the GTP to GTP 2.0 Implementation Fee.

This CLIN shall be paid out in one (1) lump payment for the GTP to the GTP 2.0 as detailed at Section C, C.2.10 of the GTP 2.0 RFP.

*Supply Chain Management fees may include:

CONTINUED ON NEXT PAGE

Part 12 Provisions (CONTINUED)

1. Direct labor and overhead associated with demand management.

2. Direct labor and overhead associated with purchasing (from the Contract Vendors).

3. Direct labor and overhead associated with tire management and distribution, systems and systems maintenance.

4. Free On Board (FOB) destination costs to a CONUS location to include Consolidation and Containerization Point (CCPs) or ports for OCONUS requirements.

5. All overhead and general administrative expenses necessary to support the supply chain requirements specified in the GTP 2.0 RFP.

6. Any profit, exclusive to CLINs 0002, 0003, 0004.

*** Reference Section C, Section P2 - 9.0 and its subparts for explanation of FR.

Total Evaluated Price (TEP): The overall TEP will be the sum of the TEPs for CLINs 0002*, 0003*, 0004*, 0005*, 0006**, 0007, with the price for each CLIN determined as specified in Section M. The overall TEP will not include CLINs 0001, 0008-0010. CLIN 0001 and CLIN 0008 are pass through CLINs therefore will not be included in the TEP. CLIN 0009 is a reconciliation CLIN therefore will not be included in the TEP. CLIN 0010 is an implementation CLIN therefore will not be included in the TEP.

Volume IV - Factor 1: Technical

Volume IV will consist of the offeror's technical proposal that shall address each of the three (3) subfactors identified in Table A above, to describe the offeror's proposed approach to performing the requirements set forth in the GTP 2.0 RFP. Under this factor, the Government will assess the offeror's technical proposal. The offeror's proposal should not simply rephrase or restate the Government's requirements but rather provide convincing rationale to address how the offeror intends to meet these requirements. Offerors shall assume the Government has no prior knowledge of its facilities and experience and will base its evaluation on the information presented in the offeror's proposal.

The following information shall be provided in the offeror's technical proposal and will be evaluated to assess the proposed technical approach and associated technical risk in accordance with Section M, Evaluation Basis for Award. The offeror's technical proposal shall address each of the subfactors (identified in Table A above) to describe the offeror's proposed approach to performing the requirements set forth in the GTP 2.0 RFP. For each subfactor, the offeror shall identify risks, if any, associated with the proposed approach and actions the offeror will take to mitigate the identified risks. If no risks / mitigations are identified in the offeror's proposal, it indicates the offeror does not consider there to be any risk associated with their proposed approach.

Subfactor 1: Management and Operations
The offeror's management and operations submission shall address, at a minimum, the following elements:

1. Describe its corporate structure, identifying the responsibilities of the offeror and all critical subcontractors (if applicable) relating to the management and operations of this effort.

2. List all key personnel (including critical subcontractor personnel) that are essential to the successful management and oversight of this effort and the responsibilities of those personnel for this effort.

3. Describe its supply chain management system in sufficient detail for the Government to ascertain the viability of the approach. At a minimum, the offeror's submission shall address its approach to:

a. Inventory planning and inventory management strategy.

b. Monitoring performance at all levels and expeditiously responding to and meeting both planned and unplanned variability in customer demand (e.g., increase demands).

c. Providing an optimized transportation network for military customer order fulfillment and the rationale for selecting such a network to support these requirements.

d. Warehouse operations: the rationale supporting the selection of warehouses; the rationale for selecting the locations; and the rationale for selecting the NSN allocation at each warehouse location.

e. Implementing data / information sharing across the supply chain management enterprise including Original Equipment Manufacturers (OEMs), Government agencies and 3rd party logistics (3PL) / transportation providers.

CONTINUED ON NEXT PAGE

Part 12 Provisions (CONTINUED)

f. Continually assessing and evaluating compliance with the Environmental Protection Act (EPA), National Environmental Policy Act (NEPA), Occupational Safety and Health Act (OSHA), laws and regulations, Department of Defense (DoD) standards, and any other applicable laws and regulations.

g. Customer service support.

4. Explain, in clear and understandable terms, the data elements that support its supply chain management system. The data elements shall include, at a minimum, the variability in minimum / maximum times and most probable time:

a. To plan, source and deliver at each GTP 2.0 Integrator warehouse / inventory point for each National Stock Number (NSN) identified at Attachment 4 with a projected demand / workload;

b. To plan, pick, palletize (if applicable), package (if applicable), load, ship and deliver tires to the customer.

5. Identify potential supply chain risks to meeting the specific performance criteria in the GTP 2.0 RFP and provide an approach to mitigating each risk identified.

6. Identify and describe the process associated with the management, analysis, evaluation and execution of retreadable tires via the requirements.

7. Identify and describe the process associated with retrieving, scheduling, handling, and / or disposal of used / scrap tires via the requirements.

8. Describe its approach to providing global support to each U.S. Combatant Command(s) (COCOM) and country of support identified in Section C of the GTP 2.0 RFP and the offeror's ability to successfully implement an additional Prepositioned Stocking location(s).

9. Describe its planned approach for maintaining and replenishing inventory levels including the extent to which the offeror plans to preposition stock (if applicable).

10. Describe, in detail, its plan to ensure the quality and conformance of the tires supplied under the GTP 2.0 contract and how it intends to organize, manage, and perform the GTP 2.0 RFP requirements in order to meet or exceed in a way beneficial to the Government. At a minimum, the offeror's plan shall include:

a. A description of the offeror's quality control and assurance systems.

b. How the offeror will ensure product conformance as well as ensuring criteria standards for testing, inspection and marking are met.

c. Any commercial warranty provisions and return / exchange program for incorrect or defective tires.

d. Identify the Information Technologies (ITs) that will be utilized for the GTP 2.0 contract and how it will be used in the period of performance of the GTP 2.0 contract.

e. The offeror's approach to implementing data / information sharing across its supply chain management system.

f. The offeror's approach to integrate its IT capabilities with the Vendor Contracts and other parties involved in the proposed supply chain management approach.

g. How the offeror's IT and system capabilities will adapt and maintain satisfactory performance in the event of an outage while maintaining seamless support.

Subfactor 2: Transition and Implementation -The offeror shall describe, in detail, its plan for transition and implementation. The offeror's transition and implementation plan shall be in accordance with the requirements set forth in Section C of the GTP 2.0 RFP, P1 for Phase 1, Transition and at a minimum, shall address the following elements:

1. Provide a high-level overview of milestones needed to successfully transition as the GTP 2.0 integrator and establish full operational capability.

2. Prepare a timeline for the GTP to the GTP 2.0 transition to meet the Government's performance requirements detailed at Section C, P1 - 3.0 of the GTP 2.0 RFP.

CONTINUED ON NEXT PAGE

Part 12 Provisions (CONTINUED)

3. Describe its plans to verify and validate its supply chain management system prior to full execution.

4. Describe its planned approach for initial inventory buildup and replenishment.

5. List all actions, in clear and understandable terms, that the Government is to perform, with specific dates, in order for the contractor to successfully transition from the GTP contract to full execution.

6. List all actions, in clear and understandable terms that the contractor and its subcontractors are to perform to successfully transition from the GTP contract to full execution.

Subfactor 3: Resource Availability / Financing* - Under this evaluation subfactor, the Government will assess the offeror's ability and approach to secure the resources necessary to successfully start up and sustain performance of the GTP 2.0 contract.

1. At a minimum, the offeror shall describe in detail its resource / financing plan to successfully perform during the contract implementation period and throughout the period of performance of the GTP 2.0 contract to include:

a. The offeror's resource / financing plan shall correlate to its technical approach and describe how the offeror will ensure that all resources required to perform, consistent with its proposed approach, will be made available for the GTP 2.0.

b. The offeror's resource / financing plan shall contain a section addressing each of the following categories of resources required to perform the GTP 2.0:

i. Inventory
ii. Real Property
iii. Equipment
iv. Personnel / Labor
v. Transportation / Distribution
vi. Information Technology

In each section, the offeror's resource / financing plan shall identify what resources are already in place or available to the offeror within its own organization (within its organization or that of a parent organization), and what resources the offeror will be required to secure from outside its organization.

a. For all resources required to be secured from inside the organization, the offeror's plan shall identify its ability to commit those resources to the GTP 2.0. For this purpose, the offeror should include, as attachments to its plan, any current equipment or asset or inventory lists, operating agreements, leases, or any other pertinent documentation necessary to demonstrate the existence of such resources, or the soundness and reasonableness of the plan to secure them. These attached documents shall be unaltered and are not included in the page limits or font restrictions to Volume IV.

b. For all resources required to be secured from outside the organization, the offeror's plan shall identify the source and its plan or method for acquiring and financing those resources. For this purpose, the offeror should include, as attachments to its plan, any proposed purchase agreements, leases, or operating agreements, or any other pertinent documentation necessary to demonstrate the soundness and reasonableness of the offeror's plan to secure all such resources from all designated sources. These attached documents shall be unaltered and are not included in the page limits or font restrictions to Volume IV.

c. To the extent, in total, the offeror's approach will rely on any 3rd party, external sources of financing, the offeror's resource / financing plan shall contain a section addressing the safety, security, and credit worthiness of all sources of external, 3rd party financing. For this purpose, the offeror shall include, as attachments to its plan, any bank guarantees, letters of credit, loans, commitments or any other pertinent financial documentation necessary to demonstrate the safety, credit worthiness, soundness and reasonableness of all sources of external financing. These attached documents shall be unaltered and are not included in the page limits or font restrictions to Volume IV.

d. To the extent, in total, that the offeror's approach will rely on internal sources of funding (funding available to the offeror within its own organization or a parent organization), the offeror's plan shall demonstrate the offeror's ability to self-finance those resources. For this purpose, the offeror shall include, as attachments to its plan, any guarantees or commitments from parent organizations or any other pertinent financial documentation necessary to demonstrate the safety, soundness and reasonableness of the offeror's internal financing. Regarding internal funding, to the extent that the offeror's financial plan will rely on proceeds from sales under the GTP 2.0 to fund required resources, the offeror's resource / financing plan shall describe a sound and reasonable time phased approach by which the offeror plans to rely upon for sales under the GTP 2.0 contract to support the offeror's investment in resources and ongoing operating expenses. These attached documents shall be unaltered and are not included in the page limits or font restrictions to Volume IV.

CONTINUED ON NEXT PAGE

Part 12 Provisions (CONTINUED)

e. Finally, the offeror shall provide, as an attachment to its resource / financing plan, a copy of audited financial statements from the last three (3) years. These attached documents shall be unaltered and are not included in the page limits or font restrictions to Volume IV.

***In conducting assessments under this subfactor, the Government may secure assistance from the Defense Contract Management Agency (DCMA), the Defense Contract Audit Agency (DCAA), or other government personnel or advisors. The Government also reserves the right to verify any information presented in the offeror's resource/financing plan from sources identified in the plan or from third parties. If deemed necessary, site visits may be conducted to assess the accuracy of any information provided in the offeror's resource/financial plan.**

Volume V - Factor 4: Small Business Participation

Volume V will consist of the offeror's Small Business Participation proposal. This is separate and distinct from any subcontracting plan submitted pursuant to FAR 52.219-9. Offerors shall propose the level of participation of Small Businesses (SB), Small, Disadvantaged Businesses (SDBs), Women-Owned SBs (WOSBs), Veteran-Owned SBs (VOSBs), Service-Disabled Veteran-Owned SBs (SDVOSBs), and Historically Underutilized Business Zone (HUBZone) SB concerns in the performance of the acquisition. The DoD's small business prime goals are listed at **https://www.sba.gov/document/support-agency-contracting-goals** and are provided for consideration in the development of individual offeror small business participation targets. The offeror shall provide targets, expressed as dollars and percentages of total evaluated price, for the above-mentioned small business categories. The targets may provide for participation by a prime contractor, joint venture partner, teaming arrangement member, or subcontractor.

All offerors shall provide the Small Business Participation Commitment Document (SBPCD) template (**Attachment 24**) and substantiating documentation as described below. This required information will be used to evaluate the extent of the offeror's proposed commitment to use small businesses in the performance of this acquisition (as small business prime offerors or small business subcontractors) relative to Evaluation Factor IV, Small Business Participation.

Note: A small business concern submitting an offer shall receive a rating of Acceptable under this evaluation factor without having to submit any information in connection with this factor. If a small business concern does not submit any information in connection with this factor, it must ensure it clearly represents its size status in the corresponding executive summary and item 1 on **Attachment 24** (the SBPCD).

Attachment 24, Item 1: Offerors shall state whether they are a LARGE or SMALL business (See FAR 2.101 and FAR 19.103 for small business definitions size standards). Check the applicable size and socioeconomic categories for the PRIME offeror only - See **Attachment 24**, SBPCD. Include this information within the initial section of the offeror's proposed SBPCD and check all applicable boxes identified at item number 1 in **Attachment 24**.

Attachment 24, Item 2: These figures shall pertain to the proposed acquisition only.

Item 2 includes the proposed quantitative small business participation in terms of the value of the offeror's proposal (TEP as defined below in Volume V). Offerors shall provide detailed explanations and documentation to support their proposed targets and, if necessary, adequate justification for any proposed percentages below the DoD's small business prime goals. Supporting documents will not be incorporated into any resulting contract. Use the table and format identified at item number 2 in **Attachment 24** in proposing this required information.

Attachment 24, Item 3: Include the Small Business Concerns (SBCs), as defined in FAR Part 19, that are to be used in the offeror's proposed approach to satisfying the requirements of the GTP 2.0 RFP for the entire performance period, including company name, CAGE code, respective socioeconomic categories to the extent they are known, description of products or services and NAICS code to be provided by each SBC. Use the table/format identified at item number 3 in **Attachment 24** in proposing this required information.

Example and Format. The following is an example format for the submission of small business data.

Dollars Percent
Total Contract Price $1,000,000.00 100.00%
To Large Business: $788,000.00 78.80%
To Small Business: $212,000.00 21.20%
Total SB,
(include Prime, if SB) $212,000.00 21.20%
SDB: $50,000.00 5.00%
WOSB: $50,000.00 5.00%

CONTINUED ON NEXT PAGE

Part 12 Provisions (CONTINUED)

SDVOSB: $30,000.00 3.00%
HUBZONE SB: $30,000.00 3.00%
VOSB: $10,000.00 1.00%

The Small Business Subcontracting Plan as required by FAR 52.219-9 shall be submitted with Volume V and are excluded from the page limitations and font restrictions of Volume V.

SECTION M - EVALUATION FACTORS FOR AWARD

Basis for Global Tires Program 2.0 (GTP 2.0) Contract Award:

This is a competitive commercial acquisition in accordance with Federal Acquisition Regulation (FAR) Part 12 "Acquisition of Commercial Items" that will utilize formal source selection procedures in accordance with FAR Part 15 "Contracting by Negotiation", as supplemented by the Department of Defense (DoD) Source Selection Procedures referenced in Defense Federal Acquisition Regulation Supplement (DFARS) PGI 215.300 to make an integrated assessment for a best value award decision. The Government intends to award one (1) contract on an "All or None" basis as a result of the GTP 2.0 Request for Proposal (RFP). In using the best value approach, the Government seeks to award to the offeror who gives the Government the greatest confidence that it will best meet, or exceed, the GTP 2.0 RFP's requirements affordably in a way that will be advantageous to the Government. This may result in an award to a higher rated, higher priced offeror, where the decision is consistent with the evaluation factors and the Source Selection Authority (SSA) reasonably determines that the past performance, technical, and/or small business participation factors of the higher priced offeror outweigh the price factor. To arrive at a best value decision, the SSA will base the source selection decision on an integrated assessment of proposals against all source selection criteria in the GTP 2.0 RFP as described below. The source selection process, by its nature, is subjective; and therefore, professional judgment is implicit throughout the selection process.

The Government intends to award without negotiations as defined in FAR 15.203 Therefore, offerors are cautioned that their initial offers should contain the offeror's best terms considering all evaluations factors. However, the Government reserves the right to conduct negotiations with offerors if the SSA determines that negotiations are necessary.

Evaluation of Proposals:

Eligibility for Award:

The following conditions shall be met in order to be eligible for award: (1) The offeror must be affirmatively determined responsible according to the standards in FAR Subpart 9.1, and applicable supplements; and (2) The offeror's proposal must comply with all requirements set forth in the GTP 2.0 RFP (to include all stated terms and conditions, representations, and certifications, technical requirements, and all other information required by Section L).

Rejection of Grossly Deficient Offers:

If an initial assessment of an offeror's proposal finds that the proposal is grossly deficient, the Government may exclude that offeror's proposal from this competition prior to negotiations or competitive range determination without evaluating the offeror's proposal against the evaluation factors as defined in Section M. Grossly deficient proposals fail to address essential requirements of the GTP 2.0 RFP, or fail to furnish information demonstrating compliance with mandatory requirements set forth in the GTP 2.0 RFP, or in some other manner do not represent a reasonable initial effort by the offeror to address the requirements of the GTP 2.0 RFP.

Competitive Range Determination:

During the evaluation process, multiple competitive range determinations may be made that eliminate offerors from the competition. The Government may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals. A competitive range determination may eliminate offerors based on their initial proposal evaluation results, after negotiations (if necessary), prior to issuance of the Final Proposal Revision (FPR) request, or for purposes of efficiency. If offerors are excluded from the competitive range, they may request a debriefing in accordance with FAR 15.206-2.

CONTINUED ON NEXT PAGE

Part 12 Provisions (CONTINUED)

Correction Potential of Proposals:

The failure of an offeror's proposal to meet any given requirement of the GTP 2.0 RFP may result in the entire proposal being found unacceptable and ineligible for award. Likewise, any inconsistencies within an offeror's proposal may result in rejection of the offeror's entire proposal. The Government does not assume a duty to search for or seek clarification to cure deficiencies or inconsistencies within an offeror's proposal. The Government will consider, throughout the evaluation and in support of competitive range determinations, should the SSA determine that negotiations are necessary, the “correction potential” of any deficiency or inconsistency. The judgment of such “correction potential” is within the sole discretion of the Government. If an aspect of an offeror's proposal is not considered correctable, the offeror's proposal may be eliminated from the competitive range. No negotiations will be held with rejected offerors, nor will any rejected offeror be given an opportunity to revise its offer to correct those deficiencies or inconsistencies in order to become acceptable after the date and time established for receipt of initial proposals.

Evaluation Factors for Award:

Evaluation Factors and Subfactors:

A detailed and complete analysis of each offeror's proposal will be performed. The Government's evaluation will be based on the following Factors and Subfactors listed below in Table A.

Table A: GTP 2.0 RFP Evaluation Factors

Factor 1: Past Performance

Factor 2: Price
Factor 3: Technical
Subfactor 1: Management and Operations
Subfactor 2: Transition and Implementation
Subfactor 3: Resource Availability / Financing

Factor 4: Small Business Participation

Proposals will be evaluated according to “best value” procedures, and an award will be made to the offeror proposing the combination deemed most advantageous to the Government based upon an integrated assessment of the evaluation factors and subfactors referenced below. The Small Business Participation factor will be evaluated on an Acceptable/Unacceptable basis; any offeror rated Unacceptable will not be eligible for award and will not be considered in the tradeoff decision. In the trade-off decision the remaining factors (Past Performance and Price), when combined, will be significantly more important to Technical, but as other evaluation factors become more equal, the Technical evaluation becomes more important. The Past Performance factor is equal to Price. The Past Performance factor is more important than the Technical factor. With respect to the three (3) Technical Subfactors, Subfactor 1, Management and Operations, is the most important Technical Subfactor; Subfactor 2, Transition and Implementation, is the second most important Technical Subfactor, and Subfactor 3, Resource Availability / Financing, is the third most important Technical Subfactor..

Factor 1: Past Performance

Past performance will be evaluated as described below.

Confidence Assessment:

Under the Past Performance factor, the Performance Confidence Assessment Rating represents the evaluation of an offeror's past work record to assess the Government's confidence in the offeror's ability to supply products and services that meet users' needs. The Past Performance evaluation is accomplished by reviewing aspects of an offeror's recent, relevant past performance, focusing on and targeting performance which is relevant to the technical subfactors. Although the past performance evaluation focuses on performance that is relevant to each of the three (3) technical subfactors, the resulting Performance Confidence Assessment is made at the factor level and represents an overall evaluation of contractor performance, taking into consideration its expertise to large-scale logistical efforts where those processes, skills, and expertise could be easily transferrable to support GTP 2.0.

Should the past performance evaluation be completed on an offeror's proposal, the offeror will receive one (1) of the performance confidence assessment ratings described in Table B below. In the case of offerors for which there is no

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Part 12 Provisions (CONTINUED)

information on past contract performance or where past contract performance is not available, the offeror may not be evaluated favorably or unfavorably on the factor of past performance [see FAR 15.202(c)(1)]. In this case, the offeror's past performance is unknown and assigned a performance confidence rating of "Neutral Confidence".

Table B: Performance Confidence Assessments Rating Method

Adjectival Rating Description

Substantial Confidence Based on the offeror's recent / relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.

Satisfactory Confidence Based on the offeror's recent / relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.

Neutral Confidence No recent / relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.

Limited Confidence Based on the offeror's recent / relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.

No Confidence Based on the offeror's recent / relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.

Evaluation Process:

The Government will evaluate the quality and extent of offeror's recent past performance deemed relevant to the GTP 2.0, as discussed above and previously in section L regarding relevancy. The Government will use information submitted by the offeror and other sources, including information obtained from the FACTS sheets (Attachment 19) and past-performance cover letters provided with the offeror's proposals, to assess past performance and make a confidence assessment. More recent and relevant performance will have a greater impact on the Performance Confidence Assessment than less recent or relevant efforts. A strong record of recent and relevant past performance may be considered more advantageous to the Government than a "Neutral Confidence" rating. Likewise, a more relevant past performance record may receive a higher confidence rating and be considered more favorably than a less relevant record of favorable performance.

Problems not addressed by the offeror will be considered and evaluated to still exist. However, consideration for discounting problems may be given when those problems that have been addressed through demonstrated systemic improvement with supporting data to validate the systemic improvement. The degree to which the offeror can demonstrate that it has successfully applied continuous systemic improvement to resolve past performance problems will be evaluated and considered while the Government establishes its Performance Confidence Assessment.

Offerors with adverse past performance information to which they have not previously had an opportunity to respond, may be given the opportunity to provide clarifications and to address the adverse information during any other type of exchange in accordance with FAR 15.202(a)(ii). For this acquisition, adverse past performance is defined as past performance information that supports a less than satisfactory rating on any evaluation element.

In conducting this assessment, the Government reserves the right to use both data provided by the offeror and data obtained from other sources. Past performance information will be obtained through the CPARS and SPRS or similar systems of DLA, and other Government departments and agencies, questionnaires tailored to the circumstances of this acquisition, DCMA channels, interviews with Program Managers and Contracting Officers, and other sources known to the Government, including commercial sources. Offerors aware of errors in the CPARS or SPRS records pertaining to prior efforts should take action, prior to submitting their proposal for the GTP 2.0, to challenge and correct those records through procedures identified in those systems for such purpose. The Government will assess offeror's SPRS scores for the Federal Supply Classes (FSCs) and/or the North American Industry Classification System (NAICS) code listed within this solicitation.. The Government may also consider general trends of a vendor in the areas of on-time delivery and/or quality that may not be reflected in SPRS for the particular FSC/NAICS and information from various other sources such as contracting agency experience with the contractor, previous contract history available from DCMA, etc.

Recency Assessment:

An assessment of the past performance information will be made to determine if it is recent. To be recent, the effort must have at least six (6) months of performance and either be active or have been completed within the past three (3) years from the closing date of this GTP 2.0 RFP. Past performance information that fails this condition will not be evaluated.

Relevancy Assessment:

In determining the relevance of previous efforts, consideration will be given to performance of efforts as a contractor or critical subcontractor involving the supply and supply chain management as they relate to the performance requirements contained in Section C of the GTP 2.0 RFP. Relatable performance requirements are not strictly tied to the performance of providing logistics support on tires.

CONTINUED ON NEXT PAGE

Part 12 Provisions (CONTINUED)

The Government may consider as relevant efforts performed for agencies of the federal, state, or local Governments and commercial customers. The currency and relevance of the information, source of the information, context of the data, and general trends in contractor's performance may be considered.

Each offeror will be evaluated on the extent to which they and their proposed critical subcontractors, as identified in their proposal, have demonstrated performance on prior supply and supply chain management contracts or subcontracts. Specifically, the Government will evaluate how the offeror's, and / or its critical subcontractor's prior performance is relevant to the technical subfactors stated above that pertain to the work to be accomplished or overseen by that portion of the contractor's team. The past performance of prime contractors will be evaluated against all technical evaluation subfactors. Offerors will be evaluated on how its performance could translate to performance on GTP 2.0. Offerors will also be evaluated on its relevancy to the scale of the GTP 2.0 program, the portfolio breadth of the GTP 2.0 program, and the relatable complexity of the item(s) the past-performance logistical support was performed on. The past performance of a proposed critical subcontractor will be evaluated against those technical subfactors bearing upon its role in performance, as defined in the proposal. As well as how the past performance could translate to performance on GTP 2.0. Critical subcontractors will be evaluated on the scale, portfolio breadth, and relatable complexity of the item(s) it performed as a critical subcontractor. For instance, if an offeror proposes to subcontract all its Transition and Implementation needs to a critical subcontractor who specializes in that area, and this is the only role identified by the offeror for that critical subcontractor on the GTP 2.0 effort, then the Government would consider and evaluate past performance efforts by that critical subcontractor on recent and relevant Transition and Implementation efforts for purposes of evaluating the past performance of the offeror on the GTP 2.0.

The Government will evaluate the offeror's and critical subcontractor's (if applicable) submitted contract(s) to determine if it is relevant in accordance with Table C below. An adjectival rating will be assigned for the offeror's and critical subcontractor's (if applicable) Relevancy Assessment identified in Table E below.

Table C: Relevancy Assessment Rating Method

Adjectival Rating Description

Very Relevant Present / past performance effort involved essentially the same scope and magnitude of effort and complexities the GTP 2.0 RFP requires.
Relevant Present / past performance effort involved similar scope and magnitude of effort and complexities the GTP 2.0 RFP requires.
Somewhat Relevant Present / past performance effort involved some of the scope and magnitude of effort and complexities the GTP 2.0 RFP requires.
Not Relevant Present / past performance effort involved little or none of the scope and magnitude of effort and complexities the GTP 2.0 RFP requires.

Where an offeror's performance record indicates problems, the Government will consider the number and severity of the problems and the appropriateness and effectiveness of any corrective actions taken (not just planned or promised). The Government may review more recent contracts or performance evaluations to ensure corrective actions have been implemented and to evaluate their effectiveness.

Quality Assessment:

The Government will evaluate the offeror's and critical subcontractor's (if applicable) performance quality [how well the offeror and critical subcontractor (if applicable) performed on the submitted contracts) of the recent and relevant submitted contracts in accordance with Table D below.

The quality assessment consists of an in-depth evaluation of all past performance information available. The quality assessment may result in positive or adverse findings. For adverse information identified, the evaluation will consider the number and severity of the problem(s), mitigating circumstances, and the effectiveness of corrective actions that have resulted in sustained improvements.

Table D: Quality Assessment Rating Method

Adjectival Rating Description

During the contract period, contractor performance is meeting (or met) all contract requirements and consistently exceeding (or exceeded) many. Very few, if any, minor problems encountered. Contractor took immediate and effective corrective action.
VERY GOOD (VG) During the contract period, contractor is meeting (or met) all contract requirements and consistently exceeding (or exceeded) some. Some minor problems encountered. Contractor took timely corrective action.
SATISFACTORY (S) During the contract period, contractor performance is meeting (or met) all contract requirements. For any problems encountered, contractor took effective corrective action.

MARGINAL (M) During the contract period, contractor performance is not meeting (or did not meet) some contract requirements. For problems

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Part 12 Provisions (CONTINUED)

encountered, corrective action appeared only marginally effective, not effective, or not fully implemented. Customer involvement was required.

UNSATISFACTORY (U) During the contract period, contractor performance is failing (or fail) to meet most contract requirements. Serious problems encountered. Corrective actions were either ineffective or non-existent. Extensive Customer oversight and involvement was required.

NOT APPLICABLE (N) Unable to provide a rating. Contract did not include performance for this aspect. Do not know.

In summary, for Factor 1 Past Performance, as a result of the relevancy and quality assessments of the recent contracts evaluated, offerors will receive a single integrated Performance Confidence Assessment Rating, as described in Table B above, for this factor.

Factor 2: Price

The Government will evaluate the offeror's price proposal on CLINs 0002, 0003, 0004, 0005, 0006 and 0007 by performing a price analysis in accordance with the guidance in FAR 15.404-1 to ensure that the total evaluated price is fair and reasonable. The Government will also evaluate the offeror's price proposal on CLIN 0010 by performing an analysis to ensure that the price for each of these two (2) CLINs not included in the total evaluated price is fair and reasonable.

Total Evaluated Price Methodology:

The Government will evaluate CLINs 0002, 0003, 0004, 0005, 0006 and 0007. The Government will select either a Fill Rate (FR) of 95% or 97%. Once chosen, the applicable tab will be utilized for the evaluation of CLINs 0002, 0003 and 0004.

If an offeror chooses to price each tire / NSN in the Section B - Pricing Spreadsheet for each base and option period for CLINs 0002, 0003, 0004, 0005, 0006 and 0007, for each tab on CLINs 0002, 0003, 0004, 0005, 0006 and 0007, the Government will add together prices for each tire / NSN and multiply by the Estimated Annual Demand Quantity (EADQ) for each tire / NSN in the Section B - Pricing Spreadsheet to arrive at a total price per CLIN.

If an offeror chooses to propose a single price in the Section B - Pricing Spreadsheet for each base and option period for CLINs 0002, 0003, 0004, 0005, 0006 and 0007, the offeror shall apply the price identified for each base and option period across all rows for each tire / NSN in the applicable base and option period. Then the offeror shall add together the prices for each tire / NSN and multiply by the EADQ for each tire / NSN in the Section B - Pricing Spreadsheet to arrive at a total price per CLIN.

Lastly, the offeror shall sum the final total evaluated price for CLINs 0002, 0003, 0004, 0005, 0006 and 0007 for a final evaluated price of their proposal.

Attachment 25 provides an example of how the final total evaluated price will be calculated.

The Government will analyze offers to determine whether unbalanced separately priced line items exist. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one (1) or more line items is significantly overstated or underestimated as indicated by the application of analysis techniques. The price analysis will examine each offeror's pricing on an NSN-by-NSN basis to assess whether any aspect of a proposal contains unbalanced pricing. Offers that are determined to be unbalanced may be rejected if the lack of balance poses an unacceptable risk to the Government.

Factor 3: Technical

Under this evaluation factor, the Government will assess the offeror's technical approach and capability to successfully perform all requirements as stated in the GTP 2.0 RFP. The offeror's understanding of the GTP 2.0 RFP requirements and the offeror's overall technical approach to meeting the requirements will be assessed. The Government will evaluate the likelihood that the offeror will successfully satisfy the requirements with acceptable risk. The Technical factor is comprised of three (3) subfactors: Management and Operations, Transition and Implementation, and Resource Availability / Financing. As the Government is assessing the offeror's overall approach to meeting the requirements of the GTP 2.0 RFP related to this factor, its assessment will include, but not be limited to, the items listed in the narrative for Section L corresponding to this factor and each of its subfactors.

Subfactor 1: Management and Operations

Under this evaluation subfactor, the Government will evaluate the offeror's approach to Management and Operations for soundness, reasonableness, and effectiveness in ensuring GTP 2.0 RFP compliance. The offeror's Management and Operations proposal will be evaluated to assess the offeror's supply chain management, infrastructure, information and data system

CONTINUED ON NEXT PAGE

Part 12 Provisions (CONTINUED)

capabilities necessary to meet all GTP 2.0 RFP requirements while ensuring the quality and conformance of the tires supplied under the GTP 2.0 contract with acceptable risk.

Subfactor 2: Transition and Implementation
Under this evaluation subfactor, the Government will evaluate the offeror's approach to Transition and Implementation for its soundness, reasonableness, and effectiveness in ensuring GTP 2.0 RFP compliance. The offeror's Transition and Implementation proposal will be evaluated to assess the offeror's ability to perform the necessary operations and responsibilities in order to be in a position to meet all performance requirements at the start of full execution with acceptable risk.

Subfactor 3: Resource Availability / Financing

Under this evaluation subfactor, the Government will assess the offeror's ability and approach to commit resources from within its own organization, as well as the offeror's ability and approach to secure resources from external sources that are necessary to successfully start up and sustain performance of the GTP 2.0 contract. In assessing the offeror's ability to finance required resources, the Government will assess the offeror's ability to self-finance those resources, as well as the safety, security, and credit worthiness of identified sources of external, 3rd party financing.

Evaluation Methodology:

Each Technical Subfactor will be evaluated in accordance with the criteria established in the GTP 2.0 RFP and will be evaluated based on the assessed strengths, weaknesses, deficiencies, uncertainties, and risks of each offeror's proposal.

Each Technical Subfactor will be individually evaluated and assigned a separate Technical and Technical Risk rating, as defined below in Tables B and C. Accordingly, each offeror will be assigned a single Technical rating and a single Technical Risk rating at the factor level. All Technical and Technical Risk ratings at the technical subfactor level and technical factor level will be presented to the SSA for consideration. A single rating of "Unacceptable" within any subfactor will render the offerors entire technical proposal "Unacceptable".

The offeror's technical solution will be rated separately from the risk associated with its technical approach. The Technical Rating evaluates the quality of the offeror's technical solution for meeting the Government's requirement. The risk rating considers the risk associated with the technical approach to meeting the requirement.

Technical Rating:

The Government will evaluate the offeror's technical solutions that will be rated separately from the technical risk associated with its technical approach. A color and adjectival rating will be assigned for the offeror's Technical proposal as identified in Table E below.

Table E: Technical Rating Method

Color Rating	Adjectival Rating	Description
Blue	Outstanding	Proposal indicates an exceptional approach and understanding of the requirements and contains multiple strengths.
Purple	Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one (1) strength.
Green	Acceptable	Proposal indicates an adequate approach and understanding of the requirements.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements.
Red	Unacceptable	Proposal does not meet requirements of the GTP RFP and thus contains one (1) or more deficiencies and is unawardable.

Technical Risk Rating:

The Government will evaluate the offeror's technical risk that will be rated separately from the technical solutions associated with its technical approach. An adjectival rating will be assigned for the offeror's Technical proposal as identified in Table F below.

CONTINUED ON NEXT PAGE

Part 12 Provisions (CONTINUED)

Table F: Technical Risk Rating Method

Adjectival Rating	Description
Low	Proposal may contain weakness(es) which have little potential to cause disruption of schedule, or degradation of performance. Normal contractor effort and normal Government monitoring will likely be able to overcome any difficulties.
Moderate	Proposal contains a significant weakness or combination of weaknesses which may potentially cause disruption of schedule, or degradation of performance. Special contractor emphasis and close Government monitoring will likely be able to overcome difficulties.
High	Proposal contains a significant weakness or combination of weaknesses which is likely to cause significant disruption of schedule, or degradation of performance. Is unlikely to overcome any difficulties, even with special contractor emphasis and close Government monitoring.
Unacceptable	Proposal contains a material failure or a combination of significant weaknesses that increases the risk of unsuccessful performance to an unacceptable level.

Factor 4: Small Business Participation

Under this evaluation factor, the Government will evaluate the extent of participation of small businesses, to include Small, Disadvantaged Businesses (SDBs), Women-Owned SBs (WOSBs), Veteran-Owned SBs (VOSBs), Service-Disabled Veteran-Owned SBs (SDVOSBs), and Historically Underutilized Business Zone (HUBZone) concerns in the performance of this contract.

In accordance with 13 CFR §125.3(g)(3), a small business concern submitting an offer shall receive an Acceptable rating without having to submit any information in connection with this factor. Offerors' proposals for socioeconomic support will be made as part of any resulting contract for use in determining how well the contractor has adhered to its socioeconomic plan and documented in CPARS. This plan may be monitored by the GTP 2.0 Integrator, Contracting Officer, a member of the DCMA Small Business Operations Center, the Basic Contract Administrator, and a DLA L&M Small Business Specialist.

The Small Business Participation Proposals will be evaluated with an Acceptable and Unacceptable rating. The description of the ratings is identified in Table G below:

Table G: Small Business Participation Rating

Adjectival Rating	Description
Acceptable	Proposal indicates an adequate approach and understanding of small business objectives.
Unacceptable	Proposal does not meet small business objectives.